

AMENDMENT OF SOLICITATION/MODIFICATION OF CONTRACT				1. CONTRACT ID CODE		PAGE OF PAGES	
						1 115	
2. AMENDMENT/MODIFICATION NO.		3. EFFECTIVE DATE		4. REQUISITION/PURCHASE REQ. NO.		5. PROJECT NO. (If applicable)	
0004		09/02/2025					
6. ISSUED BY		CODE		7. ADMINISTERED BY (If other than Item 6)		CODE	
Interior Business Center, AQD Acquisition Services Directorate 381 Elden Street Suite 2000A Herndon VA 20170		D29					
8. NAME AND ADDRESS OF CONTRACTOR (No., street, county, State and ZIP Code)				(x) 9A. AMENDMENT OF SOLICITATION NO.			
				140D0425R0090			
				x 9B. DATED (SEE ITEM 11)			
				09/02/2025			
				10A. MODIFICATION OF CONTRACT/ORDER NO.			
				10B. DATED (SEE ITEM 13)			
CODE		FACILITY CODE					
11. THIS ITEM ONLY APPLIES TO AMENDMENTS OF SOLICITATIONS							
☒ The above numbered solicitation is amended as set forth in Item 14. The hour and date specified for receipt of Offers ☐ is extended. ☒ is not extended. Offers must acknowledge receipt of this amendment prior to the hour and date specified in the solicitation or as amended, by one of the following methods: (a) By completing Items 8 and 15, and returning <u>1</u> copies of the amendment; (b) By acknowledging receipt of this amendment on each copy of the offer submitted; or (c) By separate letter or electronic communication which includes a reference to the solicitation and amendment numbers. FAILURE OF YOUR ACKNOWLEDGEMENT TO BE RECEIVED AT THE PLACE DESIGNATED FOR THE RECEIPT OF OFFERS PRIOR TO THE HOUR AND DATE SPECIFIED MAY RESULT IN REJECTION OF YOUR OFFER. If by virtue of this amendment you desire to change an offer already submitted, such change may be made by letter or electronic communication, provided each letter or electronic communication makes reference to the solicitation and this amendment, and is received prior to the opening hour and date specified.							
12. ACCOUNTING AND APPROPRIATION DATA (If required)							
13. THIS ITEM ONLY APPLIES TO MODIFICATION OF CONTRACTS/ORDERS. IT MODIFIES THE CONTRACT/ORDER NO. AS DESCRIBED IN ITEM 14.							
CHECK ONE	A. THIS CHANGE ORDER IS ISSUED PURSUANT TO: (Specify authority) THE CHANGES SET FORTH IN ITEM 14 ARE MADE IN THE CONTRACT ORDER NO. IN ITEM 10A.						
	B. THE ABOVE NUMBERED CONTRACT/ORDER IS MODIFIED TO REFLECT THE ADMINISTRATIVE CHANGES (such as changes in paying office, appropriation data, etc.) SET FORTH IN ITEM 14, PURSUANT TO THE AUTHORITY OF FAR 43.103(b).						
	C. THIS SUPPLEMENTAL AGREEMENT IS ENTERED INTO PURSUANT TO AUTHORITY OF:						
	D. OTHER (Specify type of modification and authority)						
E. IMPORTANT: Contractor ☐ is not ☐ is required to sign this document and return _____ copies to the issuing office.							
14. DESCRIPTION OF AMENDMENT/MODIFICATION (Organized by UCF section headings, including solicitation/contract subject matter where feasible.)							
DEPARTMENT OF THE INTERIOR (DOI) - FIXED WING FLIGHT SERVICES							
This amendment is issued to provide all questions submitted for this solicitation and the associated answers (Q&A Attached). Revisions to the solicitation as a result of the questions are highlighted in yellow and explained in the attached Q&A. Important Dates: -Proposal Due Date: November 18, 2025, 2:00PM Eastern Time. Continued ... Except as provided herein, all terms and conditions of the document referenced in Item 9 A or 10A, as heretofore changed, remains unchanged and in full force and effect.							
15A. NAME AND TITLE OF SIGNER (Type or print)				16A. NAME AND TITLE OF CONTRACTING OFFICER (Type or print)			
				Maya Maxies-Clemons			
15B. CONTRACTOR/OFFEROR		15C. DATE SIGNED		16B. UNITED STATES OF AMERICA		16C. DATE SIGNED	
_____ (Signature of person authorized to sign)				_____ (Signature of Contracting Officer)			

NAME OF OFFEROR OR CONTRACTOR

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
	READ SOLICITATION IN ITS ENTIRETY. All other terms and conditions of the solicitation remain unchanged at this time.				

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SECTION A – REQUIREMENTS AND PRICING

CONTRACT ACRONYMS

AC Advisory Circular
AD Airworthiness Directive
AMS Aviation Management System
A&P airframe and power plant
APCO Association of Public-Safety
Communications Officials
AQD Acquisition Services Directorate
ASM Aviation Safety Manager
ASO Aviation Safety Office
ASTM American Society for Testing and Material
ATC air traffic control
AUR Aircraft Use Report
CFR Code of Federal Regulations
CO Contracting Officer
COR Contracting Officer's Representative
CFR Code of Federal Regulations
CTCSS continuous tone coded squelch system
DM degrees/minutes/decimal minutes
DOI Department of Interior
DOT Department of Transportation
ELT emergency locator transmitter
EPA Environmental Protection Agency
ERG Emergency Response Guidebook
FAA Federal Aviation Administration
FAR Federal Acquisition Regulations
FAR Federal Aviation Regulations
FTR Federal Travel Regulations
GVW gross vehicle weight
GPM gallons per minute
GPS global positioning system
IAT interagency aviation training
IBC Interior Business Center
ICAO International Civil Aviation Organization
ICS intercom system
IFR instrument flight rules
IP Institute of Petroleum
IPP Invoice Processing Platform
MMSB Manufacturer's Mandatory Service Bulletins
NFPA National Fire Protection Association
NTSB National Transportation Safety Board
NWCG National Wildfire Coordinating Group
OAS Office of Aviation Services
PA public address system
PA pressure altitude
PFD personal flotation device
PIC pilot-in-command
PPE personal protective equipment
PSD plastic sphere dispenser
PSI pounds per square inch
PTT push to talk
RFP Request for Proposals
RPM revolutions per minute
SIC second-in-command
SFI Safety Foundation Incorporated
SMS Safety Management System

STEP Single-skid, Toe-In and Hover Exit/Entry
Procedures
TBO time between overhaul
TERO Tribal Employment Rights Ordinances
TSO Technical Standard Order
UL Underwriter's Laboratory
USDA United States Department of Agriculture
USFS United States Forest Service
VFR visual flight rules
VNE Never Exceed Speed
VOX voice activation
VSWR voltage standing wave ratio

SECTION A – REQUIREMENTS AND PRICING

SCHEDULE OF SUPPLIES/SERVICES

A1 General

This multiple award indefinite delivery/indefinite quantity type contract is for fixed wing on-call services on an as-needed basis for transportation in Alaska for U.S. Department of the Interior and other agency personnel, cargo, or both using aircraft operated and maintained by the Contractor. Services under this contract are limited to those operators who are authorized to conduct flight services in Alaska and maintain an Alaska Base of Operations.

A2 Item Requirement

Item Description

All equipment, facilities, and personnel required under this contract must be delivered to and removed from various location(s) as ordered and needed. Contractor designated base location(s) are identified on the following pricing pages.

<u>Aircraft Requirement:</u>	Single engine and multiengine airplanes, equipped as specified in Section B and specific Supplements.
<u>Seating:</u>	One (1) to fifty (50) insured passenger seats.
<u>Landing Gear:</u>	Wheels, floats, amphibious floats, skis or wheel skis.
<u>Crew Requirements:</u>	Minimum required flight crew for offered airplane. Relief flight crew is not required but may be provided if offered.

Note: Contractor may be required to operate from an alternate location when dispatched by the government.

Aircraft Item Descriptions:

<u>Item #1 Description:</u>	Minimum Guarantee –Initial Office of Aviation Services (OAS) Inspection/Test of Contractor Aircraft and Pilot(s).
<u>Item #2 Description:</u>	
Type Aircraft:	Tandem seat aircraft
Gross Weight:	Aircraft must have minimum certificated gross weight of 2,000 pounds
<u>Item #3 Description:</u>	
Type Aircraft	Single engine piston aircraft
Seating	Four (4) seats or greater
<u>Item #4 Description:</u>	
Type Aircraft	Single engine turbine aircraft
Seating	Four (4) seats or greater
<u>Item #5 Description:</u>	
Type Aircraft	Multi-engine piston aircraft
Seating	Six (6) seats or greater
<u>Item #6 Description:</u>	
Type Aircraft	Multi-engine turbine aircraft
Seating	Six (6) seats or greater
<u>Item #7 Description:</u>	
Type Aircraft	Multi-engine piston aircraft
Seating	Ten (10) seats or greater
<u>Item #8 Description:</u>	
Type Aircraft	Multi-engine turbine aircraft
Seating	Ten (10) seats or greater
<u>Item #9 Description:</u>	
Type Aircraft	Multi-engine jet aircraft
Seating	Ten (10) seats or greater

SECTION A – REQUIREMENTS AND PRICING

A3 Item 0001-0009 Pricing Schedule

Item #1 Description – Initial OAS Inspection/Test of Contractor Aircraft and Pilot(s). When the Government requires supplies or services covered by this contract, a minimum of one Government-provided inspection for each aircraft and pilot as described in Section C2 will be provided. This line item is not separately priced and is the minimum quantity the Government intends to order (also known as the minimum guarantee) under any resulting contract(s) as required by Federal Acquisition Regulation (FAR) 16.504 and FAR 52.216-22.

SECTION A – REQUIREMENTS AND PRICING

Item #2 Description – Tandem Seat Aircraft

OFFEROR 'S NAME		BASE OF OPERATION			
MAKE/MODEL/CONFIGURATION (aircraft identified must be at the same rates)		FAA REGISTRATION NUMBER	INSURED PAX SEATS		GROSS WEIGHT
		N			
		N			
		N			
		N			
	PERIOD	DESCRIPTION	PAY ITEM	UNIT	UNIT PRICE
Base	4/1/26 – 3/31/27	Flight Rate – Reference C30	FD	HOUR	\$
		Standby Rate – Reference C30	SB	HOUR	\$
		Daily Availability – Reference C31	AV	DAY	\$
		Flight Rate – Reference C31	FD1	HOUR	\$
1 st	4/1/27 – 3/31/28	Flight Rate – Reference C30	FD	HOUR	\$
		Standby Rate – Reference C30	SB	HOUR	\$
		Daily Availability – Reference C31	AV	DAY	\$
		Flight Rate – Reference C31	FD1	HOUR	\$
2 nd	4/1/28 – 3/31/29	Flight Rate – Reference C30	FD	HOUR	\$
		Standby Rate – Reference C30	SB	HOUR	\$
		Daily Availability – Reference C31	AV	DAY	\$
		Flight Rate – Reference C31	FD1	HOUR	\$
3 rd	4/1/29 – 3/31/30	Flight Rate – Reference C30	FD	HOUR	\$
		Standby Rate – Reference C30	SB	HOUR	\$
		Daily Availability – Reference C31	AV	DAY	\$
		Flight Rate – Reference C31	FD1	HOUR	\$
4 th	4/1/30 – 3/31/31	Flight Rate – Reference C30	FD	HOUR	\$
		Standby Rate – Reference C30	SB	HOUR	\$
		Daily Availability – Reference C31	AV	DAY	\$
		Flight Rate – Reference C31	FD1	HOUR	\$

***Note: all flight rates are dry – no fuel costs included.**

Contractors shall provide pricing for both C30 and 31, Measurement of Payment. Individual task orders will specify which Measurement of Payment is applicable to the awarded task order.

It is expected that the majority of task orders will include Measurement of Payments as described in C30 for Standby, Guarantee, and Flight Time.

The method of payment for each task order will be determined solely at the Government's discretion.

SECTION A – REQUIREMENTS AND PRICING

Item #3 Description – Single Engine Piston Aircraft – Four (4) seats or greater

OFFEROR 'S NAME		BASE OF OPERATION			
MAKE/MODEL/CONFIGURATION (aircraft identified must be at the same rates)		FAA REGISTRATION NUMBER	INSURED PAX SEATS	GROSS WEIGHT	
		N			
		N			
		N			
		N			
	PERIOD	DESCRIPTION	PAY ITEM	UNIT	UNIT PRICE
Base	4/1/26 – 3/31/27	Flight Rate – Reference C30	FD	HOUR	\$
		Standby Rate – Reference C30	SB	HOUR	\$
		Daily Availability – Reference C31	AV	DAY	\$
		Flight Rate – Reference C31	FD1	HOUR	\$
1 st	4/1/27 – 3/31/28	Flight Rate – Reference C30	FD	HOUR	\$
		Standby Rate – Reference C30	SB	HOUR	\$
		Daily Availability – Reference C31	AV	DAY	\$
		Flight Rate – Reference C31	FD1	HOUR	\$
2 nd	4/1/28 – 3/31/29	Flight Rate – Reference C30	FD	HOUR	\$
		Standby Rate – Reference C30	SB	HOUR	\$
		Daily Availability – Reference C31	AV	DAY	\$
		Flight Rate – Reference C31	FD1	HOUR	\$
3 rd	4/1/29 – 3/31/30	Flight Rate – Reference C30	FD	HOUR	\$
		Standby Rate – Reference C30	SB	HOUR	\$
		Daily Availability – Reference C31	AV	DAY	\$
		Flight Rate – Reference C31	FD1	HOUR	\$
4 th	4/1/30 – 3/31/31	Flight Rate – Reference C30	FD	HOUR	\$
		Standby Rate – Reference C30	SB	HOUR	\$
		Daily Availability – Reference C31	AV	DAY	\$
		Flight Rate – Reference C31	FD1	HOUR	\$

***Note: all flight rates are dry – no fuel costs included.**

Contractors shall provide pricing for both C30 and 31, Measurement of Payment. Individual task orders will specify which Measurement of Payment is applicable to the awarded task order.

It is expected that the majority of task orders will include Measurement of Payments as described in C30 for Standby, Guarantee, and Flight Time.

The method of payment for each task order will be determined solely at the Government's discretion.

SECTION A – REQUIREMENTS AND PRICING

Item #4 Description – Single Engine Turbine Aircraft – Four (4) seats or greater

OFFEROR 'S NAME		BASE OF OPERATION			
MAKE/MODEL/CONFIGURATION (aircraft identified must be at the same rates)		FAA REGISTRATION NUMBER	INSURED PAX SEATS	GROSS WEIGHT	
		N			
		N			
		N			
		N			
	PERIOD	DESCRIPTION	PAY ITEM	UNIT	UNIT PRICE
Base	4/1/26 – 3/31/27	Flight Rate – Reference C30	FD	HOUR	\$
		Standby Rate – Reference C30	SB	HOUR	\$
		Daily Availability – Reference C31	AV	DAY	\$
		Flight Rate – Reference C31	FD1	HOUR	\$
1 st	4/1/27 – 3/31/28	Flight Rate – Reference C30	FD	HOUR	\$
		Standby Rate – Reference C30	SB	HOUR	\$
		Daily Availability – Reference C31	AV	DAY	\$
		Flight Rate – Reference C31	FD1	HOUR	\$
2 nd	4/1/28 – 3/31/29	Flight Rate – Reference C30	FD	HOUR	\$
		Standby Rate – Reference C30	SB	HOUR	\$
		Daily Availability – Reference C31	AV	DAY	\$
		Flight Rate – Reference C31	FD1	HOUR	\$
3 rd	4/1/29 – 3/31/30	Flight Rate – Reference C30	FD	HOUR	\$
		Standby Rate – Reference C30	SB	HOUR	\$
		Daily Availability – Reference C31	AV	DAY	\$
		Flight Rate – Reference C31	FD1	HOUR	\$
4 th	4/1/30 – 3/31/31	Flight Rate – Reference C30	FD	HOUR	\$
		Standby Rate – Reference C30	SB	HOUR	\$
		Daily Availability – Reference C31	AV	DAY	\$
		Flight Rate – Reference C31	FD1	HOUR	\$

***Note: all flight rates are dry – no fuel costs included.**

Contractors shall provide pricing for both C30 and 31, Measurement of Payment. Individual task orders will specify which Measurement of Payment is applicable to the awarded task order.

It is expected that the majority of task orders will include Measurement of Payments as described in C30 for Standby, Guarantee, and Flight Time.

The method of payment for each task order will be determined solely at the Government's discretion.

SECTION A – REQUIREMENTS AND PRICING

Item #5 Description – Multi Engine Piston Aircraft – Six (6) seats or greater

OFFEROR 'S NAME		BASE OF OPERATION			
MAKE/MODEL/CONFIGURATION (aircraft identified must be at the same rates)		FAA REGISTRATION NUMBER	INSURED PAX SEATS	GROSS WEIGHT	
		N			
		N			
		N			
		N			
	PERIOD	DESCRIPTION	PAY ITEM	UNIT	UNIT PRICE
Base	4/1/26 – 3/31/27	Flight Rate – Reference C30	FD	HOUR	\$
		Standby Rate – Reference C30	SB	HOUR	\$
		Daily Availability – Reference C31	AV	DAY	\$
		Flight Rate – Reference C31	FD1	HOUR	\$
1 st	4/1/27 – 3/31/28	Flight Rate – Reference C30	FD	HOUR	\$
		Standby Rate – Reference C30	SB	HOUR	\$
		Daily Availability – Reference C31	AV	DAY	\$
		Flight Rate – Reference C31	FD1	HOUR	\$
2 nd	4/1/28 – 3/31/29	Flight Rate – Reference C30	FD	HOUR	\$
		Standby Rate – Reference C30	SB	HOUR	\$
		Daily Availability – Reference C31	AV	DAY	\$
		Flight Rate – Reference C31	FD1	HOUR	\$
3 rd	4/1/29 – 3/31/30	Flight Rate – Reference C30	FD	HOUR	\$
		Standby Rate – Reference C30	SB	HOUR	\$
		Daily Availability – Reference C31	AV	DAY	\$
		Flight Rate – Reference C31	FD1	HOUR	\$
4 th	4/1/30 – 3/31/31	Flight Rate – Reference C30	FD	HOUR	\$
		Standby Rate – Reference C30	SB	HOUR	\$
		Daily Availability – Reference C31	AV	DAY	\$
		Flight Rate – Reference C31	FD1	HOUR	\$

***Note: all flight rates are dry – no fuel costs included.**

Contractors shall provide pricing for both C30 and 31, Measurement of Payment. Individual task orders will specify which Measurement of Payment is applicable to the awarded task order.

It is expected that the majority of task orders will include Measurement of Payments as described in C30 for Standby, Guarantee, and Flight Time.

The method of payment for each task order will be determined solely at the Government's discretion.

SECTION A – REQUIREMENTS AND PRICING

Item #6 Description – Multi Engine Turbine Aircraft – Six (6) seats or greater

OFFEROR 'S NAME		BASE OF OPERATION			
MAKE/MODEL/CONFIGURATION (aircraft identified must be at the same rates)		FAA REGISTRATION NUMBER	INSURED PAX SEATS	GROSS WEIGHT	
		N			
		N			
		N			
		N			
	PERIOD	DESCRIPTION	PAY ITEM	UNIT	UNIT PRICE
Base	4/1/26 – 3/31/27	Flight Rate – Reference C30	FD	HOUR	\$
		Standby Rate – Reference C30	SB	HOUR	\$
		Daily Availability – Reference C31	AV	DAY	\$
		Flight Rate – Reference C31	FD1	HOUR	\$
1 st	4/1/27 – 3/31/28	Flight Rate – Reference C30	FD	HOUR	\$
		Standby Rate – Reference C30	SB	HOUR	\$
		Daily Availability – Reference C31	AV	DAY	\$
		Flight Rate – Reference C31	FD1	HOUR	\$
2 nd	4/1/28 – 3/31/29	Flight Rate – Reference C30	FD	HOUR	\$
		Standby Rate – Reference C30	SB	HOUR	\$
		Daily Availability – Reference C31	AV	DAY	\$
		Flight Rate – Reference C31	FD1	HOUR	\$
3 rd	4/1/29 – 3/31/30	Flight Rate – Reference C30	FD	HOUR	\$
		Standby Rate – Reference C30	SB	HOUR	\$
		Daily Availability – Reference C31	AV	DAY	\$
		Flight Rate – Reference C31	FD1	HOUR	\$
4 th	4/1/30 – 3/31/31	Flight Rate – Reference C30	FD	HOUR	\$
		Standby Rate – Reference C30	SB	HOUR	\$
		Daily Availability – Reference C31	AV	DAY	\$
		Flight Rate – Reference C31	FD1	HOUR	\$

***Note: all flight rates are dry – no fuel costs included.**

Contractors shall provide pricing for both C30 and 31, Measurement of Payment. Individual task orders will specify which Measurement of Payment is applicable to the awarded task order.

It is expected that the majority of task orders will include Measurement of Payments as described in C30 for Standby, Guarantee, and Flight Time.

The method of payment for each task order will be determined solely at the Government's discretion.

SECTION A – REQUIREMENTS AND PRICING

Item #7 Description – Multi Engine Piston Aircraft – Ten (10) seats or greater

OFFEROR 'S NAME		BASE OF OPERATION			
MAKE/MODEL/CONFIGURATION (aircraft identified must be at the same rates)		FAA REGISTRATION NUMBER	INSURED PAX SEATS	GROSS WEIGHT	
		N			
		N			
		N			
		N			
	PERIOD	DESCRIPTION	PAY ITEM	UNIT	UNIT PRICE
Base	4/1/26 – 3/31/27	Flight Rate – Reference C30	FD	HOUR	\$
		Standby Rate – Reference C30	SB	HOUR	\$
		Daily Availability – Reference C31	AV	DAY	\$
		Flight Rate – Reference C31	FD1	HOUR	\$
1 st	4/1/27 – 3/31/28	Flight Rate – Reference C30	FD	HOUR	\$
		Standby Rate – Reference C30	SB	HOUR	\$
		Daily Availability – Reference C31	AV	DAY	\$
		Flight Rate – Reference C31	FD1	HOUR	\$
2 nd	4/1/28 – 3/31/29	Flight Rate – Reference C30	FD	HOUR	\$
		Standby Rate – Reference C30	SB	HOUR	\$
		Daily Availability – Reference C31	AV	DAY	\$
		Flight Rate – Reference C31	FD1	HOUR	\$
3 rd	4/1/29 – 3/31/30	Flight Rate – Reference C30	FD	HOUR	\$
		Standby Rate – Reference C30	SB	HOUR	\$
		Daily Availability – Reference C31	AV	DAY	\$
		Flight Rate – Reference C31	FD1	HOUR	\$
4 th	4/1/30 – 3/31/31	Flight Rate – Reference C30	FD	HOUR	\$
		Standby Rate – Reference C30	SB	HOUR	\$
		Daily Availability – Reference C31	AV	DAY	\$
		Flight Rate – Reference C31	FD1	HOUR	\$

***Note: all flight rates are dry – no fuel costs included.**

Contractors shall provide pricing for both C30 and 31, Measurement of Payment. Individual task orders will specify which Measurement of Payment is applicable to the awarded task order.

It is expected that the majority of task orders will include Measurement of Payments as described in C30 for Standby, Guarantee, and Flight Time.

The method of payment for each task order will be determined solely at the Government's discretion.

SECTION A – REQUIREMENTS AND PRICING

Item #8 Description – Multi Engine Turbine Aircraft – Ten (10) seats or greater

OFFEROR 'S NAME		BASE OF OPERATION			
MAKE/MODEL/CONFIGURATION (aircraft identified must be at the same rates)		FAA REGISTRATION NUMBER	INSURED PAX SEATS	GROSS WEIGHT	
		N			
		N			
		N			
		N			
	PERIOD	DESCRIPTION	PAY ITEM	UNIT	UNIT PRICE
Base	4/1/26 – 3/31/27	Flight Rate – Reference C30	FD	HOUR	\$
		Standby Rate – Reference C30	SB	HOUR	\$
		Daily Availability – Reference C31	AV	DAY	\$
		Flight Rate – Reference C31	FD1	HOUR	\$
1 st	4/1/27 – 3/31/28	Flight Rate – Reference C30	FD	HOUR	\$
		Standby Rate – Reference C30	SB	HOUR	\$
		Daily Availability – Reference C31	AV	DAY	\$
		Flight Rate – Reference C31	FD1	HOUR	\$
2 nd	4/1/28 – 3/31/29	Flight Rate – Reference C30	FD	HOUR	\$
		Standby Rate – Reference C30	SB	HOUR	\$
		Daily Availability – Reference C31	AV	DAY	\$
		Flight Rate – Reference C31	FD1	HOUR	\$
3 rd	4/1/29 – 3/31/30	Flight Rate – Reference C30	FD	HOUR	\$
		Standby Rate – Reference C30	SB	HOUR	\$
		Daily Availability – Reference C31	AV	DAY	\$
		Flight Rate – Reference C31	FD1	HOUR	\$
4 th	4/1/30 – 3/31/31	Flight Rate – Reference C30	FD	HOUR	\$
		Standby Rate – Reference C30	SB	HOUR	\$
		Daily Availability – Reference C31	AV	DAY	\$
		Flight Rate – Reference C31	FD1	HOUR	\$

***Note: all flight rates are dry – no fuel costs included.**

Contractors shall provide pricing for both C30 and 31, Measurement of Payment. Individual task orders will specify which Measurement of Payment is applicable to the awarded task order.

It is expected that the majority of task orders will include Measurement of Payments as described in C30 for Standby, Guarantee, and Flight Time.

The method of payment for each task order will be determined solely at the Government's discretion.

SECTION A – REQUIREMENTS AND PRICING

Item #9 Description – Multi Engine Jet Aircraft – Ten (10) seats or greater

OFFEROR 'S NAME		BASE OF OPERATION			
MAKE/MODEL/CONFIGURATION (aircraft identified must be at the same rates)		FAA REGISTRATION NUMBER	INSURED PAX SEATS	GROSS WEIGHT	
		N			
		N			
		N			
		N			
	PERIOD	DESCRIPTION	PAY ITEM	UNIT	UNIT PRICE
Base	4/1/26 – 3/31/27	Flight Rate – Reference C30	FD	HOUR	\$
		Standby Rate – Reference C30	SB	HOUR	\$
		Daily Availability – Reference C31	AV	DAY	\$
		Flight Rate – Reference C31	FD1	HOUR	\$
1 st	4/1/27 – 3/31/28	Flight Rate – Reference C30	FD	HOUR	\$
		Standby Rate – Reference C30	SB	HOUR	\$
		Daily Availability – Reference C31	AV	DAY	\$
		Flight Rate – Reference C31	FD1	HOUR	\$
2 nd	4/1/28 – 3/31/29	Flight Rate – Reference C30	FD	HOUR	\$
		Standby Rate – Reference C30	SB	HOUR	\$
		Daily Availability – Reference C31	AV	DAY	\$
		Flight Rate – Reference C31	FD1	HOUR	\$
3 rd	4/1/29 – 3/31/30	Flight Rate – Reference C30	FD	HOUR	\$
		Standby Rate – Reference C30	SB	HOUR	\$
		Daily Availability – Reference C31	AV	DAY	\$
		Flight Rate – Reference C31	FD1	HOUR	\$
4 th	4/1/30 – 3/31/31	Flight Rate – Reference C30	FD	HOUR	\$
		Standby Rate – Reference C30	SB	HOUR	\$
		Daily Availability – Reference C31	AV	DAY	\$
		Flight Rate – Reference C31	FD1	HOUR	\$

***Note: all flight rates are dry – no fuel costs included.**

Contractors shall provide pricing for both C30 and 31, Measurement of Payment. Individual task orders will specify which Measurement of Payment is applicable to the awarded task order.

It is expected that the majority of task orders will include Measurement of Payments as described in C30 for Standby, Guarantee, and Flight Time.

The method of payment for each task order will be determined solely at the Government's discretion.

SECTION A – REQUIREMENTS AND PRICING

A4 Additional Pay Items Schedule

ADDITIONAL PAY ITEMS SCHEDULE (Reimbursed as Time & Materials (T&M)) IAW FAR 52.212-4 Alt 1

SCHEDULE SUB-ITEM	ADDITIONAL PAY ITEMS	PAY ITEM CODE	QUANTITY	UNIT	UNIT PRICE
i	Subsistence Allowance (Per Diem)	PD	INDEFINITE	Daily	Per FTR Schedule- Actual cost for lodging - receipt(s) required; M&IE authorized daily rate
ii	Fuel Charge	FC	INDEFINITE	GALLON	Actual Cost – receipt(s) required
iii	Miscellaneous Contractor Costs (Special Charge)	SC	INDEFINITE	EACH	Actual Cost – receipt(s) required
iv	Co-Pilot (when required)	CP	INDEFINITE	HOURL	Pricing will be negotiated with vendor when required and there is an additional charge.
v	Flight Hour Guarantee (averaged over length of hire)	GTD	INDEFINITE	HOURL	Guarantee is set at three (3) hours in accordance with Section C30.3

Note: See Section C31 regarding Additional Pay Items. Receipts are required for verification of **ALL** claimed items, except for meals and incidentals when they are authorized.

SECTION B – TECHNICAL SPECIFICATIONS

GENERAL REQUIREMENTS

B1 Scope of Contract

B1.1 The intent of this contract is to obtain fully Contractor operated and maintained on-call (OC) airplane flight services in support of fire and resource management activities and other government agency work in Alaska. Missions may include law enforcement activities at various risk levels, as well as point-to-point transportation and special use flights. Examples of special use flights are identified in the supplements (Section B25). Operations involving aircraft in support of Government programs that require deviation from normal operating procedures, special pilot qualifications or techniques, or special aircraft requirements may necessitate additional approval procedures. This contract must NOT be utilized to obtain direct fire suppression aircraft and tactical fire support aircraft. However, this contract may be utilized to obtain logistical and reconnaissance aircraft that support fire. The Government will direct aircraft to support its missions and objectives. During the availability period and any subsequent extension, aircraft furnished shall be subject to the exclusive use and control of the Government.

B1.2 The Government and the Contractor must establish an effective working relationship to successfully complete this contract. The Contractor employees' cooperation, professionalism, and positive attitude toward accomplishment of the mission and aviation safety are an integral element of this relationship.

B1.3 The Government has interagency and cooperative agreements with other Federal and State agencies and private landholders and may dispatch aircraft under this contract for such cooperative use.

B2 Certifications

The Contractor must obtain and keep current all of the following required certificates and must ensure that contract aircraft are operated and maintained in compliance with those certificates at all times:

B2.1 The Contractor must hold a current Federal Aviation Administration (FAA) Air Carrier and/or as appropriate an Operating Certificate. The Contractor's Operations Specifications must authorize operation of the category and class of aircraft and conditions of flight required to complete missions for the Government.

B2.2 Aircraft used on this contract must be operated and maintained under provisions of 14 CFR Part 121 or 14 CFR Part 135. Aircraft operated under 14 CFR Part 135 must be carried on the list required by 14 CFR 135.63 unless otherwise authorized by the Contracting Officer (CO). Fractional- ownership aircraft must be operated under 14 CFR Part 135.

B2.3 The aircraft must have a Standard Airworthiness Certificate issued under 14 CFR 21.183 and if required a restricted airworthiness certificate issued under 14 CFR 21.25 and 21.185 to include the special purpose of forest and wildlife conservation work. Multiple Airworthiness Certifications may be required under 14 CFR 21.187. The installation of any equipment must be Federal Aviation Administration (FAA) approved.

B2.4 The Contractor must also notify OAS and the Contracting Officer of any changes in the Director of Operations, Chief Pilot, and Director of Maintenance positions, plus any additional positions approved under 14 CFR 119.69(b).

B3 Order of Precedence (Specifications)

In the event of inconsistencies within the technical specification, the following order will be used in such resolution: (i) typed provisions of these specifications; (ii) DOI OAS supplements and/or exhibits incorporated by reference; (iii) 14 CFR incorporated by reference; (iv) aircraft manufacturer's specifications; (v) other documents incorporated by reference.

B4 Contracts and Task Orders

B4.1 The Contractor must maintain a complete, current copy of the contract, contract modifications, current task orders (if applicable) and task order modifications (if applicable) in each contract aircraft throughout the performance period.

SECTION B – TECHNICAL SPECIFICATIONS

B4.2 The pilot must have task order information (i.e. task order number, authorized aircraft, performance period, etc.) in their possession prior to any flights under this contract and make this information available to Government representatives on request.

B4.3 Electronic copies of contracts and task orders may be used; however, the Contractor is responsible for ensuring that the documents are uploaded on an appropriate viewing device (e.g., laptop or tablet), which must be charged and made available at the aircraft for reference by Government representatives upon request. Further, the Contractor must agree to hold the Government harmless for any inadvertent or accidental damage to the device.

EQUIPMENT REQUIREMENTS

B5 Condition of Equipment

The Contractor-furnished aircraft and equipment must be operable, free of damage, and in good repair. Aircraft systems and components must be free of leaks except where specified by the manufacturer.

B5.1 Prior to inspection and acceptance, the Contractor must permanently repair or replace all windows and windshields that have been temporarily repaired. All windows and windshields must be maintained at all times and must be clean and free of scratches, cracks, crazing, distortion, repairs, or tinting which hinder visibility.

B5.2 The aircraft interior must be clean and neat with no unrepaired tears, rips, or other damage. The exterior finish, including the paint, must be clean, neat, and in good condition. Any corrosion must be within manufacturer and/or FAA acceptable limits.

B5.3 See Exhibit 1 Unacceptable Lap Belt and Shoulder Harness Conditions for examples of lap belt and shoulder harness conditions that are not acceptable.

B6 Aircraft Equipment Requirements

The Contractor must provide at least one fully compliant airplane that is equipped as shown below.

B6.1 Free air temperature gauge.

B6.2 Fire extinguisher(s), as required by 14 CFR Part 135, for the purposes of this contract, must be a handheld bottle, minimum 2-B:C rating, mounted and accessible to the flight crew while seated. The fire extinguisher must be maintained in accordance with National Fire Protection Association (NFPA) Manual 10, Standards for Portable Fire Extinguishers or the Contractor's 135 operations manual.

B6.3 One set of individual lap belts for each installed seat.

B6.4 Shoulder harness and lap belt for front seat occupants. The shoulder strap and lap belt must fasten with a metal-to-metal, quick-release mechanism. Both the lap belt and shoulder strap(s) must release simultaneously with one release mechanism. Single strap shoulder harnesses must cross diagonally from one side of the body to the other. Heavy-duty (military-style) harnesses with fabric loop connecting the shoulder harness to the male portion of the lap belt buckle are acceptable.

Note: Four-point systems with shoulder harnesses permanently attached to the lapbelt are prohibited when performing water takeoffs and landings.

B6.5 Tandem seat airplanes must have an approved 4-point harness installed for all occupants.

B6.6 A strobe light or flashing LED, with either a white, red, or half-white and half-red lens mounted on top of the aircraft, or otherwise visible from above, IE wing tip and tail strobes.

SECTION B – TECHNICAL SPECIFICATIONS

B6.7 Approved High Visibility, pulsating, forward facing conspicuity lighting (pulse lights) if approved for make and model of aircraft offered. Wing recognition lights meet this requirement.

B7 Avionics Requirements

B7.1 General.

B7.1.1 The Contractor must provide, install, and maintain the following systems in accordance with the manufacturer's specifications and the installation and maintenance standards of Section B7. Detailed avionics systems performance requirements are listed in *Avionics Operational Test Standards* ([FS/OAS_A24.pdf](#)) or at <https://www.nifc.gov/resources/NIICD/niicd-documents>

B7.2 Avionics installation and maintenance standards.

B7.2.1 Strict adherence to the recommendations in the following FAA Advisory Circulars is required: AC 43.13-1B Chapter 11, "Aircraft Electrical Systems," and Chapter 12, "Aircraft Avionics Systems"; AC 43.13-2B Chapter 1, "Structural Data," Chapter 2, "Communication, Navigation, and Emergency Locator Transmitter Installations," and Chapter 3, "Antenna Installation."

B7.2.2 All avionics systems requiring an antenna must be installed with a properly matched, aircraft-certified antenna, unless otherwise specified. Antennas must be polarized as required by the avionics system and must have a voltage standing wave ratio (VSWR) of 3.00 to 1 or better.

B7.2.3 Reserved

B7.2.4 Avionics equipment mounting location and installation must not interfere with passenger safety, space, and comfort. Avionics equipment must not be mounted under seats designed for deformation during energy attenuation. In all instances, the designated areas for collapse must be protected. Avionics equipment normally operated by both pilot and observer/copilot (FM-1, AUX-FM, audio control system, etc.) must be mounted in the optimum location for the make, model, and series of aircraft offered. Mounting(s) which offers full and unrestricted movement of each control to both the pilot and observer/copilot, when seated, without interference from clothing, cockpit structure, or flight controls, must be a goal in the selection of location.

B7.2.5 Transmitters shall not open squelch on, or interfere with, other AM or FM transceivers in the aircraft which are monitoring different frequencies. So-called "Transmit Interlock" functions must not be used with communication transceivers.

B7.3 Communications systems.

B7.3.1 One automatic- fixed Emergency Locator Transmitter (ELT), certified under TSO-C126 (or newer) which must be installed in a conspicuous or marked location, and meet the same requirements as those detailed for aircraft in 14 CFR 91.207. ELT mounts must use rigid attachments and meet the deflection requirements of RTCA/DO-204. If not powered by its own, integral battery, the ELT remote switch/light must be powered by unswitched aircraft power. ELT antennas must be mounted externally to the aircraft unless installed in a location approved by the aircraft manufacturer. TSO-C126 and newer ELTs require documentation of current registration with the National Oceanic and Atmospheric Administration (NOAA), or the national civil aviation authority with which the aircraft is registered.

B7.3.2 One panel-mounted VHF-AM aeronautical transceiver (VHF-1), with a minimum 720 channels covering 118.000 to 135.975 MHz. The transceiver must have channels selectable in no greater than 25 kHz increments and a minimum of 5 watts carrier output power. The transceiver's operational controls must be mounted so they are readily visible and accessible to the pilot.

B7.4 Automated Flight Following (AFF) Program

SECTION B – TECHNICAL SPECIFICATIONS

B7.4.1 One satellite-based aircraft tracking hardware for each aircraft offered, with the exception of aircraft flying 14 CFR Part 121 scheduled service. The aircraft tracking hardware must be compatible with the government's AFF Program (<https://www.aff.gov>). Not all available satellite-based tracking systems are compatible with the Government's AFF Program, nor meets AFF's requirements. The Contractor must ensure that the aircraft hardware offered is compatible with AFF.gov. For questions about current compatibility requirements, select the "HELP" button at <https://www.aff.gov>.

B7.4.1.1 For questions about current compatibility requirements, contact the AFF Help Desk at <https://www.aff.gov/help.aspx> or 866-224-7677.

B7.4.2 The AFF aircraft hardware must be powered by the aircraft's electrical system, installed per the manufacturer's installation manual, and operational in all phases of flight. AFF aircraft hardware must utilize as a minimum: Satellite communications, an externally or internally mounted antenna, provide data to the Government's AFF viewing software, use aircraft power via a dedicated circuit breaker for power protection, and be mounted so as to not endanger any occupant from AFF aircraft hardware during periods of turbulence. Antennas should be placed where they have the best view of the overhead sky as possible. Externally mounted antennas are recommended to improve system performance. Any visual indicators for remotely installed units must be mounted so that they can be easily viewed by the pilot.

B7.4.3 Portable ISAT systems may be used, if compatible with <https://www.aff.gov>. However, the system must be powered by the aircraft's electrical system, operational in all phases of flight, be mounted so as to not endanger any occupant during periods of turbulence and have an antenna placement which ensures consistent GPS/Satellite reception and communication with the Iridium constellation. Any manufacturer-required pilot display(s) or control(s) must be visible and selectable by the pilot(s). Remote equipment having visual indicators must be mounted in such a manner that it is visible from the PIC position.

B7.4.4 AFF communications must be fully operational in all areas of operation, at all times. Contractors working in or accepting dispatches to the State of Alaska, Southern Canada, or Western Canada must have an AFF system capable of being tracked in these locations at all times. Not all manufacturers' AFF equipment communication links will operate effectively in all geographic areas.

B7.4.5 The Contractor must maintain a subscription service through the AFF aircraft hardware provider allowing AFF position reporting for satellite tracking via the Government AFF viewing software. The position-reporting interval must be every two minutes while the aircraft is in flight. The Contractor must register their AFF aircraft hardware with the Government through <https://www.aff.gov> providing: complete tail number; manufacturer and serial number of the AFF transceiver; aircraft make and model; and Contractor contact information. If the Contractor relocates previously registered AFF aircraft hardware into another aircraft, then the Contractor must contact the government's AFF Program making the appropriate changes prior to aircraft use. In all cases, the Contractor must ensure that the correct aircraft information is indicated within AFF. The Contractor must contact the Government of system changes, scheduled maintenance, and planned service outages.

B7.4.6 Registration contact information, a web accessible feedback form, and additional information is available at: <https://www.aff.gov>.

B7.4.7 Prior to the aircraft's annual contract inspection, the Contractor must ensure compliance with all AFF systems requirements. The Contractor must additionally perform an operational check of the system. As a minimum, the operational check must consist of confirming the aircraft being tested is displayed in AFF (indicating it is currently transmitting data to AFF) and that all information displayed in AFF is current. A username and password are required to access AFF. Log on to the AFF website at <https://www.aff.gov> to request a username and password.

B7.4.8 If AFF becomes inoperable/unreliable, the aircraft may, at the discretion of the Government, remain available for service utilizing radio/voice system for flight following in accordance with Bureau flight following protocols. The Contractor will return the AFF system to full operational capability within 72 hours after the inoperative/unreliable unit is first discovered as defective.

SECTION B – TECHNICAL SPECIFICATIONS

B7.4.9 AFF Systems must comply with supplemental requirements contained in Specification Section Supplement document available at: https://www.aff.gov/support/Specification_Section_Supplement.pdf.

B7.5 Navigation Systems – VFR GPS Systems

B7.5.1 At least one of the following VFR navigations systems must be installed:

B7.5.1.1 One permanently installed, panel-mounted GPS system utilizing an approved, fixed external aircraft antenna.

B7.5.1.2 One portable Aviation GPS unit (Garmin GPS 660 or 760 etc..) utilizing aviation-based software providing overhead orientation.

B7.5.1.3 One tablet or mobile device, minimum size of 3.0 inches wide x 1.5 inches high, utilizing aviation application software (Foreflight, Garmin Pilot, etc..) that incorporates overhead orientation and georeferencing of aircraft position on the map. The display must show aircraft position in relation to airspace boundaries, including military, controlled, and restricted areas. Application software must allow for disabling of internal GPS sourcing and allow for sourcing of external remote GPS antenna signal. Application software subscription must be current.

B7.5.2 All GPS systems must allow for continuous application of aircraft electrical power through circuit protected source.

B7.5.3 Reserved.

B7.5.4 All GPS Systems must ensure secure mounting and shall be able to provide the PIC a clear view of aircraft panel and the unit display and unrestricted access to aircraft and unit controls.

B7.5.5 Portable Aviation GPS units, GPS tablets, or mobile GPS device systems will not be used for aircraft primary navigation in aircraft conducting IFR operations.

B7.5.6 All GPS Systems must be able to display, in real time, the GPS tracks of all flights. This data must be transferable to the Government upon request by the Government. All transferred data must include the date of each flight.

B7.5.7 Reserved.

B7.5.8 FOR IFR OPERATIONS The aircraft must be equipped with the navigational equipment required for IFR operations as specified in 14 CFR 135.165, including, but not limited to, the following:

B7.5.8.1. Two VHF, VOR/LOC aeronautical navigation receivers with indicators (NAV-1, NAV-2), each with a minimum of 100 navigation receive channels.

B7.5.8.2 One glideslope (GS) system, with a minimum of 40 receive channels.

B7.5.8.3 One marker beacon receiver system with three-light indicator must be installed. The audio warning must be provided to the flight crew's earphones. The marker beacon receiver system is not required, if the aircraft is equipped with approved substitute equipment as described 14 CFR 91.175 (k).

Note: 14 CFR 91.175 (k) Approved substitute equipment is described as compass locator; precision approach radar (PAR) or airport surveillance radar (ASR); DME, VOR, or nondirectional beacon fixes authorized in the standard instrument approach procedure; or a suitable RNAV system in conjunction with a fix identified in the standard instrument approach procedure.

B7.5.8.4 Reserved.

SECTION B – TECHNICAL SPECIFICATIONS

B7.5.8.5 One Distance Measuring Equipment (DME) system, with a minimum of 200 channels

B7.5.8.6 One Horizontal Situation Indicator (HSI) or equivalent digital instrument system., which is fully integrated to the autopilot, equipped with a Course Deviation Indicator (CDI) which provides selection of NAV-1/ADF/GPS on single needle, and NAV-2/ADF/GPS on double needle.

B7.5.8.7. Reserved.

B7.5.8.8 Three-axis auto-pilot system, integrated with the HSI One Horizontal Situation Indicator (HSI) or equivalent digital instrument system as required by B7.5.8.6

B7.6 Audio Systems

B7.6.1 An intercommunications system (ICS) must be provided for the pilot, observer/copilot, and any additional required crewmember positions. ICS operation may be via either voice-activation (VOX) or push-to-talk (PTT). If PTT, the pilot's PTT switch(es) must be mounted on the airplane control yoke, with cord-mounted PTT switches at any other required positions. ICS audio must mix with, but not mute, selected receiver audio. An ICS audio level control must be provided. ICS sidetone audio must be provided for the earphones corresponding with the microphone in use. The ICS audio output must be free of excessive distortion, hum, noise, and crosstalk and must be amplified sufficiently to facilitate ease of use in a noisy cockpit/cabin environment.

B7.6.1.1 The system must be designed for operation with 600- ohm earphones and carbon-equivalent, noise-canceling boom-type microphones (Gentex electret type model 5060-2, military dynamic type M-87/AIC with type CE-100 TR preamplifier (or equivalent)).

B7.6.1.2 Earphone/microphone jacks: JJ-033 and JJ-034 jacks must be furnished at each required station.

B7.7 Other Avionics.

B7.7.1 (If Installed) Air Traffic Control (ATC) transponder and altitude reporting system meeting the requirements of 14 CFR Part 91.215 (a) and (b) and inspected and tested every 24 months in accordance with 14 CFR 91.413.

B7.7.2 The Government may request installation of Government-furnished equipment (GFE).

B7.8 Automatic Dependent Surveillance – Broadcast (ADS-B)

B7.8.1 Automatic Dependent Surveillance – Broadcast (ADS-B). When required per 14 CFR 91.225, all aircraft furnished must be equipped with ADS-B meeting the requirements of TSO-C166b or TSO-C154C and 14 CFR 91.227.

B7.8.2.1 Other avionics may be required for special use missions. (See Supplement B25.2 Reconnaissance and B25.6 Extended Over-Water Operations)

PERSONNEL REQUIREMENTS

B8 Pilot Requirements

B8.1 The Contractor must furnish a flight crew for each day the aircraft is required to be available.

B8.1.1 A flight crew is the minimum personnel required to operate the offered aircraft IAW the aircraft's Type Certificate Data Sheet (TCDS) and company operations manual.

B8.2 The pilot-in-command must be familiar with this contract and all applicable task orders issued under this contract.

SECTION B – TECHNICAL SPECIFICATIONS

B8.3 The PIC must be able to provide contract and/or task order information to the OAS Technical Inspector, OAS inspector, COR, project inspector (PI), or Government manager as requested.

B9 Pilot Qualifications

B9.1 General.

B9.1.1 Pilot flight hours will be verified from an employer certified pilot log or company flight records. Further verification of flight hours may be required at the OAS Technical Inspector's discretion.

B9.1.2 Prior to pilot carding, the Contractor must submit a current OAS-64A or FS 5700-20, Airplane Pilot Qualifications and Approval (with supplements if requested) for each pilot offered for approval. FAA Pilot and medical certificates must be submitted to OAS for initial carding. Medical certificates must remain current in order for pilots to exercise privileges authorized on the OAS-30A. New medical certificates must be forwarded to OAS. The OAS-64A form can be found on the OAS website at <https://www.doi.gov/aviation/library/forms>.

B9.1.3 For a pilot that has not been previously inspected and approved by the DOI OAS or USDA, Forest Service, the Contractor must provide the OAS-64A that verifies the pilot's flight time qualifications and experience. The OAS Technical Inspector, or designated representative, will provide the Contractor a form to document this verification. This form must be completed prior to pilot inspection by DOI OAS.

B9.1.4 This contract may require that pilots meet specific special use eligibility and requirements. Pilots who have not been previously carded for specific special use missions must receive a flight evaluation in accordance with Section C of this contract. The flight evaluation will be in an aircraft supplied by the Contractor at no expense to the Government. The satisfactory completion of the evaluation flight will not substitute for any of the total flight hour requirements listed in this contract.

B9.1.5 Pilots must be proficient in operating all equipment identified in Section B (GPS, FM radios, etc.). Pilots may be required to demonstrate proficiency during the agency evaluation flight. An abbreviated programming guide may be utilized.

B9.2 Minimum Qualifications, see the Supplements in B25 for additional requirements

The Contractor must provide a pilot(s) who meets the following minimum qualifications and who possesses the required certificates and evidence of having satisfactorily passed the evaluations for the required tasks at time of inspection:

B9.2.1 An FAA Commercial Pilot with instrument rating or Airline Transport Pilot (ATP) certificate with airplane category with appropriate class and type rating if required.

B9.2.2 A minimum of a current second-class medical certificate issued under provisions of 14 CFR Part 67.

B9.2.3 Evidence of satisfactorily passing all required FAA flight checks in accordance with provisions of 14 CFR Part 135 or Part 121 (e.g. FAA Form 8410-3) to be submitted to OAS Inspector. All pilots must meet the currency requirements of 14 CFR 61.57.

SECTION B – TECHNICAL SPECIFICATIONS

B9.3 The PIC must meet flight time requirements of 14 CFR 135 and the following:

For All Aircraft:		
a)	1,500 hours	Total pilot time.
b)	1,200 hours	PIC airplanes.
c)	100 hours*	PIC in category, preceding 12 months.
d)	200 hours	PIC multiengine, when applicable.
e)	25 hours	PIC seaplanes, when applicable.
	25 hours	PIC aircraft in conventional gear configuration, as applicable.
f)	10 hours	PIC make and model for VFR operations.
	25 hours	PIC make and model for IFR operations.
g)	75 hours	Instrument (50 hours in flight) for multi engine IFR operations.
For Turbine, Multi Engine, and Large Airplane:		
h)	250 hours	PIC large airplane when applicable. (12,500 pounds certificated gross takeoff weight or more).
i)	100 hours	PIC turbo prop or jet airplane, as applicable.
j)	50 hours	PIC in make and model of turbo prop or jet airplane to be used on this agreement for passenger transport. (25 hours if the pilot has attended a formal training course for the make and model).
k)	200 hours	PIC multi engine when applicable. .
For Special Use:		
l)	200 hours	PIC low level in category for low level operations. (see OPM-29)
m)	200 hours	PIC mountainous terrain or 100 hours after successfully graduating from a recognized mountain flying school. See Exhibit 2 for recognized schools. Mountainous terrain experience is defined as experience in operating airplanes in mountainous terrain as identified in 14 CFR 95 Subpart B, Designated Mountainous Area. Operating includes maneuvering near terrain, crossing ridgelines, and evaluating conditions such as wind, temperature, and density altitude.

***Note:** RE: B9.3(c) 100 hours in previous 12 months requirement. The Contractor may request that this pilot flight hour requirement be waived for a pilot under special circumstances; however, the waiver may or may not be granted. The Contractor should contact the Contracting Officer in advance of this need for additional information on this process. No other pilot qualification exceptions will be considered by the Government

B9.3(j) Vendor in house FAA approved 14 CFR Part 135 training courses do not qualify for the 50% reduction.

Reference [OPM-23](#) for DOI Approved Like Make and Model Aircraft.

Reference [OPM-29](#) for additional special use mission pilot requirements.

B9.4 SIC minimum qualifications, if required by the aircraft type offered.

SECTION B – TECHNICAL SPECIFICATIONS

B9.4.1 The SIC must have at least an FAA commercial pilot certificate with an instrument rating.

B9.4.2 The SIC must have at least a second-class medical certificate issued under provisions of 14 CFR 67.

B9.4.3 The SIC must provide evidence of satisfactorily completing an FAA competency check (14 CFR 135.293 or 14 CFR 121 equivalent) for the make and model offered in this contract. This flight check must be kept valid throughout the contract period.

B10 Flight Crewmembers Duty and Flight Limitations

Assigned duty of any kind must not exceed 14 hours in any 24-hour period. “Duty” includes flight time, ground duty of any kind, and standby Local travel up to a maximum of 30 minutes each way between the worksite and place of lodging will not be considered duty time. Flight crewmembers will be subject to the following duty hour limitations:

B10.1 A maximum of 14 consecutive duty hours during any assigned duty period.

B10.1.1 All flight crewmembers must have two 24-hour periods of rest (off duty) within any 14 consecutive calendar days.

B10.1.2 The pilot(s) must be given a minimum of 10 consecutive hours of rest (off duty) prior to any assigned duty period.

B10.1.3 Regardless of the above limits, pilots are expected to notify the government if they become fatigued prior to reaching the duty day limit.

B10.2 Flight Limitations.

B10.2.1 Each crewmember must report all flight time, regardless of how or where performed, except personal pleasure flying. Crewmembers and relief crewmembers reporting for duty may be required to furnish a record of all duty and/or flight time during the previous 14 days. This record will be used to administer flight and duty time limitations.

B10.2.2 Flight time to and from a duty station as a flight crewmember (commuting) must be reported and counted toward limitations if it is flown on a duty day. Flight time includes but is not limited to military flight time, charter, flight instruction, 14 CFR, Part 61.56 flight review, flight examinations by FAA designees, any flight time for which a flight crewmember is compensated, or any other flight time of a commercial nature whether compensated or not.

B10.2.3 Flight crewmembers will be limited to the following flight hour limitations, which must fall within their duty hour limitations:

B10.2.3.1 A maximum of 8 hours flight time (10 hours flight time for a crew of two when flying point-to-point missions) during any assigned duty period.

B10.2.3.2 A maximum of 42 hours flight time (50 hours flight time for a crew of two when flying point-to-point missions) during any consecutive 6-day period. When a pilot acquires 36 or more flight hours (40 or more flight hours for a crew of two when flying point-to-point missions) in a consecutive 6- day period, the pilot(s) will be given the following 24-hour period off duty for rest, after which a new 6-day cycle will begin.

B11 Personnel Duty Limitations

B11.1 The Contractor must monitor and remove from duty any personnel for fatigue or other causes before they reach their daily duty or flight limitations.

B11.2 Federal agencies may issue a notice reducing the length of personnel duty days and/or increasing days off either on a geographic or agency-wide basis.

SECTION B – TECHNICAL SPECIFICATIONS

OPERATIONS

B12 Contractor's Reporting and Release Base

B12.1 The Contractor's base of operations must be as stipulated in Section A3. The Government and the Contractor may agree to a different report/release base(s) at the time an order is placed.

B12.2 If operating away from the Contractor's base of operations, additional allowances specified in Section C may apply.

B13 Pilot Authority and Responsibilities

The Contractor must ensure that the PIC is responsible for: operating the aircraft within its operating limits, the safety of the aircraft, its occupants, and the cargo.

The contract pilot:

B13.1 Must comply with Government directions, except, when in the pilot's judgment, such compliance would violate Federal or State regulations, contract terms and conditions. The pilot has the final authority to determine whether the flight can be accomplished safely and must refuse any flight or landing which is considered hazardous or unsafe.

B13.2 Must not permit any passenger to ride in the aircraft or any cargo to be loaded therein unless authorized by the Government.

B13.3 Must be responsible for computing the aircraft's weight and balance for all flights and for ensuring that the gross weight and center of gravity do not exceed the aircraft's limitations. The pilot must also properly secure all cargo.

B13.3.1 (For Multi-Engine Aircraft) Must perform takeoff performance calculations which include:

- Take off distance required vs. runway available.
- Climb performance to include single engine if operating a multi-engine aircraft.

Under no circumstances will a takeoff or landing be attempted if existing environmental conditions at takeoff or landing cannot be accurately addressed in the Aircraft Flight Manual (AFM) or Pilot's Operating Handbook (POH).

B13.4 May not perform preventative maintenance in accordance with 14 CFR 43.3(h) unless authorized by the Contractor's FAA-issued operations specifications.

B13.5 May function as a mechanic when the aircraft is not available due to unscheduled maintenance provided the pilot holds an A&P certificate and meets all of the mechanic qualifications required by the Contractor's operations specifications.

B13.6 Must not perform scheduled maintenance and inspections when on duty as the primary or relief pilot.

B13.7 Maintenance performed will apply against the pilot's duty day limitations any time during which the pilot is engaged in mechanic duties performing unscheduled maintenance, or as an authorized pilot performing preventative maintenance. All time in excess of 2 hours (not necessarily consecutive) will be applied against the pilot's flight hour limitations. After 2 hours, every hour spent as a mechanic, or as an authorized pilot performing preventative maintenance, will be applied against pilot flight time limitation on a one to one basis.

SECTION B – TECHNICAL SPECIFICATIONS

B14 Flight Operations

B14.1 Regardless of any status as a public aircraft operation, the Contractor must operate in accordance with their approved FAA operations specifications and all portions of 14 CFR 91 (including those portions applicable to civil aircraft) and each certification required under Section B2, unless otherwise authorized by the CO. The Contractor must ensure that all personnel operate in compliance with the following requirements:

B14.2 Manifesting. The PIC must ensure that a manifest of all crewmembers and passengers on board has been completed and that a copy of this manifest remains at the appropriate dispatch office. Manifest changes must be made with that office.

B14.3 Passenger briefings. Before each takeoff, the PIC shall ensure that all passengers have been briefed in accordance with the briefing items contained in 14 CFR 135. Additionally, the briefing must describe the location/use of the following:

1. Aircraft hazards
2. Emergency locator transmitter (ELT) and location of remote activator
3. First aid/Survival kit
4. Personal protective equipment
5. Gear and cargo security
6. Water ditching procedures (when applicable)
7. Location and operation of emergency exits.
8. No smoking on aircraft.

B14.4 Day/night use. Daylight hours are defined as during extended twilight hours when terrain features can be readily distinguished for a distance of at least one mile.

B14.4.1 Day/night and IFR aircraft use. Single-engine airplanes with reciprocating engines must not be operated into known instrument meteorological conditions (IMC) or night conditions as defined in 14 CFR with Government personnel on board.

B14.5 Flight plans. Pilots must file and operate on an FAA, ICAO, or a DOI bureau-approved flight plan. Contractor flight plans are not acceptable. Flight plans must be filed prior to takeoff when possible.

B14.6 Flight following. Pilots are responsible for flight following with the FAA, ICAO, and/or in accordance with the DOI bureau-approved flight following procedures. Check-in must not exceed one-hour intervals under normal circumstances.

B14.7 Smoking (including electronic cigarettes and personal vaporizers) will not be allowed in the aircraft.

B14.8 During ground operations a pilot must remain at the flight controls anytime a propulsion engine is running.

B15 Security of Aircraft and Equipment

B15.1 The Contractor will be responsible at all times for the security of their contract aircraft, vehicles, and associated equipment.

B15.2 Any aircraft used under this contract must be physically secured and disabled via a dual-lock method whenever the aircraft is unattended. Any combination of two different anti-theft devices designed to lock aircraft flight control surfaces when not in use, or designed to secure an aircraft to the ground, is acceptable, provided they are appropriate for the aircraft. Operational environments and personnel safety must be considered when selecting the locking devices and methods to be used.

SECTION B – TECHNICAL SPECIFICATIONS

B15.2.1 Removal and/or disabling of locking devices and methods must be incorporated into preflight checklists to prevent accidental damage to the aircraft. The devices must be installed in a manner that precludes their inadvertent interference with in-flight operations.

B15.2.2 Using other means of securing or disabling an aircraft is acceptable, provided it achieves a level of security equal to or greater than the following example locking devices and methods:

- Keyed ignition switch
- Keyed starter switch
- Keyed master power switch
- Hidden battery cutoff switches
- Hidden start relay switches
- Throttle/power lever lock
- Mixture/fuel lever lock
- Locking fuel cutoff
- Locking tie-down cable
- Locking control surface “gust-lock”
- Propeller lock
- Propeller chain lock
- Propeller cable lock
- Locking wheel lock or chock
- Locking “club”-type devices for control yoke

The following locking devices and security methods do not satisfy the physical security requirements:

- Locking aircraft doors
- Fenced or gated parking area

B16 Personal Protective Equipment (PPE) for Flight Operations

B16.1 The Contractor must provide vendor personnel PPE and require it be worn, in accordance with the Interagency Aviation Life Support Equipment (ALSE) Guide/Handbook, Chapter 2 Personal Protective Equipment.

B16.2 The DOI/USFS ALSE Guide/Handbook can be located at: <https://www.doi.gov/aviation/library/guides> and the Aviation Helmet Standard, along with the list of approved helmets and associated certificates of compliance, are available on the OAS website at: <https://www.doi.gov/aviation/safety/helmet>.

B17 Transportation of Hazardous Materials

B17.1 Regardless of any FAA Air Carrier Operations Manual declaration of Will or Will Not Carry, the Contractor may be required to transport hazardous materials. Such transportation must be in accordance with 49 CFR, Department of Transportation Special Permit DOT-SP-9198, and the NWCG Standards for Aviation Transport of Hazardous Materials, PMS 513.

B17.2 A copy of the current DOT Special Permit, DOI Grantee Status Letter, NWCG Standards, and *DOT Emergency Response Guidebook* must be carried aboard each aircraft transporting hazardous materials. All documents are available online at <https://www.doi.gov/aviation/library/guides>.

SECTION B – TECHNICAL SPECIFICATIONS

B17.3 The Contractor must ensure that each employee who may perform a function subject to this DOT Special Permit has completed the Interagency Aviation Training Module A- 110, Aviation Transportation of Hazardous Materials, within the previous 3 years. The training can be completed online at <http://www.iat.gov>. The Contractor must document this training in the employee's records and make it available to the Government when requested.

B18 Fuel and Servicing Requirements

B18.1 General.

B18.1.1 The Contractor may be required to supply all fuel and lubricating oils required to operate all equipment and dispensing equipment during the contract period. In some instances, the Contractor may have to utilize government provided fuel and dispensing equipment. In either case, the contractor must verify fuel used meets satisfactory appearance related to color and contamination. A visual analysis of fuel dispensed at the servicing nozzle shall be accomplished prior to initial use daily from either Contractor or government systems.

B18.1.2 All fuel used must be commercial (or military) grade aviation fuel approved for use by the specific airframe and engine manufacturer. Only fuels meeting American Society for Testing and Material (ASTM) or Military Detail (DTL) specifications are authorized for use. Contractors should specify the applicable specification when ordering aviation fuel. The specifications for JET and Aviation fuel are listed below.

JET Fuel	ASTM D-1655 (Jet A, A-1, or B), Mil DTL-83133 (JP-8)
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Aviation Fuel	ASTM-D-910 (grade 100 or 100LL).
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B18.1.3 Contractors must ensure that fuel obtained from distributors or fixed-base operators (FBO) meets the specifications listed in B18.1.2 and is the proper type, grade, and quantity. The Contractor must retain fuel delivery records throughout the contract period.

B18.2 Operations.

B18.2.1 Government personnel will not be involved with refueling of contract aircraft unless the pilot has determined that it is an absolute necessity due to an emergency situation. Such emergencies must be documented by the pilot using the Aviation Safety Communique (SAFECOM) system.

B18.2.2. Government personnel are not allowed in the safety zone during aircraft fueling operations. The safety zone is defined as within 50 feet of aircraft refueling receptacle/port.

B18.2.3 Smoking (to include electronic cigarettes/personal vaporizers) is prohibited within 50 feet of the aircraft and fuel servicing vehicles/facilities.

B18.2.4 Cell phone use is prohibited within 50 feet of the aircraft and fuel servicing vehicle/facility during fueling operations.

B18.2.5 Aircraft must not be refueled while engines are running or propellers are turning.

B18.2.6 The Contractor must comply with 40 CFR Part 112: Oil Pollution Prevention, Spill Prevention, Control, and Countermeasure Plan Requirements (SPCC) if applicable.

B18.3 Records/Documentation.

B18.3.1 The Contractor must perform fuel quality checks and equipment inspections daily when fuel systems are used. The checks, along with results, must be documented. Contractors must notify government personnel when deficiencies are noted on government owned fuel systems.

SECTION B – TECHNICAL SPECIFICATIONS

AIRCRAFT MAINTENANCE REQUIREMENTS

B19 General – Maintenance

B19.1 The Contractor must ensure that the aircraft and all required equipment are operated and maintained in accordance with the original equipment manufacturers (OEM) or approved STC holder's current instructions including airframe, engine, appliances, emergency equipment, and all instructions for continued airworthiness (ICA's).

B19.1.1 Before the start date of the contract, the Contractor must ensure that all maintenance deficiencies have been corrected or deferred in accordance with 14 CFR 91.213 or the operator's FAA approved maintenance program. Deferred discrepancies will be evaluated, and the aircraft approved for contract use on a case-by-case basis.

B19.1.2 The Contractor must correct deficiencies that occur during contract performance in accordance with the appropriate Federal Aviation Regulations or the FAA approved maintenance program.

B19.1.3 The Contractor must immediately notify the OAS Technical Inspector of any change to any engine, flight control, or major airframe component or of any major repair following an incident or accident and must describe the circumstances involved.

B19.2 Weight and Balance: The aircraft weight and balance report must include a (1) weight and balance record, (2) equipment list, and (3) any revisions records due to changes in the equipment list. A copy of the current weight and balance report must be kept with the aircraft.

B19.2.1 The aircraft's required weight and balance record must be determined by actual weighing of the aircraft, in contract configuration. The weight and balance record must be current, based on the weighing schedule below. Scale readings must be recorded on the weight and balance record. Signature of a rated mechanic verifying accuracy of the record is required.

Weighing Schedule	
<i>Aircraft</i>	<i>Calendar Months</i>
Single engine airplanes	60
Multiengine airplanes	36

Note: With the exception of tandem seat aircraft, all point-to-point aircraft are excluded from this schedule and must follow their approved 135 operations specifications.

B19.2.2 The aircraft must be weighed following any major repair or major alteration or change to the equipment list that significantly affects the center of gravity of the aircraft.

B19.2.3 All aircraft must be weighed on scales that have been certified as accurate within the preceding 12 calendar months. Any accredited weights and measures laboratory may serve as the certifying agency. The weight and balance record must include the make, model, and calibration date of the scales used to weigh the aircraft.

B19.2.4 Equipment List: The Contractor must compile a complete list of equipment installed in the aircraft at the time of weighing. Each page of the equipment list must identify the specific aircraft by its serial and registration numbers and must be dated to indicate the last date of weighing. Signature of a rated mechanic verifying accuracy of the record is required. Weight and Balance Handbook (FAA-H-8083-1B) may be used as a guide. Weight and balance procedures under 14 CFR Parts 23.29 and 23.1589 are acceptable.

B19.2.5 Items that may be easily removed or installed for aircraft configuration changes (seats, doors, radios, special mission equipment, etc.) must also be listed including the name, weight and arm of each item.

SECTION B – TECHNICAL SPECIFICATIONS

B19.2.6 All required equipment listed in section B6, B7, and any applicable supplements of B25 must be listed on the equipment list.

B19.2.7 The weight and balance report must be revised, using a weight and balance revision record, each time equipment is installed, or equipment is removed. Weight and Balance Handbook (FAA-H-8083-1B) may be used as a guide.

B20 Airworthiness Directives (ADs) and Manufacturer's Mandatory Service Bulletins (MMSBs)

B20.1 The Contractor must comply with MMSBs and FAA ADs before and during contract performance.

B20.2 The Contractor must provide, at the time of agency inspection, a list of issued FAA AD's and MMSB's identifying all those that are applicable and not applicable to the contract aircraft. The list must be in a format similar to the one shown in AC 43-9C, Appendix 1, complete with authorized signature, certificate type and number. This list must include all accessories and equipment installed in each aircraft offered. Signatures of persons verifying accuracy of the list is required.

B21 Maintenance Operational Check/Flight

The Contractor must, at their own expense, perform an operational check flight following installation, overhaul, major repair, or replacement of any engine, flight control system, or when requested by the Contracting Officer (CO) or Contracting Officer's Technical Representative (OAS Technical Inspector). This must be accomplished before the aircraft resumes service under the contract. The pilot must enter the result of this test flight in the aircraft records, as outlined in 14 CFR 91.407.

B22 Manuals/Records

B22.1 The Contractor must ensure that all aircraft maintenance is recorded in accordance with 14 CFR Parts 43, 91, and 135 or 121 (reference 14 CFR Parts 43.9, 43.11, 91.417, and 135.439 or 121.380). Aircraft total time in service must be recorded. A copy of the current maintenance record must be kept with the aircraft. Electronic copies of manuals and records are acceptable.

B22.2 If requested by the Government, the Contractor must furnish to the OAS Technical Inspector, a copy of the Contractor's procedures manuals as outlined in 14 CFR, Part 135.21 along with any revisions made during the contract period.

B23 Maintenance

B23.1 All maintenance including inspection, rebuilding, alteration, and installation must be accomplished by a person authorized to perform maintenance in accordance with 14 CFR, Part 43.

B23.2 The Contractor must ensure that a mechanic who meets the contract qualification requirements inspects the contract aircraft in accordance with the procedures outlined in the operator's FAA-approved maintenance program. Aircraft total time in service must be recorded.

B23.3 Routine maintenance must be performed before or after the daily use or as approved by the COR.

B23.4 The fire extinguisher must be maintained in accordance with NFPA 10: Standards for Portable Fire Extinguishers or the Contractor's 135 operations manual.

B24 Time Between Overhaul (TBO) and Life-Limited Parts

B24.1 All components, including engines, must be replaced upon reaching the factory-recommended TBO or FAA-approved extension. Life-limited parts must be replaced at the specified time-in-service hours or cycles.

SECTION B – TECHNICAL SPECIFICATIONS

B24.2 Aircraft operated with components or accessories on approved TBO extension programs are acceptable provided: (1) the Contractor is the holder of the approved extension authorization (not the owner if the aircraft is leased) and (2) the Contractor operates in accordance with the extension authorization. The extension authorization must be kept with the aircraft.

B24.3 The Contractor must provide, at the time of the agency inspection, a list of all items installed on the aircraft that are required to be overhauled or replaced on a specified time basis. This list must include the component's name, part number, serial number, total time, service life (or inspection/overhaul time interval), time remaining, and time and date when the component was overhauled, replaced, or inspected.

B25 SUPPLEMENTS

The supplements listed below and followed up in full text will be included into each Contractor's contract. The supplements impose special operational equipment and personnel requirements that are in addition to the basic fixed wing on call requirements.

The Contractor's aircraft and pilot(s) must be inspected and approved before conducting any flights under these special use activities. When ordered for service under any of the following supplements, all requirements must be adhered to in their entirety.

Special use aircraft shall be equipped with double strap shoulder harnesses and lap belts for front seat occupants, with the exception of the DHC-2 series Beaver and the DHC-3 series Otter where a single strap inertia reel shoulder harness is acceptable for front seat occupants. If aircraft was manufactured after December 12, 1986, the aft compartment shall have single-strap or double-strap shoulder harnesses and lap belts for each occupant, if manufactured before December 12, 1986, aft compartment shall have at a minimum lap belts for each occupant. Shoulder straps and lap belts shall fasten with metal to-metal, single-point, quick-release mechanism.

SECTION B – TECHNICAL SPECIFICATIONS

Supplements by Number and Title:

- B25.1 Off Airport Operations-Wheels
- B25.2 Reconnaissance
- B25.3 Low Level Activities
- B25.4 Glacier Landing-Skis (Airplane) Operations in Alaska
- B25.5 Mountainous Terrain
- B25.6 Extended Over-Water Operations
- B25.7 Reserved
- B25.8 Skiplane Operations
- B25.9 Aviation Fuel Dispensing Facilities in Alaska

SECTION B – TECHNICAL SPECIFICATIONS

B25.1 – Off Airport Operations-Wheels (see OPM 29)

OPM 29 can be found at the following address: <https://www.doi.gov/sites/default/files/documents/2025-01/opm-29.pdf>, <https://www.doi.gov/sites/doi.gov/files/opm-29.pdf>

NOTICE: This contract language meets current DOI policy which is changing. Expect a modification to this supplement in the near future.

Note: Use of airports authorized and current in the DOI Airport Directory (DAD) is not considered a special use activity.

Prerequisites for Off Airport - Low Level (Airplane), Mountainous Terrain (Airplane) when operating in mountainous terrain.

B25.1.1 Definition - Off Airport: Any area used for takeoff and landing that meets one or more of the following criteria:

1. Not listed in a FAA Chart Supplement (formerly AFD) or the Chart Supplement Alaska.
2. An airport that is listed as “not maintained” in accordance with a FAA Chart Supplement,
3. Not denoted as an airport on a lower 48 FAA Sectional Chart.

Note: Off-Airport locations that have been improved (removal of brush, rocks, logs, etc.) does not convert the location into an “airport” or “improved strip”.

B25.1.2 Personnel Requirements

B25.1.2.1 Airplane wheel operations on unprepared landing areas/off-airport is classified as “special use” and pilots must be carded for Off Airport Operations-Wheels (Airplane) and Low Level (flight below 500 feet above ground level) in the make and model of airplane and in the wheel configuration utilized. Pilots will be required to demonstrate proficiency in initial and recurrent agency evaluation flights, with recurrent evaluations every 36 months. The aircraft must be approved prior to the pilot evaluation.

B25.1.2.2 Pilots must be knowledgeable of the unprepared landing area type; i.e., beach/gravel bars, ridge tops, tundra, tidal beaches, etc. The evaluation will include special flight techniques for the specific type of area to be used. Equipment operation could include tundra tires, extended gear, GPS, etc.

B25.1.2.3 Current conditions must be ascertained prior to landing, usually by a high and then a low reconnaissance.

B25.1.3 Equipment Requirements

B25.1.3.1 Each aircraft used for off-airport operations must meet the basic requirements for airworthiness and conditions as listed in Section B6. And be equipped with tires appropriate for the surface type operated on and have heavy duty landing gear, where applicable. These tires and landing gear must be approved for the aircraft offered and must be installed during all DOI designated off-airport special use operations.

B25.1.3.2 A first aid and survival kit containing items specified in Exhibit 3 must be furnished by the Contractor and carried aboard the aircraft on all flights.

B25.1.3.3 The airplane must be inspected and carded for Off Airport Wheel Operations on Unprepared Landing Areas and Low Level.

SECTION B – TECHNICAL SPECIFICATIONS

B25.2 – Reconnaissance (see OPM 29)

OPM 29 can be found at the following address: <https://www.doi.gov/sites/default/files/documents/2025-01/opm-29.pdf>

Definitions

Reconnaissance: Must be conducted in airplane flying entirely above 500' AGL. Natural resource survey, transect type operations, utilization of specialized equipment, or missions not normally conducted in the commercial sector are examples of specific tasks that require special consideration.

Prerequisites: Mountainous Terrain (in category) when conducted in Mountainous terrain.

B25.2.1 Flight Operations - Mission accomplishment may require unique aircraft operating techniques that may require additional approval.

B25.2.2 Personnel Requirements

B25.2.2.1 Pilots must be knowledgeable of all specialized mission requirements. This may include special flight techniques, terrain considerations, use of specialized navigation equipment, or operation of other equipment as appropriate for the specific mission.

B25.2.2.2 Pilots will be required to demonstrate proficiency during an agency evaluation flight. The proficiency check may not be required if the pilot has been previously carded for low level or fire reconnaissance.

B25.2.2.3 Personal protective equipment. PPE is not required for fire or resource reconnaissance flights conducted in fixed- wing aircraft.

B25.2.3 Equipment Requirements

B25.2.3.1 Aircraft must meet the basic requirements for airworthiness and conditions as listed in Section B6.

B25.2.3.2 Installation or utilization of specialized equipment may require additional approval.

B25.2.3.3 The aircraft must be equipped with one permanently installed circuit breaker-protected, dual USB charging port. The ports must be approved under TSO-C71, each be equipped with USB connectors, each providing a maximum of 2.1A power at 5VDC and mounted in a location convenient to the pilot and copilot/observer positions. (Cigarette lighter adapter is not acceptable)

B25.2.4 Avionics Requirements–Resource Reconnaissance II

B25.2.4.1 Avionics equipment for this approval level is dependent upon the type of mission being flown and must be determined by the using bureau entity as required.

B25.2.4.2 Specific requirements for additional avionics must be provided when called for, based on mission demands.

B25.2.6 Avionics Requirements–Fire Surveillance & Reconnaissance above 500 ft.

B25.2.6.1 Two VHF_AM Radios (COM1 and COM 2)

B25.2.6.2 One weatherproof, external, broadband antennas covering the 150-174 MHz band (Comant model CI-177 or equal), each with associated RG-58A/U (or equivalent) coaxial cable terminated in a male BNC connector within the aircraft cabin in a location convenient to the copilot/observer and of adequate length to facilitate connection to a portable radio.

SECTION B – TECHNICAL SPECIFICATIONS

B25.2.6.3 In lieu of B25.2.6.2 above, the following may be substituted:

B25.2.6.3.1 One P25-compliant VHF-FM transceiver. The transceiver (FM-1) must provide selection of narrowband analog (12.5 kHz) or narrowband digital (12.5kHz) operation on each of a minimum of 100 channels. The transceiver's operational controls must be located and arranged so that the pilot and observer/copilot when seated, have full and unrestricted movement of each control without interference from clothing, the cockpit structure, or the flight controls.

B25.2.6.3.2 The transceiver's operational frequency range must include the band of 136.0000 MHz to 173.9975 MHz. The operator(s) must be able to program any usable channels within that band, along with any required CTCSS tones, National Access Codes (NAC's), or Talk Group ID's (TGID's), while in flight. The transceiver must also incorporate a separate, programmable GUARD receiver, with accompanying GUARD transmit capability. Unless instructed by the Government for use on a specific project, all frequencies programmed for use under this Contract must be in the narrowband analog mode.

B25.2.6.3.3 Carrier output power for the transceiver must be 10 watts nominal value (original design specification). The transceiver must be capable of displaying receiver and transmitter operating frequency, alpha-numeric channel labels, and must provide both receiver and transmitter activation indicators for MAIN and GUARD. Simultaneous monitoring of both MAIN and GUARD receivers is required. Scanning of the GUARD frequency is not acceptable.

B25.2.6.3.4 Prior to acceptance under this contract, the transceiver must be programmed with the narrowband analog GUARD receive and transmit frequencies of 168.625 MHz, with a 110.9 Hz CTCSS tone on transmit only.

B25.2.6.3.5 The following VHF-FM aeronautical transceivers are known to meet the above requirements:

Technionics: TDFM-136, TDFM-136A, TDFM-136/NV, TDFM-136A/NV, TDFM-136B, TDFM-136B/NV. Cobham: (formerly NAT) NPX-136D-070.

SECTION B – TECHNICAL SPECIFICATIONS

B25.3 – Low Level Activities (see OPM 29)

OPM 29 can be found at the following address: <https://www.doi.gov/sites/default/files/documents/2025-01/opm-29.pdf>

ALSE can be found at the following address: <https://www.doi.gov/sites/doi.gov/files/interagency-aviation-life-support-equipment-handbook-guide-v3.0.pdf>

B25.3.1 Low Level Activity. Any planned flight at less than 500 feet from the surface (not including takeoff or landing) or en route weather considerations).

B25.3.2 Flight Operations

B25.3.2.1 Low level flight (below 500 feet AGL) may be required. The minimum safe altitude requirements of 14 CFR 91.119 must be adhered to at all times.

B25.3.2.2 Only personnel necessary to the mission may be on board the aircraft.

B25.3.2.3 Planning. The pilot must attend a mission briefing, which should include flight routes/areas and altitudes, hazard identification, and risk assessment.

B25.3.3 Personnel Requirements

B25.3.3.1 The pilot must have 200 hours PIC in low level operations, such as power line/pipeline patrol, agriculture operations, wildlife or stream surveys, telemetry or radio tracking, law enforcement, aero magnetic survey, search and rescue and low-level military operations such as close air support or attack missions. To qualify for low-level this experience must be intentional, mission-planned flight below 500 feet AGL; incidental low-level operations or pleasure flying at or below 500' AGL does not qualify. Some activities not considered normal low-level operations are traffic watch, banner towing, aerial photography, and civil flight instruction.

B25.3.3.2 Pilots must show evidence of experience in low-level operations and be knowledgeable of all specialized mission requirements. This may include low-level operations, special flight techniques, terrain and hazard considerations, use of specialized navigation equipment, or operation of other equipment as appropriate for the specific mission. Pilots are required to demonstrate their ability during an agency evaluation flight. A low-level flight evaluation is required every 36 months.

B25.3.4 Equipment Requirements

B25.3.4.1 A first aid and survival kit containing items specified in Exhibit 3 section must be furnished by the Contractor and carried aboard the aircraft on all flights.

SECTION B – TECHNICAL SPECIFICATIONS

B25.4 – Glacier Landing-Skis (Airplane) Operations in Alaska (see OPM 29)

OPM 29 can be found at the following address: <https://edit.doi.gov/sites/default/files/documents/2025-01/opm-29.pdf>

B25.4.1 Definition - Glacier Skiplane Operations: Takeoff and landing operations with a ski equipped airplane on glaciers. Glacier Landings directly on glacier ice below the snow line using tundra tire equipped aircraft is Off Airport Wheels operations.

B25.4.2 Pilot Requirements

B25.4.2.1 Pilots shall be knowledgeable of glacier operations, high altitude landing and takeoff techniques in snow conditions. This includes: understanding of hidden hazards, (snow depth over crevasses, slope, etc.) snow conditions, (deep, shallow, soft, hard, “very sticky”) special flight techniques for “one-way” glacier takeoff and landing, mountain flying, and flat light/whiteout conditions. Equipment operation will include wheel-ski, penetration ski, or straight ski operations.

B25.4.2.2 Pilots must have a minimum of 200 hours PIC in ski airplanes, and will indicate these hours in their initial application, and must also indicate previous glacier ski plane experience documented on an OAS-64A form. This experience may also be verified from pilot logbooks, or company flight records.

B25.4.2.3 Mountainous Terrain is a prerequisite requirement for Glacier Ski Plane operations, and when pioneering new landing areas, Low Level is a prerequisite requirement.

B25.4.2.4 Pilots will be required to demonstrate proficiency during an initial evaluation flight, and recurrent evaluation flight every 36 months.

B25.4.3 Equipment Requirements

B25.4.3.1 A first aid and survival kit containing items specified in the Exhibit 3 section shall be furnished by the Contractor and carried aboard the aircraft on all flights.

SECTION B – TECHNICAL SPECIFICATIONS

B25.5 – Mountainous Terrain (see OPM 29)

OPM 29 can be found at the following address: <https://edit.doi.gov/sites/default/files/documents/2025-01/opm-29.pdf>

B25.5.1 Definition - An endorsement required for operations conducted within 1000 feet of terrain (horizontal or vertical) in the areas designated by the FAA as mountainous IAW 14 CFR 95 Subpart B, except take off, landing and as noted here.

B25.5.2 Operations - A mountainous terrain endorsement is not required for contract pilots conducting point to point flights in accordance with 14 CFR Part 135 or Part 121.

B25.5.3 Pilot Requirements

B25.5.3.1 Pilots applying for an initial pilot qualifications card with a requirement to operate within 1000 feet of the terrain in mountainous terrain must pass a one time Mountainous Terrain flight evaluation conducted in accordance with the IMCS prior to operating in mountainous terrain.

B25.5.3.2 Mountainous Terrain endorsements may be included in other related flight evaluations (i.e. Low Level flight evaluation in mountainous terrain) at the discretion of the Pilot Inspector. Pilots must meet the requirements of B9.3(m) and Interagency Mission Certification Standards (IMCS) located here: <https://www.doi.gov/aviation/library/guides>.

B25.5.3.3 The Contractor is responsible for ensuring an approved mountain pilot is provided when dispatched for operations in a designated mountainous area as identified in 14 CFR 95 Subpart B.

B25.5.4 Equipment Requirements

B25.5.4.1 A first and survival aid kit containing items specified in Exhibit 3 section must be furnished by the Contractor and carried aboard the aircraft on all flights.

SECTION B – TECHNICAL SPECIFICATIONS

B25.6 - Extended Over-Water Operations

B25.6.1 Definitions

B25.6.1.1 Extended Over-Water Operations. An operation; i.e., marine mammal survey, over water at a horizontal distance of more than 50 nautical miles from the nearest shoreline.

B25.6.2 Certifications

B25.6.2.1 The Contractor must provide evidence of FAA authorization for Class II navigation and authorization for operation in the proposed survey area.

B25.6.2.2 All International Civil Aviation Organization (ICAO) procedures and FAA regulations must be complied with, when applicable; i.e. Oceanic Flights. FAR Part 135.165 and 135.167 must be adhered to.

B25.6.3 Aircraft Requirements

B25.6.3.1 Aircraft must be multiengine.

B25.6.3.2 Aircraft must be certified for IFR.

B25.6.3.3 Aircraft shall be capable of a survey speed of 100 knots. The survey speed shall not be greater than power-off stall speed +30% (clean configuration/no gear/flaps) at MGTW. VMC shall be at least 10 knots below the survey speed in this configuration.

B25.6.3.4 Aircraft endurance shall be 4 hours with an additional 45-minute reserve at 120 knots at sea level.

B25.6.3.5 Cruising airspeed: 150 KTS, TAS (cruise power and 5,000 feet operational altitude). This is minimum TAS.

B25.6.4 Equipment Requirements

B25.6.4.1 A first aid and survival kit containing items specified in Exhibit 3 section must be furnished by the Contractor and carried aboard the aircraft on all flights

B25.6.4.2 If additional fuel is required to meet the endurance requirements of the order, the Contractor shall furnish an FAA-approved auxiliary fuel tank system.

B25.6.4.3 A personal flotation device (PFD) shall be provided for each passenger in the aircraft. The PFD shall have dual inflation bladders (TSO-C13f or equal). Water-activated light (TSO-C85b) will be attached to each vest.

B25.6.4.4 Life raft. The life raft(s) specified by 14 CFR Part 135.167 or Part 121.339 shall be approved under TSO-C70a Type I and shall be a multiple-tube design that provides full floor support in case one of the tubes fails. The rated capacity shall be equal to or greater than the total occupants of the aircraft. The raft(s) shall be carried in the main passenger cabin, readily accessible to the passengers and readily accessible for deployment from the main cabin door. The life raft shall contain a 406 MHz ELT registered with NOAA. All additional equipment requirements of 14 CFR 135.167 shall be included

B25.6.5 Avionics Requirements

B25.6.5.1 One communication system compatible with bureau flight following requirements; i.e., satellite phone, VHF/FM radio, or similar system.

SECTION B – TECHNICAL SPECIFICATIONS

B25.6.5.2 Two panel-mounted VHF/AM (VHF-1, VHF-2) airways communication transmitter/receiver systems with a minimum of 760 receive channels 118.000 to 136.975 MHz in 25 KHz increments and a minimum of 5 watts transmit carrier power.

B25.6.5.3 Two VHF airways navigation VOR/LOC receiver systems with indicators, of a minimum of 100 navigation receive channels.

B25.6.5.4 One glideslope system with 20 receiver channels.

B25.6.5.5 One marker beacon receiver system with a three- light indicator.

B25.6.5.6 One ATC transponder system, and altitude reporting system, meeting the requirements of 14 CFR 91.215(a) and tested and inspected per 14 CFR 91.413. The transponder shall have been last tested during the one-year period preceding the start or renewal date of the contract.

B25.6.5.7 (For extended over-water low level operations). One radar altimeter that includes a decision height warning system including both visual (light) and audible warning indications. The warning system must provide aural warning to the pilot through headphones.

B25.6.5.8 At least one IFR Global Positioning Systems (GPS) meeting the following requirements:

B25.6.5.8.1 The GPS's shall be capable of coupling to the aircraft autopilot system.

B25.6.5.8.2 One panel-mounted GPS's shall be permanently installed in the aircraft in such a manner as to be readily visible and accessible to both the pilot and front seat observer positions. The GPS's shall reference latitude and longitude coordinates for aircraft positioning, utilize an approved, fixed, external aircraft antenna, and be powered by the aircraft electrical system. The GPS's must be approved for IFR and have the current aviation data base installed.

B25.6.5.8.3 The GPS shall have LED or other units with high contrast displays that are backlighted.

B25.6.5.8.4 The Contractor shall install, in the aircraft, an Underwater Acoustic Beacon (Dukane Model DK-100 or equal). The beacon shall be installed and maintained in accordance with the manufacturer's specifications and each 6-month testing shall be documented in the aircraft's maintenance record.

B25.6.6 Pilot Requirements

B25.6.6.1 Pilots shall display evidence of experience in using all equipment specified. (GPS, satellite phone, etc.). Pilots may be required to demonstrate proficiency during the agency evaluation flight.

B25.6.6.2 Pilots shall demonstrate their ability to perform the following functions with the required GPS:

B25.6.6.2.1 Determine the geographic coordinates of a destination identified on a sectional aeronautical chart or oceanic chart.

B25.6.6.2.2 Install waypoint coordinates.

B25.6.6.2.3 Acquire distance/bearing information to a destination or waypoint.

B25.6.6.2.4 Record as a waypoint coordinates of various locations while en route to a primary destination.

B25.6.6.2.5 Navigate from a present position to a selected recorded waypoint or between two recorded waypoints.

B25.6.6.3 Pilots shall have logged minimum flight time as follows:

A. 2500 hours Total flight time for PIC.
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SECTION B – TECHNICAL SPECIFICATIONS

B. 75 hours Actual or simulated instrument flight time (including 50 hours in flight).
C. 500 hours Cross-country
D. 200 hours Low level flight (below 500 feet AGL) in airplanes performing fire retardant drops, dispensing agricultural materials, paracargo drops, wildlife surveys or low-level military operations such as close air support or attack missions. If flights are conducted above 500 feet AGL, low level PIC time is not required.
E. 200 hours over typical terrain: Extended over water, Arctic Ocean, Aleutian Chain, Arctic Coastal Environment, or other similar flying experience subject to the approval of the Contracting Officer.
F. 10 hours PIC in class in the last 60 days.

B25.6.6.4 Pilots shall be knowledgeable of IFR, VFR, low level, and slow flight procedures. This includes techniques for low level in slow flight configuration.

B25.6.7 Personal Protective Equipment (PPE)

B25.6.7.1 Anti-exposure suits shall be readily available to each occupant of the aircraft when conducting extended over-water flight and when the water temperature is estimated to be 50 degrees Fahrenheit or less. When conducting low level surveys, the suits must be donned at least to the waist. This is required for everyone on board including the pilots.

B25.6.7.2 Survival Vests: ALSE can be found at the following address:

<https://www.doi.gov/sites/doi.gov/files/interagency-aviation-life-support-equipment-handbook-guide-v3.0.pdf>

SECTION B – TECHNICAL SPECIFICATIONS

B25.7 - Reserved

B25.8 - Skiplane Operations (see OPM 29)

OPM 29 can be found at the following address: <https://edit.doi.gov/sites/default/files/documents/2025-01/opm-29.pdf>

B25.8.1 Definitions - This supplement is applicable to operations with an airplane equipped with straight skis, penetration wheel skis or wheel skis, when aircraft is in ski configuration.

B25.8.2 Personnel Requirements

B25.8.2.1 Currency - Pilots must have three take-offs and three landings to a full stop in a skiplane in the preceding 90 days prior to carrying passengers in a skiplane.

B25.8.2.2 Pilots must have documented training or experience in skiplane operations.

B25.8.2.3 An initial flight evaluation is required for contract pilots. Recurrent flight evaluations may be required at the Pilot Inspector's discretion. Contract vendors with current special use authorization for low-level, off airport wheels or glacier skiplane, with documented skiplane experience may not require initial or recurrent evaluations, at Pilot Inspector's discretion.

B25.8.3 PPE Requirement - No PPE required for skiplane operations. PPE is required for arctic or extreme winter weather conditions for each occupant of the aircraft.

B25.8.4 Equipment Requirement

B25.8.4.1 Straight skis, penetration wheel skis or wheel skis installed on the offered aircraft with appropriate FAA approval.

B25.8.4.2 Installation of skis must be supported by a log book entry, updated weight and balance information and updated equipment list. Documentation must be made available upon request.

B25.8.4.3 A first aid and survival kit containing items specified in the Exhibit 3 section shall be furnished by the Contractor and carried aboard the aircraft on all flights.

SECTION B – TECHNICAL SPECIFICATIONS

B25.9 – Aviation Fuel Dispensing Facilities in Alaska

B25.9.1 Fuel and Servicing Requirements: General.

B25.9.1.1 Aviation fuel must be approved for use by the airframe and engine manufacturer. Aviation fuel must meet American Society for Testing and Material (ASTM) specifications (ASTM D-1655 (Jet A, A-1, or B), ASTM-D-910 (100LL).

B25.9.1.2 Contractors receiving fuel from distributors must validate fuel delivered meets the color and API gravity specifications applicable to the specific fuel requested. The specific ASTM applicable to each fuel grade contains data pertaining to appearance (color) and API gravity. Fuel delivery tickets should have the API gravity annotated on them by fuel distributors. Contractors must perform API gravity tests when delivery tickets do not have a documented API gravity or when doubt exists about fuel quality. API gravities must fall within prescribed ranges detailed in the applicable specification. Fuel delivery tickets and testing results must be kept with the fuel dispensing facility for 30 days. The API Gravity range for JET A is 37-51. The API Gravity Range for 100 LL is 64-75.

B25.9.1.3 Fueling operations, including storage and handling, must comply with the airframe and engine manufacturer's recommendations, applicable FAA standards and National Fire Protection Association (NFPA) 407 Standard for Aircraft Fuel Servicing. NFPA 407 can be obtained from the National Fire Protection Association, 1 Batterymarch Park, Quincy, MA 02169. Maintenance and security of Contractor owned fuel storage/dispensing facilities are the Contractor's responsibility.

B25.9.1.4 Contractors must have a fuel quality assurance program based on requirements contained in the equipment manufacturer's operating instructions and applicable fuel testing and documentation requirements contained in Air Transportation Association Specification 103: Standard for Jet Fuel Quality Control at Airports. the Department of Interior Fuel Management Handbook.

B25.9.1.5 Contractors must complete and document daily when used fuel system inspections.

B25.9.2 Aviation Fuel Dispensing Facility: General

B25.9.2.1 As stated in the contract terms and conditions of the document, the Contractor must comply with all applicable Federal, State, and local laws. Spill Prevention Control and Countermeasures Plans (SPCC) are required when conditions warrant implementation.

B25.9.2.2 The Contractor must supply a fuel dispensing facility when necessary to support operations. The fuel dispensing facility must be inspected and approved by the Government. The Contractor must maintain a file containing fuel facility inspection reports. The approval/inspection report is an indication the facility meets the equipment requirements of this procurement. DOI passengers may review the current inspection report prior to mission accomplishment. Passengers may reject scheduled flights if fuel quality deficiencies exist or previously identified deficiencies are not corrected.

B25.9.2.3 Fuel dispensing facilities must be properly maintained, clean, and reliable. Tanks, plumbing, filters, and other required equipment must be free of rust, scale, dirt, and other contaminants. All leaks must be repaired immediately.

B25.9.2.4 Horizontally positioned bulk aviation fuel dispensing tanks should be sloped at a 1 to 20 ratio to prevent water accumulation at the dispensing pump suction point. Tank dispensing drop tubes should be set at a height of 3-6 inches from tank bottoms to prevent water/particulate siphoning during dispensing operations.

B25.9.2.5 Tanks should be sumped or gauged with water finding paste daily when used. Detected water levels greater than ¼ inch shall be removed. The daily sumping shall be documented on a Contractor developed checklist/form.

SECTION B – TECHNICAL SPECIFICATIONS

B25.9.2.6 Fuel dispensing pumps, regardless of power source, must be listed for use with petroleum products. Note: UL 79 is a listing for Petroleum Transfer Pumps.

B25.9.2.7 Filter and pump sizes must be sized appropriately to prevent filter over-pressurization and subsequent rupture. The fuel dispensing facility must, at a minimum, provide a 10-gallon-per-minute flow rate measured at the nozzle.

B25.9.3 Fuel Dispensing Facility: Equipment

B25.9.3.1 Each fuel dispensing facility must have at minimum one fire extinguisher, having a rating of at least 40-B:C. Extinguishers must meet NFPA 10: Standards for Portable Fire Extinguishers. Extinguisher inspection & maintenance frequencies established in NFPA 10 shall be accomplished.

B25.9.3.2 Fuel dispensing hoses shall be Energy Institute (EI)/American Petroleum Institute (API) 1529 Type C, compliant no later than 2 years after contract award. Hoses changed for cause prior to 2-year period shall be replaced with hoses API 1529 Type C compliant hoses. EI/API 1529 Type CT hoses should be used in cold weather climates. Hoses shall be maintained in accordance with NFPA 407 and EI/API Bulletin 1529.

B25.9.3.3 Closed circuit refueling operations require the use of a dead man control. The over wing nozzle acts as a dead man control during over wing servicing operations.

B25.9.3.4 Aircraft refueling nozzles must include a 100-mesh or finer screen, and a dust cover. Nozzle hold-open devices are not permitted on over wing nozzles. If aircraft have bonding points in the vicinity of the fuel port(s) the nozzle must have a bonding wire with clip to allow bonding prior to fuel cap removal.

Nozzle barrel/spouts shall be touched to aircraft fuel cap prior to cap removal when grounding points are not available on the aircraft. This process negates the nozzle bonding wire/clip requirement stipulated in NFPA 407.

B25.9.3.5 An accurate fuel-metering device for registering quantities in U.S. gallons of fuel pumped must be provided.

B25.9.3.6 Fuel dispensing facilities must have a bonding cable with clip/plug to allow system-to-aircraft bonding stipulated in NFPA 407.

B25.9.3.7 Fuel dispensing facilities vehicles must have enough petroleum product absorbent pads or materials to absorb or contain a 5-gallon petroleum spill. The Contractor is responsible for proper disposal of all products used in the cleanup of a spill in accordance with the EPA (40 CFR, Parts 261 and 262).

B25.9.4 Fuel Dispensing Facility: Filtering System

B25.9.4.1 Filtration must be sized to withstand fuel system pressures and flow rates.

B25.9.4.2 The filter manufacturer's operating, installation, and service manual must be with the fuel servicing facility. The manufacturer's operating instructions related to filter change out criteria must be adhered to.

B25.9.4.3 The aviation fuel filtration system must meet the following contamination removal limits or be certified compliant with EI 1581 Specifications and Qualifications Procedures for Aviation Jet Fuel Separators or EI Specification 1583 Laboratory Tests and Minimum Performance Levels for Aviation Fuel Filter Monitor. Contractors should consult with filter manufactures data to determine compatibility.

Total Solids	0.26 mg/litre (1.0 mg/U.S. gal) average 0.5 mg/litre (1.9 mg/U.S. gal) maximum
Appearance	the effluent fuel shall be clear and bright

SECTION B – TECHNICAL SPECIFICATIONS

Free Water	15 ppmv
Media Migration	10 fibres/litre

Three-stage (coalescer cartridge(s), separator cartridge(s), and monitor(s)) systems are /EI/API 1581 qualified. A single stage system meeting EI/API 1583 qualifications uses a single element system. Filter manufacturers Velcon, Raycor, and Facet manufacture filtration specifically for aviation refueling. These companies produce both single and three- stage systems.

B25.9.4.4 The filter vessel must be placarded indicating the filter change date. Filters changes are required annually unless contamination buildup requires earlier change outs. Spare filters must be available to allow periodic and emergency filter changes.

B25.9.4.5 Differential pressure gauges must be installed on refueling systems operating at 25 psi or above.

B25.9.4.6 If equipped with a drain, the bottom of the filter assembly must be mounted to allow room for draining and pressure flushing into a container. If the unit is equipped with a water sight gauge, the ball must be visible. Filters vessel sumps shall be drained daily to remove accumulated water and particulate. Sump samples should be taken in white buckets and analyzed visually to ensure contamination removal.

B25.9.4.7 A spare filter, seals, and other spare components of the fuel servicing vehicle filtering system must be stored in a clean, dry area located at the fuel dispensing facility.

B25.9.4.8 API/EI 1583 filtration shall not be used with jet fuel containing FSII/Prist unless the FSII/Prist is injected downstream of filtration.

B25.9.5 Fuel Servicing Facility: Markings

B25.9.5.1 Each fuel dispensing facility shall have NO SMOKING signs posted to eliminate smoking within 50' of dispensing operations.

B25.9.5.2 Each fuel dispensing facility shall have fuel grade markings at fuel receipt and dispensing points. Storage tanks shall have fuel grade markings on the tank sides and ends.

Examples: Jet-A white on black background or AVGAS 100LL white on blue background.

B25.9.6 Fuel Servicing Facility: Operations

B25.9.6.1 Government personnel must not be involved with refueling of contract aircraft. Passengers shall not be on board the aircraft during aircraft refueling operations.

B25.9.6.2 Smoking is prohibited within 50 feet of the fuel facility receipt and dispensing operations.

B25.9.6.3 Rapid/ hot refueling operations are not allowed on this contract.

SECTION C – CONTRACT TERMS AND CONDITIONS

CONTRACT TERMS AND CONDITIONS

All offerors must comply with the following Federal Acquisition Regulations (FAR), Department of the Interior Acquisition Regulation (DIAR), and Acquisition Services Directorate (AQD) clauses which apply to this acquisition:

C1 52.252-2 Clauses Incorporated by Reference. (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this address: <https://www.acquisition.gov>

Clauses Incorporated by Reference

52.202-1 Definitions (Jun 2020)
52.203-3 Gratuities (Apr 1984)
52.203-5 Covenant Against Contingent Fees (May 2014)
52.203-7 Anti-Kickback Procedures (Jun 2020)
52.203-12 Limitation on Payments to Influence Certain Federal Transactions (Jun 2020)
52.204-13 System for Award Management Maintenance (Oct 2018)
52.204-18 Commercial and Government Entity Code Maintenance (Aug 2020)
52.204-19 Incorporation by Reference of Representations and Certifications (Dec 2014)
52.212-4 Contract Terms and Conditions-Commercial Items (Nov 2023)
52.212-4 Alt 1 (Nov 2021)
52.232-18 Availability of Funds (Apr 1984)
52.232-39 Unenforceability of Unauthorized Obligations (Jun 2013)
52.232-40 Providing Accelerated Payments to Small Business Subcontractors (Mar 2023)
52.242-13 Bankruptcy (Jul 1995)
52.242-15 Stop-Work Order (Aug 1989)
52.253-1 Computer Generated Forms (Jan 1991)

ADDENDA TO CONTRACT TERMS AND CONDITIONS

C2 52.212-4(A) INSPECTION/ACCEPTANCE

The following is added:

C2.1 Inspection Scheduling and Process.

C2.1.1 After either contract award or renewal, the OAS Technical Inspector will schedule a date to inspect the Contractor's proposed aircraft, equipment, and personnel to ensure contract compliance. The inspection will be conducted at the designated base, Contractor's facility, or other location acceptable to the Government and the Contractor. The inspection will be scheduled to commence as early as 60 calendar days and not later than five business days prior to the established reporting date, unless otherwise mutually agreed upon by the OAS Technical Inspector and the Contractor. The inspection time and date will be scheduled for between 0730 and 1630 local time, Monday through Friday, unless otherwise agreed upon by the OAS Technical Inspector. The OAS Technical Inspector will confirm the inspection details in writing. Contractor written requests for inspection rescheduling that are received by the OAS technical inspector at least 10 days prior to the originally scheduled inspection date may be accommodated by the OAS Technical Inspector, depending upon their work schedule.

C2.1.2 The Contractor must provide information specific to the aircraft, equipment, and personnel being proposed for use during each year of the contract when requested by the OAS technical inspector.

C2.1.3 The Contractor must notify the CO, the COR, and the OAS Technical Inspector when an action has been imposed by the FAA on the operator's certificate or on any pilot or aircraft carded under this contract. The Contractor must also notify the OAS Technical Inspector of any changes in the Director of Operations, Chief Pilot, and Director of Maintenance as well as any additional positions approved under 14 CFR 119.69(b).

C2.1.4 Approved aircraft, pilots will be issued an Interagency Aircraft Data Card, Interagency Data Card -Interagency Pilot Qualification card, as applicable. The aircraft, pilot cards detail the activities for which they are authorized.

SECTION C – CONTRACT TERMS AND CONDITIONS

C2.1.5 The aircraft data card must be kept in the aircraft and available for inspection at all times.

C2.1.6 The pilot qualification card must be kept in the possession of the pilot and available for inspection at all times.

C2.1.7 If the OAS technical inspector determines any aircraft, equipment, personnel, records, or documents presented for inspection are not completely ready for the inspection or are determined to be nonconforming as required by the contract, the OAS Technical Inspector may suspend the inspection(s) and schedule a reinspection for another time/date/site. The Contractor may be charged for the cost of reinspection, as identified below.

C2.2 Equipment.

The aircraft and equipment will be inspected to ensure compliance with all Section A and B contract requirements. The Government may require in-flight dynamic testing of aircraft systems. This testing may be conducted in conjunction with pilot evaluation flight(s) and will be performed at no cost to the Government.

C2.3 Personnel.

C2.3.1 Pilots are considered essential to the work to be performed. The Contractor hereby agrees to furnish qualified pilots in the performance of this contract. Prior to diverting the specified individuals to other projects or programs, the Contractor must notify the Contracting Officer reasonably in advance and must submit justification (including proposed substitutions) in sufficient detail to permit evaluation of the impact of the program. No diversion may be made by the Contractor without written consent of the Contracting Officer. Replacement personnel must meet or exceed the skill, experience and knowledge identified herein. A complete OAS-64A, equal to the detail provided in the Contractor's original proposal must be submitted for any proposed substitutions. The Contracting Officer will determine acceptability of a replacement. Personnel will be identified on OAS-68 inspection forms under this contract.

C2.3.2 Only those pilots whose past flight time and experience can be verified from an OAS-64A and FAA 8410-3 will be approved for contract use. Flight hours accrued during evaluations will not count toward required flight time. Additional evidence of flight time and pilot experience must be provided upon request.

C2.3.3 The OAS technical inspector's representative will conduct a pilot flight evaluation to further verify the pilot(s)' ability to perform under this contract, if a special use flight activity is used. The evaluation may include but is not limited to weight and balance performance, center of gravity limitations, aircraft performance charts, density altitude considerations, load calculation preparation and actual flying of the aircraft. Portions of the evaluation may be conducted orally. The flight evaluation will be conducted in accordance with the Interagency Mission Certification Standards (IMCS), and the FAA Airman Certification Standards (ACS). A pilot must also be capable of demonstrating proficient operation of all aircraft equipment identified in Section B during an evaluation flight.

C2.3.4 The aircraft used for the evaluation(s) must be the same make, model, and series awarded for this contract and be equipped with dual controls. Flight evaluation(s) will usually be performed in areas that provide access to terrain similar to that to be flown during the contract period. Flight evaluations are conducted at the Contractor's expense.

C2.3.5 During the flight evaluation, pilot inspectors retain discretionary authority in determining the competency of the pilot. The Government will make the final determination as to the pilot's ability to successfully meet contract requirements.

C2.3.6 Services provided under this contract require DOI special use flight activities as identified herein. Pilots must have satisfactorily completed an agency initial and/or periodic flight evaluation(s) for these activities before being approved for use under the contract, unless otherwise indicated in the contract. The OAS technical inspector will provide detailed information concerning the types and frequency of special use pilot flight evaluations when requested.

List of Special Use Flight Activities (see [OPM-29](#)):

- Off Airport Operations-Wheels
- Reconnaissance
- Low-level flight (less than 500' above the surface)
- Glacier Landing-Skis
- Mountainous Terrain
- Extended Over-water

SECTION C – CONTRACT TERMS AND CONDITIONS

C2.3.8 Reinspection Expenses

The Government may charge the Contractor for the cost of any substitute inspections. The Contractor must be liable for all Government incurred reinspection costs. Inspection expenses will not be deducted from payments due the Contractor. The Contractor will be responsible to make payment as directed in writing by the CO.

Costs may include, but are not limited to, inspector(s)' time to include travel time at \$100.00 per hour, and transportation and subsistence at actual cost in accordance with the Federal Travel Regulation (FTR).

C3 52.212-4(k) Taxes

Important Notice: In accordance with 52.212-4(k), the price(s) in the pricing schedule within Section A of the contract include all applicable Federal, State, and local taxes and duties. The Government's electronic business systems will not calculate nor pay for any federal, state, or local taxes or duties separately under the contract. Examples of taxes and duties that are considered included in the contract prices are:

- Federal Airport and Airway Excise Taxes
- Fuel Taxes
- Transportation Taxes (passengers and cargo)

Clauses Incorporated by full text:

C4 FAR 52.212-5 Contract Terms and Conditions Required To Implement Statutes or Executive Orders—Commercial Products and Commercial Services (JAN 2025) (DEVIATION FEB 2025)

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

- (1) [52.203-19](#), Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).
- (2) [52.204-23](#), Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (Dec 2023) (Section 1634 of Pub. L. 115-91).
- (3) [52.204-25](#), Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).
- (4) [52.209-10](#), Prohibition on Contracting with Inverted Domestic Corporations (Nov 2015).
- (5) [52.232-40](#), Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) ([31 U.S.C. 3903](#) and [10 U.S.C. 3801](#)).
- (6) [52.233-3](#), Protest After Award (Aug 1996) (31 U.S.C. 3553).
- (7) [52.233-4](#), Applicable Law for Breach of Contract Claim (Oct 2004) (Public Laws 108-77 and 108-78 (19 U.S.C. 3805 note)).

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

 X (1) [52.203-6](#), Restrictions on Subcontractor Sales to the Government (Jun 2020), with *Alternate I* (Nov 2021) (41 U.S.C. 4704 and [10 U.S.C. 4655](#)).

 (2) [52.203-13](#), Contractor Code of Business Ethics and Conduct (Nov 2021) (41 U.S.C. 3509)).

 (3) [52.203-15](#), Whistleblower Protections under the American Recovery and Reinvestment Act of 2009 (Jun 2010) (Section 1553 of Pub. L. 111-5). (Applies to contracts funded by the American Recovery and Reinvestment Act of 2009.)

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X (4) [52.203-17](#), Contractor Employee Whistleblower Rights (Nov 2023) ([41 U.S.C. 4712](#)); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community—see FAR [3.900\(a\)](#).

X (5) [52.204-10](#), Reporting Executive Compensation and First-Tier Subcontract Awards (Jun 2020) (Pub. L. 109-282) ([31 U.S.C. 6101 note](#)).

 (6) [Reserved].

 (7) [52.204-14](#), Service Contract Reporting Requirements (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).

 (8) [52.204-15](#), Service Contract Reporting Requirements for Indefinite-Delivery Contracts (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).

X (9) [52.204-27](#), Prohibition on a ByteDance Covered Application (Jun 2023) (Section 102 of Division R of Pub. L. 117-328).

 (10) [52.204-28](#), Federal Acquisition Supply Chain Security Act Orders—Federal Supply Schedules, Governmentwide Acquisition Contracts, and Multi-Agency Contracts. (Dec 2023) ([Pub. L. 115-390](#), title II).

X (11) (i) [52.204-30](#), Federal Acquisition Supply Chain Security Act Orders—Prohibition. (Dec 2023) ([Pub. L. 115-390](#), title II).

 (ii) Alternate I (Dec 2023) of [52.204-30](#).

X (12) [52.209-6](#), Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Jan 2025) ([31 U.S.C. 6101 note](#)).

X (13) [52.209-9](#), Updates of Publicly Available Information Regarding Responsibility Matters (Oct 2018) ([41 U.S.C. 2313](#)).

 (14) [Reserved].

 (15) [52.219-3](#), Notice of HUBZone Set-Aside or Sole-Source Award (Oct 2022) ([15 U.S.C. 657a](#)).

 (16) [52.219-4](#), Notice of Price Evaluation Preference for HUBZone Small Business Concerns (Oct 2022) (if the offeror elects to waive the preference, it shall so indicate in its offer) (15 U.S.C. 657a).

 (17) [Reserved]

X (18) (i) [52.219-6](#), Notice of Total Small Business Set-Aside (Nov 2020) (15 U.S.C. 644).

 (ii) Alternate I (Mar 2020) of [52.219-6](#).

 (19) (i) [52.219-7](#), Notice of Partial Small Business Set-Aside (Nov 2020) (15 U.S.C. 644).

 (ii) Alternate I (Mar 2020) of [52.219-7](#).

X (20) [52.219-8](#), Utilization of Small Business Concerns (Jan 2025)([15 U.S.C. 637](#)(d)(2) and (3)).

 (21) (i) [52.219-9](#), Small Business Subcontracting Plan (Jan 2025) ([15 U.S.C. 637](#)(d)(4)).

 (ii) Alternate I (Nov 2016) of [52.219-9](#).

 (iii) Alternate II (Nov 2016) of [52.219-9](#).

 (iv) Alternate III (Jun 2020) of [52.219-9](#).

 (v) Alternate IV (Jan 2025) of [52.219-9](#).

 (22) (i) [52.219-13](#), Notice of Set-Aside of Orders (Mar 2020) (15 U.S.C. 644(r)).

 (ii) Alternate I (Mar 2020) of [52.219-13](#).

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- X (23) [52.219-14](#), Limitations on Subcontracting (Oct 2022) (15 U.S.C. 657s).
- ___ (24) [52.219-16](#), Liquidated Damages—Subcontracting Plan (Sep 2021) (15 U.S.C. 637(d)(4)(F)(i)).
- ___ (25) [52.219-27](#), Notice of Set-Aside for, or Sole-Source Award to, Service-Disabled Veteran-Owned Small Business (SDVOSB) Concerns Eligible Under the SDVOSB Program (Feb 2024) (15 U.S.C. 657f).
- X (26) (i) [52.219-28](#), Postaward Small Business Program Rerepresentation (Jan 2025) (15 U.S.C. 632(a)(2)).
- ___ (ii) Alternate I (Mar 2020) of [52.219-28](#).
- ___ (27) [52.219-29](#), Notice of Set-Aside for, or Sole-Source Award to, Economically Disadvantaged Women-Owned Small Business Concerns (Oct 2022) (15 U.S.C. 637(m)).
- ___ (28) [52.219-30](#), Notice of Set-Aside for, or Sole-Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (Oct 2022) (15 U.S.C. 637(m)).
- ___ (29) [52.219-32](#), Orders Issued Directly Under Small Business Reserves (Mar 2020) ([15 U.S.C. 644](#)(r)).
- ___ (30) [52.219-33](#), Nonmanufacturer Rule (Sep 2021) ([15 U.S.C. 637](#)(a)(17)).
- ___ (31) [52.222-3](#), Convict Labor (Jun 2003) (E.O.11755).
- ___ (32) [52.222-19](#), Child Labor—Cooperation with Authorities and Remedies (Jan 2025)([E.O. 13126](#)).
- ___ (33) Reserved
- ___ (34) Reserved
- X (35) (i) [52.222-35](#), Equal Opportunity for Veterans (Jun 2020) ([38 U.S.C. 4212](#)).
- ___ (ii) Alternate I (Jul 2014) of [52.222-35](#).
- X (36) (i) [52.222-36](#), Equal Opportunity for Workers with Disabilities (Jun 2020) ([29 U.S.C. 793](#)).
- ___ (ii) Alternate I (Jul 2014) of [52.222-36](#).
- X (37) [52.222-37](#), Employment Reports on Veterans (Jun 2020) ([38 U.S.C. 4212](#)).
- X (38) [52.222-40](#), Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496).
- X (39) (i) [52.222-50](#), Combating Trafficking in Persons (Nov 2021) (22 U.S.C. chapter 78 and E.O. 13627).
- ___ (ii) Alternate I (Mar 2015) of [52.222-50](#) (22 U.S.C. chapter 78 and E.O. 13627).
- ___ (40) [52.222-54](#), Employment Eligibility Verification (Jan 2025) ([Executive Order 12989](#)). (Not applicable to the acquisition of commercially available off-the-shelf items or certain other types of commercial products or commercial services as prescribed in FAR [22.1803](#).)
- ___ (41) (i) [52.223-9](#), Estimate of Percentage of Recovered Material Content for EPA–Designated Items (May 2008) (42 U.S.C. 6962(c)(3)(A)(ii)). (Not applicable to the acquisition of commercially available off-the-shelf items.)
- ___ (ii) Alternate I (May 2008) of [52.223-9](#) (42 U.S.C. 6962(i)(2)(C)). (Not applicable to the acquisition of commercially available off-the-shelf items.)
- ___ (42) [52.223-11](#), Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (May 2024) ([42 U.S.C. 7671](#), *et seq.*).

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- ___ (43) [52.223-12](#), Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (May 2024) ([42 U.S.C. 7671](#), *et seq.*).
- ___ (44) [52.223-20](#), Aerosols (May 2024) ([42 U.S.C. 7671](#), *et seq.*).
- ___ (45) [52.223-21](#), Foams (May 2024) ([42 U.S.C. 7671](#), *et seq.*).
- ___ (46) [52.223-23](#), Sustainable Products and Services (May 2024) (DEVIATION FEB 2025) ([7 U.S.C. 8102](#), [42 U.S.C. 6962](#), [42 U.S.C. 8259b](#), and [42 U.S.C. 76711](#)).
- ___ (47) (i) [52.224-3](#) Privacy Training (Jan 2017) ([5 U.S.C. 552](#) a).
- ___ (ii) Alternate I (Jan 2017) of [52.224-3](#).
- ___ (48) (i) [52.225-1](#), Buy American-Supplies (Oct 2022) (41 U.S.C. chapter 83).
- ___ (ii) Alternate I (Oct 2022) of [52.225-1](#).
- ___ (49) (i) [52.225-3](#), Buy American-Free Trade Agreements-Israeli Trade Act (NOV 2023) ([19 U.S.C. 3301](#) note, [19 U.S.C. 2112](#) note, [19 U.S.C. 3805](#) note, [19 U.S.C. 4001](#) note, [19 U.S.C. chapter 29](#) (sections 4501-4732), Public Law 103-182, 108-77, 108-78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43).
- ___ (ii) Alternate I [Reserved].
- ___ (iii) Alternate II (Jan 2025) of [52.225-3](#).
- ___ (iv) Alternate III (Feb 2024) of [52.225-3](#).
- ___ (v) Alternate IV (Oct 2022) of [52.225-3](#).
- ___ (50) [52.225-5](#), Trade Agreements (NOV 2023) ([19 U.S.C. 2501](#), *et seq.*, [19 U.S.C. 3301](#) note).
- X (51) [52.225-13](#), Restrictions on Certain Foreign Purchases (Feb 2021) (E.O.'s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).
- ___ (52) [52.225-26](#), Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).
- ___ (53) [52.226-4](#), Notice of Disaster or Emergency Area Set-Aside (Nov 2007) (42 U.S.C. 5150).
- ___ (54) [52.226-5](#), Restrictions on Subcontracting Outside Disaster or Emergency Area (Nov 2007) (42 U.S.C. 5150).
- X (55) [52.226-8](#), Encouraging Contractor Policies to Ban Text Messaging While Driving (May 2024) ([E.O. 13513](#)).
- ___ (56) [52.229-12](#), Tax on Certain Foreign Procurements (Feb 2021).
- ___ (57) [52.232-29](#), Terms for Financing of Purchases of Commercial Products and Commercial Services (Nov 2021) (41 U.S.C. 4505, [10 U.S.C. 3805](#)).
- ___ (58) [52.232-30](#), Installment Payments for Commercial Products and Commercial Services (Nov 2021) (41 U.S.C. 4505, [10 U.S.C. 3805](#)).
- X (59) [52.232-33](#), Payment by Electronic Funds Transfer-System for Award Management (Oct2018) ([31 U.S.C. 3332](#)).
- ___ (60) [52.232-34](#), Payment by Electronic Funds Transfer-Other than System for Award Management (Jul 2013) (31 U.S.C. 3332).
- ___ (61) [52.232-36](#), Payment by Third Party (May 2014) (31 U.S.C. 3332).
- ___ (62) [52.239-1](#), Privacy or Security Safeguards (Aug 1996) ([5 U.S.C. 552a](#)).

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___ (63) [52.240-1](#), Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (Nov 2024) (Sections 1821-1826, Pub. L. 118-31, [41 U.S.C. 3901](#) note prec.).

___ (64) [52.242-5](#), Payments to Small Business Subcontractors (Jan 2017) (15 U.S.C. 637(d)(13)).

___ (65) (i) [52.247-64](#), Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) ([46 U.S.C. 55305](#) and 10 U.S.C. 2631).

___ (ii) Alternate I (Apr 2003) of [52.247-64](#).

___ (iii) Alternate II (Nov 2021) of [52.247-64](#).

(c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

X (1) [52.222-41](#), Service Contract Labor Standards (Aug 2018) (41 U.S.C. chapter 67).

X (2) [52.222-42](#), Statement of Equivalent Rates for Federal Hires (May 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

X (3) [52.222-43](#), Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts) (Aug 2018) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

___ (4) [52.222-44](#), Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (May 2014) ([29 U.S.C. 206](#) and 41 U.S.C. chapter 67).

___ (5) [52.222-51](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).

___ (6) [52.222-53](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (May 2014) (41 U.S.C. chapter 67).

X (7) [52.222-55](#), Minimum Wages for Contractor Workers Under Executive Order 14026 (Jan 2022).

X (8) [52.222-62](#), Paid Sick Leave Under Executive Order 13706 (Jan 2022) (E.O. 13706).

___ (9) [52.226-6](#), Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792).

___ (10) [52.247-69](#), Reporting Requirement for U.S.-Flag Air Carriers Regarding Training to Prevent Human Trafficking (Jan 2025) ([49 U.S.C. 40118\(g\)](#)).

(d) *Comptroller General Examination of Record*. The Contractor shall comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, as defined in FAR [2.101](#), on the date of award of this contract, and does not contain the clause at [52.215-2](#), Audit and Records-Negotiation.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR subpart [4.7](#), Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

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(e) (1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1), in a subcontract for commercial products or commercial services. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause-

(i) [52.203-13](#), Contractor Code of Business Ethics and Conduct (Nov 2021) (41 U.S.C. 3509).

(ii) [52.203-17](#), Contractor Employee Whistleblower Rights (Nov 2023) ([41 U.S.C. 4712](#)).

(iii) [52.203-19](#), Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(iv) [52.204-23](#), Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (Dec 2023) (Section 1634 of Pub. L. 115-91).

(v) [52.204-25](#), Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(vi) [52.204-27](#), Prohibition on a ByteDance Covered Application (Jun 2023) (Section 102 of Division R of Pub. L. 117-328).

(vii) (A) 52.204–30, Federal Acquisition Supply Chain Security Act Orders—Prohibition. (Dec 2023) ([Pub. L. 115–390](#), title II).
(B) Alternate I (Dec 2023) of 52.204–30.

(viii) [52.219-8](#), Utilization of Small Business Concerns (Jan 2025) ([15 U.S.C. 637\(d\)\(2\)](#) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR [19.702\(a\)](#) on the date of subcontract award, the subcontractor must include [52.219-8](#) in lower tier subcontracts that offer subcontracting opportunities.

(ix) Reserved

(x) Reserved

(xi) [52.222-35](#), Equal Opportunity for Veterans (Jun 2020) (38 U.S.C. 4212).

(xii) [52.222-36](#), Equal Opportunity for Workers with Disabilities (Jun 2020) (29 U.S.C. 793).

(xiii) [52.222-37](#), Employment Reports on Veterans (Jun 2020) (38 U.S.C. 4212).

(xiv) [52.222-40](#), Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause [52.222-40](#).

(xv) [52.222-41](#), Service Contract Labor Standards (Aug 2018) ([41 U.S.C. chapter 67](#)).

(xvi) (A) [52.222-50](#), Combating Trafficking in Persons (Nov 2021) (22 U.S.C. chapter 78 and E.O. 13627).
(B) Alternate I (Mar 2015) of [52.222-50](#) (22 U.S.C. chapter 78 and E.O. 13627).

(xvii) [52.222-51](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).

(xviii) [52.222-53](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (May 2014) (41 U.S.C. chapter 67).

(xix) [52.222-54](#), Employment Eligibility Verification (Jan 2025) ([E.O. 12989](#)).

(xx) [52.222-55](#), Minimum Wages for Contractor Workers Under Executive Order 14026 (Jan 2022).

(xxi) [52.222-62](#), Paid Sick Leave Under Executive Order 13706 (Jan 2022) (E.O. 13706).

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(xxii) (A) [52.224-3](#), Privacy Training (Jan 2017) ([5 U.S.C. 552a](#)).
(B) Alternate I (Jan 2017) of [52.224-3](#).

(xxiii) [52.225-26](#), Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

(xxiv) [52.226-6](#), Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792). Flow down required in accordance with paragraph (e) of FAR clause [52.226-6](#).

(xxv) [52.232-40](#), Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) ([31 U.S.C. 3903](#) and [10 U.S.C. 3801](#)). Flow down required in accordance with paragraph (c) of [52.232-40](#).

(xxvi) [52.240-1](#), Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (Nov 2024) (Sections 1821-1826, Pub. L. 118-31, [41 U.S.C. 3901](#) note prec.).

(xxvii) [52.247-64](#), Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) ([46 U.S.C. 55305](#) and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause [52.247-64](#).

(2) While not required, the Contractor may include in its subcontracts for commercial products and commercial services a minimal number of additional clauses necessary to satisfy its contractual obligations. (End of clause)

C5 52.216-18 Ordering (Aug 2020)

- (a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from contract award through the end of the IDIQ ordering period and as extended under FAR 52.217-8.
- (b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.
- (c) A delivery order or task order is considered "issued" when—
 - (1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;
 - (2) If sent by fax, the Government transmits the order to the Contractor's fax number; or
 - (3) If sent electronically, the Government either—
 - (i) Posts a copy of the delivery order or task order to a Government document access system, and notice is sent to the Contractor; or
 - (ii) Distributes the delivery order or task order via email to the Contractor's email address.
- (d) Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.

C6 52.216-19 Order Limitations (Oct 1995)

- (a) *Minimum order.* When the Government requires supplies or services covered by this contract in an amount of less than \$250, the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.
- (b) *Maximum order.* The Contractor is not obligated to honor—
 - (1) Any order for a single item in excess of \$250,000;
 - (2) Any order for a combination of items in excess of \$500,000 or

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(3) A series of orders from the same ordering office within two calendar days that together call for quantities exceeding the limitation in paragraph (b)(1) or (2) of this section.

(c) Notwithstanding paragraph (b) of this section, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within two days after issuance, with written notice stating the Contractor's intent not to perform and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

C7 52.216-22 Indefinite Quantity (Oct 1995)

- (a) This is an indefinite-quantity contract for the supplies or services specified and effective for the period stated in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.
- (b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the "maximum." The Government shall order at least the quantity of supplies or services designated in the Schedule as the "minimum."
- (c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.
- (d) Any order issued during the effective period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order to the same extent as if the order were completed during the contract's effective period; *provided*, that the Contractor shall not be required to make any deliveries under this contract after the end of the performance period of this contract.

C8 52.216-32 Task-Order and Delivery-Order Ombudsman (SEP 2019).

(a) In accordance with [41 U.S.C. 4106\(g\)](#), the Agency has designated the following task-order and delivery-order Ombudsman for this contract. The Ombudsman must review complaints from the Contractor concerning all task-order and delivery-order actions for this contract and ensure the Contractor is afforded a fair opportunity for consideration in the award of orders, consistent with the procedures in the contract.

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(b) Consulting an ombudsman does not alter or postpone the timeline for any other process (e.g., protests).

(c) Before consulting with the Ombudsman, the Contractor is encouraged to first address complaints with the Contracting Officer for resolution. When requested by the Contractor, the Ombudsman may keep the identity of the concerned party or entity confidential, unless prohibited by law or agency procedure.

(End of clause)

C9 52.217-8 Option to Extend Services (Nov 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. This option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The CO may exercise the option by written notice to the Contractor prior to the expiration of the contract.

C10 52.222-42 -- Statement of Equivalent Rates for Federal Hires (May 2014)

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In compliance with the Service Contract Labor Standards statute and the regulations of the Secretary of Labor (29 CFR part 4), this clause identifies the classes of service employees expected to be employed under the contract and states the wages and fringe benefits payable to each if they were employed by the contracting agency subject to the provisions of 5 U.S.C. 5341 or 5332.

*This Statement is for Information Only:
It is not a Wage Determination*

Employee Class	Monetary Wage -- Fringe Benefits
31010 – Airplane Pilot	\$37.65
Fringe benefits such as, life, accident, health insurance, and sick leave, are not less than 5.1 percent of the basic hourly rate. The percentage of the basic hourly rate that is contributed by the contracting agency for retirement is currently 7 to 17.5 percent. Fringe benefits also include 10 paid holidays, paid vacation time as follows: Two (2) hours of annual leave each week for an employee with less than three (3) years of service. Three (3) hours of annual leave each week for an employee with three (3) but less than fifteen (15) years of service. Four (4) hours of annual leave each week for an employee with fifteen (15) or more years of service.	

C11 DIAR 1452.201-70 Authorities and Delegations (SEP 2011)

(a) The Contracting Officer is the only individual authorized to enter into or terminate this contract, modify any term or condition of this contract, waive any requirement of this contract, or accept nonconforming work.

(b) The Contracting Officer will designate a Contracting Officer's Representative (COR) at time of award. The COR will be responsible for technical monitoring of the contractor's performance and deliveries. The COR will be appointed in writing, and a copy of the appointment will be furnished to the Contractor. Changes to this delegation will be made by written changes to the existing appointment or by issuance of a new appointment.

(c) The COR is not authorized to perform, formally or informally, any of the following actions:

- (1) Promise, award, agree to award, or execute any contract, contract modification, or notice of intent that changes or may change this contract;
- (2) Waive or agree to modification of the delivery schedule;
- (3) Make any final decision on any contract matter subject to the Disputes Clause;
- (4) Terminate, for any reason, the Contractor's right to proceed; or
- (5) Obligate in any way, the payment of money by the Government.

(d) The Contractor shall comply with the written or oral direction of the Contracting Officer or authorized representative(s) acting within the scope and authority of the appointment memorandum. The Contractor need not proceed with direction that it considers to have been issued without proper authority. The Contractor shall notify the Contracting Officer in writing, with as much detail as possible, when the COR has taken an action or has issued direction (written or oral) that the Contractor considers to exceed the COR's appointment, within 3 days of the occurrence. Unless otherwise provided in this contract, the Contractor assumes all costs, risks, liabilities, and consequences of performing any work it is directed to perform that falls within any of the categories defined in paragraph (c) prior to receipt of the Contracting Officer's response issued under paragraph (e) of this clause.

(e) The Contracting Officer shall respond in writing within 30 days to any notice made under paragraph (d) of this clause. A failure of the parties to agree upon the nature of a direction, or upon the contract action to be taken with respect thereto, shall be subject to the provisions of the Disputes clause of this contract.

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(f) The Contractor shall provide copies of all correspondence to the Contracting Officer and the COR.

(g) Any action(s) taken by the Contractor, in response to any direction given by any person acting on behalf of the Government or any Government official other than the Contracting Officer or the COR acting within his or her appointment, shall be at the Contractor's risk.

C12 Contractor Personnel Security Requirements

C12.1 It has been determined that Contractor personnel utilized in the support of this contract will not be allowed routine and regular unsupervised access to a federally controlled facility for more than 180 days, nor will they need unsupervised access to a Federally controlled Level 3 or 4 information system.

C12.2 Contractor employees utilized in support of this contract, will be treated as visitors (uncredentialed Contractor) and not be required to receive background investigations and credentialing. However, uncredentialed Contractors may be subject to the screening processes utilized at each federally controlled facility where the Contractor services are required. As a minimum, Contractor employees will be issued a temporary/visitor badge and shall display it at all times during contract performance when accessing a federally controlled facility. The COR is responsible for ensuring that all Contractor employees are issued a temporary/visitor badge.

C13 Addenda to DIAR 1452.201-70 OAS Technical Inspector/OAS Aviation Safety Manager

C13.1 OAS Technical Inspector

The OAS Technical Inspector is authorized to take any or all actions necessary to assure compliance with the technical portions of the contract. The OAS Technical Inspector will conduct all requested or required inspections.

The OAS Technical Inspector for this contract is:

ATTN: Supervisor, Aviation Safety Compliance DOI – Office of Aviation Services (OAS)
4405 Lear Court Anchorage, AK 99502
Phone: 907-271-5043
Fax: 907-271-4788

C13.2 OAS Aviation Safety Manager

The OAS Aviation Safety Manager (ASM) is responsible for all matters concerning accident and incident with potential investigations. The ASM is:

- DOI – Office of Aviation Services (OAS)
300 E. Mallard Dr., Ste 200
Boise, ID 83706-3991
Phone: 208-433-5071

SAFETY

C14 Safety and Accident Prevention

C14.1 The Contractor shall keep and maintain programs necessary to assure safety of ground and flight operations. The development and maintenance of these programs are a material part of the performance of the contract. Examples of such programs are (1) personnel activities, (2) maintenance, (3) safety, and (4) compliance with regulations.

C14.2 The Contractor must submit a copy of all reports required by the Federal Aviation Regulations that relate to pilot and maintenance personnel performance, aircraft airworthiness or operations to the Aviation Safety Manager (ASM).

C14.2.1 Examples of these reports are shown in paragraphs 14 CFR Part 135.415 Service Difficulty Reports (SDR) and Part 135.417 Mechanical Interruption Summary Reports required of the Federal Aviation Regulations, 49 CFR Part 830.5 and 49 CFR 830.15, and FAA Form 8010-4, Malfunction or Defect Report.

SECTION C – CONTRACT TERMS AND CONDITIONS

C15 Safety Management System (SMS)

C15.1 The Contractor must meet the FAA's SMS requirements for Part 135 or air tour operators operating under § 91.147 no later than May 28, 2027 (FAA Final Rule, May 2024). Evidence may consist of a letter, email, or other documentation from FAA, showing the SMS requirement has been met.

C15.2 The Contractor must have and maintain a Safety Management System (SMS) Manual for its organization.

C15.2.1 If requested, the Contractor must submit an electronic copy of its SMS Manual to the CO and Aviation Safety Manager. The Contractor's SMS Manual should include implemented practices vice a generic ready-made Manual that was purchased and never implemented.

C15.3 Contractor employees working under this contract must be familiar with the offeror's SMS Manual and be in compliance with its requirements.

C15.4 The government may perform a post-award assessment of the Contractor's familiarity with SMS and Contractor SMS Manual. The SMS review may be conducted remotely (virtually) or during an on-site assurance review and documented in CPARS. Exhibit 6 - Safety Management System (SMS), Flight Time, Accident History, and FAA Violation Questionnaire, as well as Contractor SMS Manual, will be the foundation of the OAS SMS review. If selected for review, the Contractor must cooperate with the SMS representative and provide the SMS information requested. Responses to Exhibit 6 (SMS Questionnaire) may be requested electronically (virtually) and/or reviewed during an on-site visit. Refer to Exhibit 6 for more information on the SMS Questionnaire.

C15.5 Additional information on SMS can be found at:

- FAA Advisory Circular 120-92D: https://www.faa.gov/regulations_policies/advisory_circulars/
- FAA initiatives: <https://www.faa.gov/about/initiatives/sms/>
- International Standard for Business Aircraft Operations (IS-BAO): <https://nbaa.org/flight-department-administration/sms/>

C16 Mishaps

C16.1 Following a mishap, and based on an investigation by the Agency Investigator In Charge (IIC), Bureau representative, and the CO, the Government will determine whether the Contractor was in compliance with contract terms and conditions or with the Federal Aviation Regulations applicable to the Contractor's operations, offeror policy, procedures, practices, or programs, or whether there was negligence on the part of the officers or employees that may have caused or contributed to the mishap. The Contractor must fully cooperate with the agency IIC, ASM, and CO during the evaluation.

C16.2 Mishap Definitions. As used throughout this contract, the following terms will have the meanings set forth below.

C16.2.1 The following terms are as defined in 49 CFR Part 830:

- Aircraft Accident
- Fatal Injury
- Incident
- Operator
- Serious Injury
- Substantial Damage

C16.2.2 Airspace Conflict. A near mid-air collision, intrusion, or violation of airspace rules.

C16.2.3 Aviation Hazard. Any condition, act, or set of circumstances that exposes an individual to unnecessary risk or harm during aviation operations.

SECTION C – CONTRACT TERMS AND CONDITIONS

C16.2.4 Incident with Potential. An incident that narrowly misses being an accident and in which the circumstances indicate significant potential for substantial damage or serious injury. Classification of an incident as an "Incident with Potential" is determined by the agency ASM.

C16.2.5 Maintenance Deficiency. An equipment defect or failure which affects, or could affect, the safety of operations or that causes an interruption to the services being performed.

C16.2.6 Mishap – Aviation Mishap. Mishaps include aircraft accidents, incidents with potential, aircraft incidents, aviation hazards, and aircraft maintenance deficiencies.

C16.2.7 SAFECOM (<https://www.safecom.gov/>). An agency Aviation Safety Communique used to report any condition, observance, act, maintenance problem, or circumstance, which has the potential to cause an aviation-related mishap. A SAFECOM's sole purpose is for mishap prevention. (Form OAS-34 or FS 5700-14).

C16.3 Mishap Reporting.

C16.3.1 For "Aircraft Accident" or NTSB reportable "Incident", the Contractor must immediately, and by the most expeditious means available, notify the NTSB, CO, and OAS ASM.

C16.3.2 For any mishap involving damage or injury, or overdue aircraft suspected of having an accident, the Contractor must immediately, and by the most expeditious means available, notify the OAS by calling 1-888-4MISHAP.

C16.3.3 In an effort to prevent future mishaps, the Contractor must report aviation hazards and maintenance deficiencies.

C16.3.4 The toll-free 24-hour Aircraft Accident Reporting Hot Line number is: 1-888-4MISHAP (1-888-464-7427)

C16.4 Mishap Investigations. It is the Department of the Interior's responsibility to investigate Interior aircraft mishaps. Refer to the Aircraft Mishap Notification, Investigation, and Reporting Handbook for more details: <https://www.doi.gov/aviation/library/guides>.

C16.4.1 The Contractor must maintain an accurate record of all aircraft accidents, incidents, aviation hazards, and injuries to Contractor or Government personnel arising during this contract.

C16.4.2 Following a mishap, the Contractor must ensure that pilots, mechanics or other personnel associated with the aircraft remain in the vicinity of the mishap until released by the CO or their designated representative. The Contractor must cooperate with the agency during any investigation and make available personnel and aircraft records, and any equipment, damaged or undamaged, that the agency deems necessary.

C16.5 Forms Submission.

C16.5.1 Following an "Aircraft Accident" or when requested by the NTSB following notification of a reportable "Incident," the Contractor must provide the OAS ASM with information necessary to complete a NTSB Form 6120.1 "Pilot/Operator Aircraft Accident Report".

C16.5.2 The Contractor must submit a SAFECOM within 5 days upon the occurrence of any condition, observance, act, maintenance problem, or circumstance which has potential to cause an aviation-related mishap. The SAFECOM submission instructions are available at: <https://www.safecom.gov>.

The submission of an NTSB Form 6120.1 does not replace the Contractor's responsibility to submit a SAFECOM.

C16.6 Pilot Suspension. See Suspension of Pilot in C17.

C16.7 Preservation Requirements. The Contractor must not permit removal or alteration of the aircraft, aircraft equipment, or records following an Aircraft Accident, Incident, or Incident with Potential until authorized to do so by the CO or other authorized agency representative. Permitted exceptions to this requirement may be when life or property are threatened, when the aircraft is blocking an airport runway, etc. The Contractor must immediately notify the OAS ASM, NTSB and the CO before taking such actions.

C16.7.1 The NTSB's release of the wreckage does not constitute a release by the CO and the agency Investigator In Charge (IIC).

SECTION C – CONTRACT TERMS AND CONDITIONS

C16.8 Costs Related to Investigation. The NTSB or agency will determine their individual agency's investigation cost responsibility. The Contractor will be fully responsible for any cost associated with the reassembly, approval for return-to-service, and return transportation of any items disassembled by the Government.

C16.9 Rescue and Salvage Responsibilities. The Contractor must be responsible for the cost of search, rescue, and salvage operations made necessary due to causes other than negligent acts of a Government employee.

C17 Suspension of Pilot

C17.1 Upon receipt of any information that indicates a safety concern or notification of a reportable incident as defined within 49 CFR 830.5, the Government (carding authority) **may** suspend the pilot from their duties and from any other activity authorized under the Interagency Pilot Qualification card(s), dependent upon any findings during the course of the investigation.

C17.1.2 Upon involvement in an Aircraft Accident, a pilot **will** be suspended from pilot duties and from any other activity authorized under the Interagency Pilot Qualification card(s). Their return to service is dependent upon any findings during the course of the investigation.

C17.1.3 Upon involvement in an Incident with Potential as defined under Mishaps, a pilot **may** be suspended from pilot duties and from any other activity authorized under the Interagency Pilot Qualification card(s), dependent upon any findings during the course of the investigation.

C17.1.4 When requested, a suspended pilot must surrender all Interagency Pilot Qualification card(s) to the OAS technical inspector or other authorized agency representative. A pilot's suspension will continue until the carding authority determines that no further suspension is required. The Interagency Pilot Qualification card(s) is returned to the pilot; or revoked by the issuing agency if the investigation fails to support a pilot's return to service.

C18 Aircraft Use Report

C18.1 The Contractor, or Contractor's representative, and the Government must complete and sign an Aircraft Use Report, AMD-23/23E form or other form as directed by the CO. An electronic report will be initiated by the Contractor in a Department of the Interior electronic reporting system that documents the daily services recorded on the signed AMD-23/23E or other form as directed by the CO. Hard copies of the signed AMD-23/23E are to be uploaded/attached to the electronic system.

C18.2 Supporting documentation as required by the contract to support actual additional pay items (i.e. relief transportation costs, tie-downs, landing fees, etc.) shall be attached electronically to the applicable Aircraft Use Report or other form as directed by the CO. Failure to include such documentation would result in rejection of the report back to the Contractor for inclusion and resubmission.

C18.3 Aircraft Use Reports or other form as directed by the CO are to be submitted no later than every two weeks or upon conclusion of a project, if less than two weeks duration.

C18.4 Subsequent electronic invoicing through IPP will match the same period as the Aircraft Use Report submission or other form as directed by the CO.

C19 Electronic Invoicing and Payment Requirements Invoice Processing Platform (IPP) (FEB 2021)

C19.1 Payment requests must be submitted electronically through the U. S. Department of the Treasury's Invoice Processing Platform System (IPP).

C19.2 "Payment request" means any request for contract financing payment or invoice payment by the Contractor. To constitute a proper invoice, the payment request must comply with the requirements identified in the applicable Prompt Payment clause included in the contract, or the clause 52.212-4 Contract Terms and Conditions – Commercial Items included in commercial item contracts. The IPP website address is: <https://www.ipp.gov>

C19.3 Under this contract, the following documents are required to be submitted as an attachment to the IPP invoice:

- Documents required are Aircraft Use Reports (AMD Form 23/23E) or other form as directed by the CO documenting daily services provided as set forth by their contract. This form must have the appropriate Government Representative signature approving the services.
- Supporting documentation as required by the contract to support actual additional pay items (i.e. relief transportation costs, tie-downs, landing fees, etc.). See C1.2.

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C19.4 The Contractor must use the IPP website to register, access and use IPP for submitting requests for payment. The Contractor Government Business Point of Contact (as listed in SAM) will receive enrollment instructions via email from the Federal Reserve Bank of St. Louis (FRBSTL) within 3–5 business days of the contract award date. Contractor assistance with enrollment can be obtained by contacting the IPP Production Helpdesk via email IPPCustomerSupport@fiscal.treasury.gov or phone (866) 973-3131.

C19.5 If the Contractor is unable to comply with the requirement to use IPP for submitting invoices for payment, the Contractor must submit a waiver request in writing to the contracting officer with its proposal or quotation.

C20 Aircraft Insurance

The Contractor must maintain as a minimum, aircraft insurance coverage required by 14 CFR, Part 205, during contract performance in accordance with DIAR 1452.228-71.

C20.1 DIAR 1452.228-71 Aircraft and General Public Liability Insurance (Mar 1989)

(a) The Contractor, at the Contractor's expense, agrees to maintain, during the continuance of this contract, aircraft liability and general public liability insurance with limits of liability for:

(1) Bodily injury to or death of aircraft passengers of not less than \$75,000 for any one passenger and a limit for each occurrence in any one aircraft of at least an amount equal to the sum produced by multiplying \$75,000 by 75 percent of the total number of passenger seats installed in the aircraft;

(2) Bodily injury to or death of persons (excluding passengers) of not less than \$75,000 for any one person in any one occurrence and \$300,000 for occurrence; and

(3) Property damage of not less than \$100,000 for each occurrence; or

(4) a single limit of liability for each occurrence equal to or greater than the combined required minimums set forth in paragraphs (a)(1) through (3) of this clause.

(b) The Contractor also agrees to maintain worker's compensation and other legally required insurance with respect to the Contractor's own employees and agents.

C20.2 Economic Price Adjustment - Insurance

C20.2.1 During the contract period the Contractor or Government may request an hourly flight rate adjustment set forth herein to reflect substantial (greater than 15%) increases and/or decreases in the cost of commercial aviation insurance. Requests must be made, annually, in writing to the Contracting Officer (CO) and include the required documentation regarding the base and reference prices.

C20.2.2 The Contractor warrants that the prices offered for this contract do not include any allowances for any contingency to cover increased costs for which adjustment is provided under this section.

C20.2.3 Base Price. The base price is the premium the Contractor paid for each aircraft at time of contract award. An insurance statement will be required to document this base price if an increase or decrease is requested.

C20.2.4 Reference Price. The reference price is the insurance premium for the upcoming year, showing the documented (substantial) increase or decrease. An insurance statement will be required to document this referenced price if an increase or decrease is requested.

C20.2.5 Adjustments to flight rates based on insurance premium changes must be due to industry changes and not due to the Contractor's circumstances (accidents, aircraft additions/removals, etc.). Requests will be evaluated and considered by the CO. It is at the Government's discretion to approve any rate adjustments. The CO will make the final determination to adjust rates through a bilateral modification.

C20.2.6 Flight Rate Adjustment. Adjustment to the flight rate is one-half the difference between the Base Price and Reference Price divided by 100 to come up with a change percentage. The change percentage will be applied to the current contract flight rate to establish an updated rate. Amounts of 50 cents or less will be rounded down and amounts of 51 cents or more will be rounded up. The updated rate(s) will be finalized via bilateral contract modification. The effective date of the rate will be stated on the bilateral modification signed by the CO.

SECTION C – CONTRACT TERMS AND CONDITIONS

C20.3 One Time Rate Refresh

C20.3.1 The Contractor may submit a one-time request for a rate refresh during the five-year ordering period of this Indefinite Delivery/Indefinite Quantity (IDIQ) contract. This rate refresh may apply to the flight rate, standby and daily availability rate, as applicable.

C20.3.2 Timing: The Contractor may submit the rate refresh request no earlier than 12 months after contract award and no later than 48 months after the effective date of the base contract.

C20.3.3 Submission Requirements: The request must include detailed justification for the proposed rate changes, including supporting data such as market surveys, escalation indices (e.g., Bureau of Labor Statistics), or internal cost data. The Contractor must clearly identify the affected rates and provide both current and proposed rates.

C20.3.4 Review and Approval: The Government reserves the right to accept, reject, or negotiate the proposed rates. Approved rate changes will apply only to task orders issued after the effective date of the modification incorporating the new rates.

C20.3.5 Limitations: Only one rate refresh request will be considered during the entire five-year ordering period. This provision does not constitute an Economic Price Adjustment (EPA) unless otherwise specified in the contract.

C21 Contractor Onboarding Procedures

The Government reserves the right to announce a new competition (onboarding) for the purpose of adding additional small business, multiple award, indefinite delivery, indefinite quantity (IDIQ) contract holders. Onboarding procedures may be implemented at any time over the life of the contract by reopening the competition and utilizing the same basis of award established in the original solicitation (140D0425R0090). Bureau customers can initiate the need for additional contract holders by contacting the Contracting Officer. The Contracting Officer will assess the need for additional support. Should additional support be required, the Contracting Officer will publicize a notice in the Government Point of Entry (www.sam.gov), issue a solicitation amendment, and complete evaluation in the same manner as the initial solicitation. Contracts awarded utilizing the onboarding procedures will include the same terms and conditions as those in the initially awarded contracts. Neither the overall period of performance nor the ceiling of the basic contract will be revised as a result of implementing the onboarding procedures.

C22 Contractor Performance Assessment Reporting System (DEC 2015)

(a) [FAR 42.1502](#) directs all Federal agencies to collect past performance information on contracts. The Department of the Interior (DOI) has implemented the Contractor Performance Assessment Reporting System (CPARS) to comply with this regulation. One or more past performance evaluations will be conducted in order to record your contract performance as required by [FAR 42.15](#).

(b) The past performance evaluation process is a totally paperless process using CPARS. CPARS is a web-based system that allows for electronic processing of the performance evaluation report. Once the report is processed, it is available in the Past Performance Information Retrieval System (PPIRS) for Government use in evaluating past performance as part of a source selection action.

(c) We request that you furnish the Contracting Officer (CO) with the name, position title, phone number, and email address for each person designated to have access to your firm's past performance evaluation(s) for the contract no later than 30 days after award. Each person granted access will have the ability to provide comments in the Contractor portion of the report and state whether or not the Contractor agrees with the evaluation, before returning the report to the Assessing Official (AO). Information in the report must be protected as source selection sensitive information not releasable to the public.

(d) When your Contractor Representative(s) are registered in CPARS, they will receive an automatically generated email with detailed login instructions. Further details, systems requirements, and training information for CPARS is available at <https://www.cpars.gov/>.

(e) Within 60 days after the end of a performance period, the AO will complete an interim or final past performance evaluation, and the report will be accessible at <https://www.cpars.gov/>.

(i) Contractor Representatives may then provide comments in response to the evaluation or return the evaluation without comment.

(ii) Your comments should focus on objective facts in the AO's narrative and should provide your views on the causes and ramifications of the assessed performance.

SECTION C – CONTRACT TERMS AND CONDITIONS

(iii) All information provided should be reviewed for accuracy prior to submission.

(iv) If you elect not to provide comments, please acknowledge receipt of the evaluation by indicating "No comment" in the space provided, and then selecting "Accept the Ratings and Close the Evaluation".

(v) Your response is due within 60 calendar days after receipt of the CPAR. On day 15, the evaluation will become available in PPIRS-RC marked as "Pending" with or without comments and whether or not it has been closed.

(vi) If you do not sign and submit the CPAR within 60 days, it will automatically be returned to the Government and will be annotated: "The report was delivered/received by the contractor on (date). The contractor neither signed nor offered comment in response to this assessment."

(f) The following guidelines apply concerning your use of the past performance evaluation:

(i) Protect the evaluation as source selection information. After review, transmit the evaluation by completing and submitting the form through CPARS. If for some reason you are unable to view and/or submit the form through CPARS, contact the CO for instructions.

(ii) Strictly control access to the evaluation within your organization. Ensure the evaluation is never released to persons or entities outside of your control.

(iii) Prohibit the use of or reference to evaluation data for advertising, promotional material, pre-award surveys, responsibility determinations, production readiness reviews, or other similar purposes.

(g) If you wish to discuss a past performance evaluation, you should request a meeting in writing to the CO no later than seven days following your receipt of the evaluation. The meeting will be held in person or via telephone or other means during your 60-day review period.

(h) A copy of the completed past performance evaluation will be available in CPARS for your viewing and for Government use supporting source selection actions after it has been finalized.

C23 Prework Meeting

A prework meeting between the Government and the Contractor along with their primary crew members may be held virtually or in person at or near the starting designated base and is usually in conjunction with the start of the contract period. The Contractor's primary crew members must attend any prework meeting. The meeting may include, but is not limited to: (1) basic review of the contract; (2) ordering procedures; (3) operational procedures (dispatch, flight following, hazard/risk assessment and reduction, airspace coordination, incident/accident reporting, etc.); (4) measurement and payment; and (5) review of the local base procedures. This meeting is administrative in nature and is not intended for technical inspection purposes.

C24 Contract Period

The contract period of performance is a five-year ordering period from April 1, 2026, through March 31, 2031. It will also include a six-month extension if 52.217-8 is exercised.

C25 Add/Remove Aircraft after Contract Award

After contract award and initial inspection, the Contractor may request to add or remove aircraft. All requests must be made in writing to the Contracting Officer. The aircraft requested must meet the minimum requirements set forth in this contract. Requests must include a pricing sheet, the FAA Operation Specifications showing the aircraft, and an Aircraft Questionnaire and weight and balance for the aircraft type offered. Requests will be considered quarterly by the Contracting Officer. Each request will be evaluated by the DOI based on the needs of the Government. It is at the Government's discretion to approve the additional aircraft. The Contracting Officer will make the final determination to add aircraft to a contract through a bilateral modification. The Contractor may contact OAS regarding scheduling aircraft inspection only after finalization of a bilateral modification to add the aircraft to the contract.

The request to remove aircraft can be done anytime during the contract period and is accomplished by bilateral modification.

C26 Orders for Services

C26.1 The Government will award individual task orders against this contract based on best value for the specific government requirement. Best value determinations will be made by comparing aircraft capability and equipment, pilot qualifications and past performance, aircraft location, availability and cost estimate for the requirement. Contracted flight rates, pilot details, and aircraft information will be found on the Resource List. The Resource List is a list available to DOI, which contains all OAS carded aircraft and pilots on contract. The List shows all contract rates, as well as OAS carding details.

SECTION C – CONTRACT TERMS AND CONDITIONS

C26.1.1 For requirements under the Simplified Acquisition Threshold (SAT), which is currently \$250,000, the Government will use estimated flight costs (flight time estimates multiplied by the contracted flight rates), estimated standby, fuel costs, and any other estimated project costs (i.e., ferry time (the flight time to get from Contractor's base to project location), per diem, landing fees, etc.) to assist in determining best value. Requestors may ask for flight time and fuel estimates to aid in creating cost comparisons/estimates. Requestors should check availability with the recommended Contractor. The Contracting Officer makes the final determination regarding task order award.

C26.1.2 For requirements over the SAT, a task order proposal request will be sent via email to every DOI fixed wing on call Contractor. Mission specifics, to include aircraft and pilot requirements, estimated period of performance, project location, and any other relevant details will be included. Interested Contractors will submit proposals to the Contracting Officer by the date specified in the email. Selection will be made based on best value to the Government. Rates higher than the contract rates will not be accepted, but Contractors may propose rates lower (discounted) than their contract for that specific requirement.

C26.2 Tradeoffs may be made to determine which Contractor provides the best combination of aircraft, location, past performance and price given the specific requirement.

C26.3 The Government's urgency in acquiring services may be a factor and override any other criteria identified above.

C26.4 Notice of project award (task order signed by a Contracting Officer) will be sent to the Contractor and the requestor via email.

C26.5 The Government **does not guarantee** the placement of orders for service under this contract, and the Contractor is not obligated to accept an order. However, once the Contractor accepts an order, the Contractor is obligated to perform in accordance with the terms and conditions stated herein.

C27 Availability Requirements

During the contract period and any extension, the Contractor must be in compliance with all contract requirements and available and capable of providing service each day as scheduled by the Government. Pre- and post-flight activities must be accomplished within the duty day. Routine maintenance must be performed before or after the scheduled duty day, or as permitted elsewhere in the contract.

C28 Schedule of Operations and Reaction Time

The Government will schedule daily operations with the pilot. The Contractor's personnel must provide service, as directed by the Government, in one of the following categories:

C28.1 Reaction Time. Personnel must be ready each day as scheduled for takeoff/dispatch within 15 minutes (or longer as authorized by the Government, e.g. flight planning purposes for long range dispatch) after the Government attempts to contact the Contractor's representative.

C28.2 Release From Duty. Contractor personnel may be released and considered to be off duty prior to lapse of their individual crew duty limitation period. Once released, they cannot be required to return to duty status without the appropriate consecutive hours of rest (off duty) prior to any assigned duty period, provided the advance release of the Contractor's personnel was approved by the customer in advance.

C29 Contract Non-compliance

C29.1 The Contractor will not be considered for contract work when they are not in compliance with all contract requirements or are not capable of providing service as scheduled by the Government. Contractor aircraft and/or pilot(s) will be removed from the Resource List and will not be available for Government use until the Contractor has notified the CO and OAS Technical Inspector that they are available, and they are satisfied that all the conditions below have been met.

C29.1.2 The Contractor may be required to demonstrate their contract compliance by providing documented evidence to the CO and OAS Technical Inspector that the deficiency has been corrected within 60 calendar days of the inspection completion. Evidence must be in the form of a completed deficiency package (OAS-68D) and at the Inspector's request, pictures and/or aircraft record/logbook entries documenting the corrective action, including the date, signature and certificate number of the person clearing the deficiency. Depending on the magnitude of the deficiency, a physical inspection by an OAS Inspector may be required.

C29.1.3 Once the documented evidence is approved by the CO and OAS Technical Inspector, the Contractor will be shown as available on the Resource List.

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C29.2 During periods of Contractor non-compliance, the CO may obtain replacement services elsewhere and charge the Contractor for any resulting excess costs. The Contractor may be liable for any additional actual damages to the Government resulting from such failure to perform.

C29.3 If the Contractor is unable to comply with contract requirements due to conditions beyond their control, the Contractor needs to notify the CO and OAS Technical Inspector of the situation as soon as possible for a compliance determination.

C30 Measurement and Payment (Standby, Guarantee, Flight Time)

C30.1 Contract Pricing. Unit prices for flight hours, standby and guarantee must be in whole dollars. If these unit prices are adjusted during the life of the contract, they will be adjusted to a whole dollar as follows: amounts of 50 cents or less will be rounded down and amounts of 51 cents or more will be rounded up.

C30.2 Standby. Standby is only earned when the pilot is held in a **ready** status, awaiting direction from the Government for future flight needs (Government operational control). The Contractor cannot conduct flights for anyone else during standby time due to this ready status for the Government. The Government will pay for standby time when it is properly invoiced and reported on the Aircraft Use Report Form, at the rate stipulated on the Pricing Sheet in Section A3. This applies to situations when the Contractor is held away from their base overnight, as well as single day missions.

For Example:

Scenario 1: One (1) hour flight to a location. The Bureau Rep tells the Contractor that they will be doing work for five (5) hours in the field then one (1) hour flight to next location. The Contractor would be authorized five (5) hours of standby and two (2) hours of flight time. In the event after the five (5) hours Bureau person states that there has been a change and they are not going to fly, the Contractor is still authorized the five (5) hours of standby that they waited and one (1) hour of flight time.

Scenario 2: Fly one (1) hour to location and drop persons/cargo off, then Contractor flies one (1) hour back to base. No other flights that day. No standby is authorized. Contract would be authorized two (2) hours of flight time.

Scenario 3: Scheduled to fly at 9 a.m., but due to weather delays, the flight cannot depart. The Bureau Rep instructs the Contractor to maintain a ready status until 11 a.m., to reassess. The Contractor would be authorized two (2) hours of standby from 9 a.m. – 11 a.m. regardless of whether flight occurs at 11 a.m.

C30.2.1 The Contractor may offer more favorable standby terms (e.g., free standby equal to hours flown, discounted standby for longer projects, no standby, etc.). The more favorable terms may be agreed to in advance and included on the task order.

C30.2.2 Standby will **not** be earned for routine operational stops such as passenger exchange, cargo loading/unloading, fuel stops, lunch breaks or acts of God, such as weather, which prevent continuation of the flight.

C30.2.3 When standby occurs at the Contractor's base of operations, the Government traveler may release the Contractor, to utilize the aircraft for their own purposes, provided the Contractor returns the aircraft one hour in advance of the departure time specified by the Government traveler. No standby charge may accrue if this option is chosen, and no flight time will be earned while the Contractor is operating the aircraft for their own purposes.

C30.2.4 When a Contractor is held away from their base of operations, standby is only applicable for the time when the pilot is held by the Government in a ready status (Government operational control), awaiting flight direction for future flight needs. This is not intended to compensate the pilot for all their time spent away from base. Flight time, guarantee and standby combined cannot exceed the 14-hour duty day.

C30.2.4.1 Standby will not be accrued after the aircraft is released to the Contractor's designated base..

C30.3 Guarantee. Payment of Guarantee Averaged over Period of Hire. When the Contractor is required to remain overnight away from the Contractor's aircraft base of operations identified in Section A, the Government will pay the Contractor a flight hour guarantee when documented on the Aircraft Use Report Form for payment. Payment will be made, by individual project, for the greater of (1) actual flight time including ferry time to and from the project location, or (2) a total guarantee determined by

SECTION C – CONTRACT TERMS AND CONDITIONS

multiplying the number of days of ordered service by the guarantee of flight (**3 hours**) per day. Guarantee will not accrue after the aircraft is released, even though the aircraft may not depart the work site immediately after release.

C30.3.1 Guaranteed flight hours due will be billed upon **conclusion** of the project. A one-line entry should be included on the Aircraft Use Report form, under the fee-based section, showing the flight time due with GTD used as the Pay Item Code. Payment for the guarantee due will be made at the flight rate specified in Section A.

C30.3.2 When Contractor service is unavailable, the minimum guarantee as specified above will be reduced by the length of time service is unavailable for that day.

NOTE: It is the Contractor's responsibility to calculate and claim guaranteed flight hours due on the Aircraft Use Report form and submit via the DOI electronic invoice/use report system. It is not the Government's responsibility to ensure Contractors are claiming any guarantee due. Any guarantee due must be claimed on the last Aircraft Use Report submitted for the project.

C30.4 **Designated Base.** This is the site indicated in Section A where the aircraft is based per the contract. The Contractor is eligible for payment for flight time (ferry) to report to and from the requested project location.

C30.5 When the Contractor elects not to immediately return to the original location of hire or departs for a new work site when released from the project, all payable items for the order end at the time of release.

C30.6 For one-day flights where the Contractor is unable to immediately return to the location of hire because sufficient time is not available for the return trip, it is appropriate for the Government to make payment for per diem, flight time and fuel, as it is incurred for return to the hired location the following morning. (i.e. release occurs at 8:00 p.m. but sufficient time is not available for the aircraft to immediately return to its location of hire the same day, it would be appropriate to pay per diem, flight time and fuel to the hired location the following morning when it is actually incurred.) If these expenses are not anticipated in advance and funded/authorized on the task order, a bilateral modification must be completed prior to expenses being incurred in the field.

C30.7 **Flight Time.** Measurement of Flight Time. Flight will be measured from the time the aircraft commences its take-off roll until it returns to the blocks. Elapsed time will be measured in hours and tenths/hundredths of hours.

C30.8 Flights Associated with Inspections. Flight time associated with the DOI, Office of Aviation Services (OAS) inspection, unless otherwise specified in this contract, will be at the expense of the Contractor and will not be measured for payment.

C30.9 Flights for Contractor's Benefit. The Government will not pay for flights benefiting the Contractor, such as flights for maintenance testing, for ferrying to and from maintenance facilities, flights required following an engine change, commercial charters, and flights solely for transporting Contractor's personnel.

C30.10 The Government will pay for mobilization and demobilization (ferry time) by the Contractor for ordered services. The Contractor will be paid flight time to and from the Contractor's aircraft Base of Operations as specified in Section A3 or the location of the aircraft at the time of hire, whichever is in the best interest of the Government.

NOTE: Flight hours for mobilization/demobilization count toward flight hour guarantee.

C31 Measurement and Payment (Daily Availability) and Government Fixed Flight Rate

C31.1 The daily availability rate should include all fixed and variable costs (depreciation, salaries, overhead, annual inspections, permanent shop facilities, etc.) incurred in providing continuous service exclusive of those costs directly attributable to actual flight.

C31.2 Contract Pricing. Unit prices for daily availability must be in whole dollars. If these unit prices are adjusted during the life of the contract, they will be adjusted to a whole dollar as follows: amounts of 50 cents or less will be rounded down and amounts of 51 cents or more will be rounded up.

C31.3 Availability is measured in full days for the daily period of time (maximum of 14 hours) scheduled by the Government and provided by the Contractor.

C31.3.1 Measurement of daily availability commences and ends when the aircraft departs its location of hire for the assigned work location and arrives at the same location of hire immediately upon release from the project, except as specified below. For purposes of this clause, time is computed based on the time zone at the point of each departure.

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C31.3.1.1 For incidents where the Contractor elects not to immediately return to the original location of hire or departs for a new work site when released from the project, all payable items for the order end at the time of release.

C31.3.1.2 For one-day incidents where the Contractor is unable to immediately return to the location of hire because sufficient time is not available for the return trip, it is appropriate for the Government to make payment for subsistence, flight time and fuel, as it is incurred, for return to the hired location the following morning. (i.e. release occurs at 8:00 p.m. but sufficient time is not available for the aircraft to immediately return to its location of hire the same day, it would be appropriate to pay subsistence, flight time and vehicle mileage to the hired location the following morning when it is actually incurred, but daily availability ended at the time of release the previous day.)

C31.4 Services commencing after 1200 hours on the first day of service or terminating before 1200 hours on the last day will be measured as one-half day (.5 AV) for purposes of daily availability payments.

C31.5 Unavailability. The Contractor will be considered to be unavailable when they are not in compliance with all contract requirements or are not capable of providing service as scheduled by the Government. Unavailability status will continue until the Contractor has notified the Flight Manager that they are available.

C31.5.1 Payment will be reduced for each hour, or portion thereof, in accordance with the Unavailability Conversion Chart, Exhibit 11, when services are unavailable or when the aircraft has been released for the Contractor's benefit.

For Example: The aircraft requires unexpected maintenance and is unavailable for 2 hours. The Daily Availability rate will be paid at .86 or 86%.

C31.6 **Flight Time.** Measurement of Flight Time. Flight will be measured from the time the aircraft commences its take-off roll until it returns to the blocks. Elapsed time will be measured in hours and tenths/hundredths of hours.

C31.7 Payment for Flight Time. The Government will pay for all flights ordered by the CO and flown by the Contractor at the rate set forth in Section A. A fixed hourly flight rate is set by the Government (See Section A) and is exclusively accompanied by the bid daily availability rate. The Government does not guarantee any minimum or maximum number of flight hours during this contract.

Flights Associated with Inspections. Flight time associated with the DOI, Office of Aviation Services (OAS) inspection, unless otherwise specified in this contract, will be at the expense of the Contractor and will not be measured for payment.

C31.8 Flights for Contractor's Benefit. The Government will not pay for flights benefiting the Contractor, such as flights for maintenance testing, for ferrying to and from maintenance facilities, flights required following an engine change, commercial charters, and flights solely for transporting Contractor's personnel.

C32 Additional Pay Items (from Schedule of Items)

C32.1 Additional pay items addressed herein must be documented on the invoice for payment and supported with documentation as identified in C14.2.

C32.1.1 The Government will not pay invoices submitted with incomplete or missing supporting documentation.

C32.2 Travel will be in accordance with the Federal Travel Regulations (FTR) currently in effect on the date of travel and FAR 31.205-46. In accordance with FAR 31.205-46, Cost for lodging, meals, and incidental expenses may be based on per diem, actual expenses, or on a combination thereof, provided the method used results in a reasonable cost. Therefore, the Government will utilize a combination of methods to determine reasonable cost. **The per diem rates can be found at <https://www.gsa.gov/portal/content/104877>.**

C32.2.1 Meals and incidentals will be reimbursed at the applicable maximum per diem rates per location. Lodging will be reimbursed at the applicable maximum per diem rates per location. In locations, where costs may be escalated because of special or unusual events, and lodging within prescribed allowances cannot be obtained, actual costs not to exceed 300% above per diem may be authorized. When known in advance, the Contractor should notify the Contracting Officer that lodging costs for their travel will exceed per diem. In the written notification, the travel dates, lodging location(s), and estimated lodging costs should be provided. When not known in advance, the Contractor should notify the Contracting Officer as soon as practicable. A signed written justification for the use of the higher rate must be provided by the Contractor with the submission of the invoice. Receipts* **ARE** required for all lodging expenses.

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NOTE: Lodging receipts are **NOT required when lodging is provided by the Government.*

C32.2.2 If the Contractor does not use Government- provided meals and/or lodging, the Government will **NOT** reimburse the Contractor for costs incurred utilizing an alternate method of procuring meals or lodging accommodations. Mileage will **NOT** be paid for transportation to and from lodging accommodations or meals.

C32.2.3 Per Diem (lodging, meals, and incidentals) is authorized when the crew is away from their designated base for overnight stays. Per Diem is authorized for the flight crews' mandatory days off, unless a relief crew is provided.

C32.3 Fuel Supply Expense. The Contractor is responsible for the cost of all fuel required for contract performance. The Contractor will be reimbursed for fuel used for contract performance when properly invoiced. See C14.2 for invoicing instructions.

C32.3.1 The Government may furnish fuel if available.

C32.4 Miscellaneous Contractor Costs. Miscellaneous unforeseeable costs that cannot be recovered through the contract payment rates and are the direct result of ordered services away from the designated base may be reimbursed at actual costs. Examples of such items are airport use costs (tie-downs, hangar rentals, and truck permits at ports-of-entry, etc.). The Contractor must support any cost exceeding \$75.00 with an itemized, paid invoice.

C32.5 Landing Fees. The Government will pay the Contractor for all landing fees the Contractor is required to pay. The Contractor must support any cost exceeding \$75.00 with an itemized, paid invoice.

C32.6 Co-Pilot Fees. In the rare event that a co-pilot is required by DOI, a fair and reasonable fee will be negotiated and included on the awarded task order.

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EXHIBITS

The following exhibits are enclosed and made part of the contract:

1. Unacceptable Aircraft Lap Belt and Shoulder Harness Conditions
2. Recognized Airplane Mountain Training Flying Schools
3. Minimum First Aid Kit Items
4. Airplane Fuel Consumption Rates
5. Like Make and Models
6. Safety Management System (SMS), Flight Time, Accident History, and FAA Violation Questionnaire
7. Statement of Equivalent Rates for Federal Hires
8. Department of Labor Wage Determination
9. Aircraft Questionnaire
10. RESERVED
11. Unavailability Conversion Chart

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**EXHIBIT 1:
UNACCEPTABLE AIRCRAFT LAP BELT AND SHOULDER HARNESS CONDITIONS**

Item	Unacceptable Conditions
Webbing	1. Frayed: 5 percent or more 2. Torn 3. Crushed 4. Swelling: Twice the thickness of original web or if difficult to operate through hardware 5. Creased: No structural damage allowed 6. Sun deterioration: Severe fading, brittleness, discoloration, and stiffness
Hardware	1. Inoperable buckle or other hardware 2. Nylon bushing at shoulder-harness-to-lap-belt connection missing or damaged 3. Fabricated bushings or tie wraps used as bushings 4. Rust/corrosion: Only minor surface rust/corrosion allowed 5. Wear: Wear beyond normal use 6. Use of any devices such as tie-wraps, safety wire, clamps etc., to attach shoulder harness buckles to lap belts buckles.
Stitches	1. Broken or missing 2. Severe fading or discoloring 3. Inconsistent pattern
TSO Tags (see 14 CFR 21.607)	1. Missing 2. Illegible
Age	Belts/fabric over 10 years from date of manufacture will be closely inspected for possible damage from exposure to the elements, but do not have to be replaced if they can be determined to be in serviceable condition.

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EXHIBIT 2 RECOGNIZED AIRPLANE MOUNTAIN TRAINING FLYING SCHOOLS

The following two flight schools are recognized by the Government as “approved” mountain flying schools. Written proof of successful graduation from one of these schools will substitute for 100 hours of mountainous terrain experience.

1. Summit Aviation, Inc.
490 Gallatin Field Rd.
Belgrade, MT 59714
2. McCall Mountain/Canyon Flying Seminars, LLC
P.O. Box 1175
McCall ID 83638

Other flight schools may be considered as approved by OAS if they can demonstrate mountain flying curriculum that includes a minimum of the following course material and flight proficiency demonstrations:

1. Mountain flying aircraft preflight.
2. Mountain weather understanding.
3. Flight/route planning.
4. Aircraft performance calculations.
5. Density altitude calculations.
6. High altitude takeoffs and landings.
7. Mountain flying techniques/confined space maneuvers.
8. Mountain flying aircraft performance issues.
9. Landing area selection parameters.
10. Flying in proximity to ridge lines, in canyons, over valleys.
11. High altitude issues and physiology.
12. Mountainous terrain navigation.
13. Minimum of 8 to 10 hours of actual mountain flying (in actual mountains).
14. Minimum of 14 hours of ground instruction.
15. School must meet all Federal Aviation Administration requirements for a pilot proficiency program.
16. School must be either a fixed-base operator (FBO) or in a partnership with an FBO.

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EXHIBIT 3: MINIMUM FIRST AID KIT ITEMS

These are the minimum required items for special use activities in the United States and U.S. possessions. Additional survival kit items are included below for flight activities conducted in Canada and Alaska.

Minimum First Aid Kit Items		
Each kit must be in a dust-proof and moisture-proof container.		
The kit must be readily accessible to the pilot and passengers.		
Passenger Seats	Passenger Seats	
Item	0-9	10-50
Adhesive bandage strips, (3 inches long)	8	16
Antiseptic or alcohol wipes (packets)	10	20
Bandage compresses, 4 inches	4	8
Triangular bandage, 40 inches (sling)	2	4
Roller bandage, 4 inches x 4.5 yards (gauze)	2	4
Adhesive tape, 1 inch x 5 yards (standard roll)	1	2
Bandage scissors	1	1
Body fluids barrier kit:	1	1
2 pair nitrile or non-latex gloves	1 protective gown	
1 face shield	2 antiseptic towelettes	
1 mouth-to-mouth barrier	1 biohazard disposable bag	
Note: Splints are recommended if space permits.		
Minimum Aircraft Survival Kit Items		
• Fire starter (can be two boxes of matches in waterproof containers, “metal match” etc.) • Magnesium fire starter • Signal mirror • Whistle • One knife (includes “multi-tools” with knives) • Wire saw, axe, hatchet, or machete • Nylon rope or parachute cord (50 feet, minimum 1/8 inch [3mm] thick) • Collapsible water container (Sealing clear plastic bag(s)) • Water purification tablets • Water (one quart per occupant required except when operating over areas without adequate drinking water) • Food (2 days emergency rations per occupant, with a caloric value of 1,000 calories per day) • At least one of the following will be in the aircraft: ○ Automated flight following system ○ Satellite phone ○ 406 MHz personal locator beacon (PLB) with GPS or aircraft-mounted 406 MHz ELT ○ Handheld UHF or VHF radio		
Alaska Specific		
Rations for each occupant to sustain life for one week		
One Axe or hatchet		
An assortment of fishing tackle such as hooks, flies, lines, sinkers, etc.		
One mosquito head net for each occupant		
Mosquito repellent containing minimum 40% DEET		
Laser rescue light		
Signal flares (4 EACH)		
Personal Locator Beacon (PLB) Note: Required only if aircraft ELT requires tools to be removed.		
October 15 to April 1		
Pair of snowshoes (1)		
One sleeping bag (1)		
Wool blanket or equivalent for each occupant over 4 years of age (1)		
See the following ALSE link for other recommended survival kit items.		
https://www.doi.gov/sites/doi.gov/files/uploads/interagency_alse_handbook_v2.8.pdf		

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EXHIBIT 4: AIRPLANE: APPROXIMATE “RECOMMENDED CRUISE” FUEL CONSUMPTION RATES

AIRCRAFT	GAL/HOUR	AIRCRAFT	GAL/HOUR	AIRCRAFT	GAL/HOUR
<u>AIR TRACTOR</u>		<u>CASA</u>		<u>NORTH AMERICAN</u>	
AT-802-65	82T	Aviocar 212	105T	AT-6	18
AT-802-67	86T			T-28	80
AT-802-67F	90T	<u>CONSOLIDATED</u>		<u>QUEST</u>	
AT-802-331	80T	Convair 580/600	338T	Kodiak K100	47T
<u>BEECH</u>		<u>DE HAVILLAND</u>		<u>PILATUS</u>	
Baron 55/58	29	Beaver	30	PC-12	77T
Baron 58P	35	DH-6 Twin Otter	82T		
18/45	35	Beaver T	40T	<u>PIPER</u>	
King Air 90 (Series)	70T	DH-7	234T	Super Cub PA-18	9
King Air 100	80T	DH-8	183T	Pawnee PA-25	13
King Air 200	82T			Arrow PA-28R	10
King Air 300	90T	<u>DORNIER</u>		Cherokee PA-28-140/161	8
Mentor T-34	14	DO-228	90T	Cherokee 6 PA-32	14
Mini Liner 99	85T			Aztec PA-23	27
Queenair	43	<u>EMBRAER</u>		Comanche PA-24	15
T-Bone B-50	45	PW 115 (1600)	159T	Navajo PA-31	32
Duke	38			Cheyenne PA-31T	77T
Queenair 80	34	<u>FALCON</u>		Cheyenne II PA-42T	74T
Bonanza 33/35/36	14	10	175T	Aerostar 600/601/602P/700P	33
<u>BELLANCA</u>		20	240T	Cheyenne III PA-42T	110T
Citabria/Scout	9	50	300T	Chieftan PA-31-350	34
<u>BOEING</u>		<u>FAIRCHILD</u>		Lance PA-32-300	16
727	1000T	Porter	44T	Seneca II/III PA-34	20
DC-3T	150T	F-27	288T	Mojave PA-31P	39
DC-3	93	SF 340	161T	Malibu PA-46	15
DC-9	700T			PA-42-1000 400LS	75T
<u>BOMBARDIER</u>		<u>GRUMMAN</u>		<u>QUEST</u>	
CL-215	150	S2F	75	Kodiak	47T
CL-215T	237T	Goose	50		
CL-415	237T	Goose T	80T	<u>ROCKWELL</u> (Gulfstream)	
<u>BRITTEN-NORMAN</u>		Mohawk	180T	680	40
Islander	30	Albatross	160	500	34
<u>CESSNA</u>		G-I	288T	690A/B	75T
L-19	11	G-II	529T	Sabreliner	200T
172	9	G-III	370T	560	33
180	14			840	65T
182	12	<u>HELIO</u>		900	55T
182RG	14	Courier	20	1000	57T
185	16	Stallion	44T		
188	12			<u>SWEARINGEN</u>	
206/207	16	<u>ISRAEL</u>		Merlin II, III SA 226/7	78T
T206/207	18	1121/1123/1124	190T		
210	16	<u>LOCKHEED</u>		<u>SHORT</u>	
T210	18	P-3/C-130/Electra 188	661T	Skyvan	85T
320	28	Jetstar	374T		
310	32			<u>VOLPAR</u>	
T310	34	<u>LEAR JET</u>		TurboLiner	74T
337	24	25	220T		
T337	26	35/36	185T	<u>VULCANAIR</u>	
401	28	55	200T	P68C	20
402	36			P68TC	24
404	46	<u>MAULE</u>			
411	34	M4-5	9		
414	36	M7	13		
421	46				
340	36	<u>MITSUBISHI</u>			
425	56T	MU-2	77T		
441	52T				
Citation I	140T	<u>MOONEY</u>			
Citation II, III	160T	Exec	10		
208 Caravan I	53T				
		<u>NOMAD</u>			
		22B/24A	53T		

“T” after the gallons indicated turbine fuel.
Everything else is AVGAS.

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EXHIBIT 5:

LIKE MAKE AND MODELS

Aircraft within each block are considered like make and model
Airplanes with the same type rating designation are considered like make and models.

Reciprocating Engine Airplanes

<u>Make</u>	<u>Model</u>
American Champion	7ECA, 7GCAA, 7GCBC, 7KCAB, 8GCBC
Aviat	A-1, A-1A, A-1B, A-1C
Cessna	L-19
Cubcrafters	CC11, CC18, CC19
Piper	PA-11, 12, 14, 16, 18, 20, J3, J4, J5
Beechcraft	33, 35, 36
Cessna	172RG, 177RG, 182RG, C210
Bellanca	17-30, 31
Piper	PA-24, 28R, 32R
Cessna	172, 175, 177, 182, 205, 206, 207
Beechcraft	19, 23, 24
Piper	PA-32, 22, 28 (Fixed Gear)
Cessna	170, 180, 185, L-19
Found	FBA-2C1, FBA-2C2
Helio	H250, H295, H700, H800
Maule	M-4, 5, 6, 7, MX-6, 7, 9
Beechcraft	50, 55, 56, 58, 60, 65, 80, 70, 95
Cessna	336, 337
Cessna	300 series, 400 series
Cessna	TTx, Columbia 350, 400
Cirrus	SR20, 22
Douglas	DC-6, DC-7
Piper	M350, Matrix
Rockwell-Commander	500 series, 680, 720

Turboprop Airplanes

<u>Make</u>	<u>Model</u>
Beechcraft	B65-A90, 90, 99, 100, 200 and 250, FWC-12, C-12 (except C-12J), RC-12, T-44, U-21, UC-12 (except UC-12W), VC-6
Beechcraft	300, 350, MC-12, UC-12W
Beechcraft	1900, C-12J

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Cessna	Soloy 206 and 207, 208
Cessna	406, 425, 441
Commander	680 T.V.W.; 681, 690, 840, 900, 980, 1000
Piper	PA-31T and PA-42
Piper	M500, M600
Swearingen	SA26, SA226, SA227, C-26

Jet Airplanes

<u>Make</u>	<u>Model</u>
Cessna	500, 501, 550, S550, 551, 552, 560 (except 560XL, 560XLS, 560XLS+), T-47A, OT-47B, UC-35A, UC-35B, UC-35C, UC-35D
Lear Jet	24, 25, 28, 29, 31, 35, 36, 55

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EXHIBIT 6: SAFETY MANAGEMENT SYSTEM (SMS), FLIGHT TIME, ACCIDENT HISTORY, AND FAA VIOLATION QUESTIONNAIRE

The Department of the Interior aviation program views Safety Management Systems (SMS) (safety policy, safety risk management, safety assurance, and safety promotion) as a critical element for aviation operations and contract evaluation. This Exhibit, abbreviated to ‘SMS Questionnaire’, seeks to identify safe and effective aviation practices of a Contractor that include implemented policies and practices that support and demonstrate the use of SMS. Refer to Section C15, Safety Management System (SMS), for more information on Contractor SMS review and site visits. Responses to this SMS Questionnaire **may** be requested electronically (virtually) and/or reviewed during an on-site visit.

The following resources may assist with the completion of the SMS Questionnaire:

- **SMS Questionnaire Supplement:** Explanations of Questions 1-33 in the SMS Questionnaire, examples of suggested documents to provide, and common response errors. Located at: <https://www.doi.gov/aviation/library>
- **SMS Questionnaire Form:** An optional form that can be used to complete the SMS Questionnaire. Located at: <https://www.doi.gov/aviation/library>
- **FAA Advisory Circular AC 120-92D:** Safety Management Systems for Aviation Service Providers. Located at: https://www.faa.gov/regulations_policies/advisory_circulars/
- **International Standard for Business Aircraft Operations (IS-BAO):** Established as a recommended code of (SMS) best practices. Located at: <https://nbaa.org/flight-department-administration/sms/>

Overview

The Contractor (when requested) must provide sufficient evidence of implementation for each Question 1-33. **Include both evidence of implemented policies and records that indicate the SMS is functioning. Responses are evaluated based on the evidence provided and the results that were achieved from the activities that were performed.** Blank forms do not suffice as evidence of policy or records of practice and responses should include the Exhibit Reference number (e.g., Question 1, Question 2).

Failure to provide documentation listed above is considered unacceptable and may result in additional requests for information to address deficiencies.

Refer to FAA Advisory Circular AC120-92D and IS-BAO for additional SMS information. For example, in the SMS Questionnaire, FAA Component Reference number refers to the section in AC 120-92D and the IS-BAO Element number refers to the IS-BAO standard/protocol. These documents are intended to provide additional guidance to address the information requested in the Exhibit.

Scalability

The basic SMS components (safety policy, safety risk management, safety assurance, and safety promotion) remain the same regardless of a Contractor’s size or complexity. The way in which organizations implement such components may be accomplished in a variety of ways but should be appropriate the Contractor’s operations. Per AC120-92D, the “...FAA expects each air carrier to develop an SMS that works for its unique operation.” For example, it will take fewer details to describe safety communication practices for a single-pilot Contractor than a Contractor with multiple employees working in different locations.

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EXHIBIT 6 CONTINUED

Question Number	FAA AC 120-92D Reference	IS-BAO Element (21st Ed.)	Requested Information
Safety Policy (Questions #1-12)			
1	3.3	3.1.3.1	Provide reference to policy (company document(s)) which shows there is one individual responsible for the effective administration/implementation of the SMS (e.g, safety manager, director of safety). Provide evidence to show the position is filled.
2	3.3	7.2.1	Provide reference to and evidence from company document(s) that show SMS duties, authorities, and accountabilities for all employees.
3	3.3	3.1.1.1	Provide reference to and evidence of a strong organizational commitment and clear statement (e.g., safety/SMS policy) about the provision of necessary resources for the SMS.
4	3.3	6.1.1	Provide reference to and evidence of the company manual(s) that contain flight operations policy and aircraft maintenance policy.
5	3.3	3.2.1	Provide reference to the Operations Manual distribution policy. Provide evidence the current version of the Operations Manual is available to employees in accordance with company policy.
6	3.3	6.1.1	Provide reference to the Operations Manual internal approval policy. Provide evidence the Operations Manual is approved in accordance with company policy.
7	3.3	6.1.1	Provide reference to the Operations Manual revision policy. Provide evidence the Operations Manual has been revised in accordance with company policy.
8	3.3	3.1.4.1	Provide reference to the Emergency Response Plan (ERP) and ERP revision policy. Provide evidence the ERP is up-to-date in accordance with company policy.
9	3.3	8.5	Provide reference to policy showing how aircrew member records (e.g., FAA certificates, medical, proficiency records) are maintained. Provide evidence the aircrew records are maintained in accordance with company policy.

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Question Number	FAA AC 120-92D Reference	IS-BAO Element (21st Ed.)	Requested Information
10	3.3	15.1	Provide reference to policy showing how aircraft maintenance/servicing personnel records (i.e., FAA certificates) are maintained. Provide evidence the personnel records are maintained in accordance with the policy.
11	3.3	15.2.3	Provide reference to company policy that ensures maintenance personnel are trained and approved to conduct specific maintenance (e.g., make/model). Provide evidence records are maintained in accordance with company policy.
12	3.3	15.1	Provide reference to Operations Manual policy for obtaining aircraft maintenance services while away from home base. Provide evidence of aircraft maintenance received or denied in accordance with the policy.
Safety Risk Management (Questions #13-16)			
13	3.4	3.2.1.1	Provide reference to a risk management policy that includes: system analysis, hazard identification, risk analysis (exposure), risk assessment (severity and likelihood), decision making (mitigations and control), and validation of control (controls effective). Provide evidence the policy is in use.
14	3.4	3.2.1.1	Provide reference to policy for hazard/threat reporting and tracking. Provide evidence that the program is in use.
15	3.4	3.2.1.1	Provide reference to company policy addressing the use of operational risk assessments and/or use of a flight risk assessment tool. Provide evidence of a completed risk assessment that shows the implementation this policy.
16	3.4	3.1.2.1	Provide reference to policy that describes management approval requirements for operational risk assessments that exceed predetermined levels. Provide evidence of a risk assessment completed in accordance with the approval requirements.
Safety Assurance (Questions #17-23)			
17	3.5	3.3.1	Provide reference to a policy (or company document(s)) showing safety objectives and associated safety performance targets (SPTs). Provide evidence showing SPTs are current, measurable, and being monitored.

SECTION C – CONTRACT TERMS AND CONDITIONS

Question Number	FAA AC 120-92D Reference	IS-BAO Element (21 st Ed.)	Requested Information
18	3.5	3.3.2	Provide reference to a management of change (MOC) or change management policy. Provide evidence of the use of the change management policy (e.g., acceptance or rejection of a change).
19	3.5	3.3.3	Provide reference to the SMS continuous improvement policy. Provide evidence the SMS is being monitored and assessed in accordance with the policy.
20	3.5	3.5	Provide reference to policy showing that SMS audits must be completed at determined intervals (e.g., monthly, quarterly, annually). Provide evidence of a current audit schedule.
21	3.5	3.5	Provide reference to policy that shows SMS audits must be documented. Provide evidence of the most recently completed audit (i.e., audit report).
22	3.5	3.5	Provide reference to policy which requires SMS audit findings (e.g., deficiencies, nonconformities) to be addressed. Provide evidence of a finding being addressed, or corrective action being implemented.
23	3.3	15.1	Provide reference to the maintenance control system (method of documentation, tracking, scheduling, and recording). Provide evidence of the maintenance control system in use.
Safety Promotion (Questions #24-30)			
24	3.3	4.1	Provide reference to policy showing Emergency Response Plan roles (i.e., key personnel), responsibilities, and duties. Provide evidence that training has been provided for these personnel to accomplish the duties.
25	3.3	4.3	Provide reference to policy showing the Emergency Response Plan must be exercised (drill/test/exercise) at least annually and documented. Provide evidence of the most recent ERP exercise.
26	3.6	3.4.2	Provide reference to the SMS safety communication policy. Provide evidence the policy describes the types of information to be communicated and how it will be communicated (e.g., method, frequency, responsibility).

SECTION C – CONTRACT TERMS AND CONDITIONS

Question Number	FAA AC 120-92D Reference	IS-BAO Element (21st Ed.)	Requested Information
27	3.6	3.4	Provide reference to approved company safety information sharing methods (e.g., intranet, bulletin board). Provide evidence of safety lessons learned shared with personnel.
28	N/A	N/A	Provide reference to a safety award/incentive program. Provide evidence of the most recent award.
29	3.6	8.1	Provide reference to the company training program (FAA and internal) that ensures ground crew and air crew are trained and competent to perform their assigned duties. Provide evidence that personnel have been trained and are competent to perform their duties.
30	3.6	3.4.1	Provide reference to policy showing initial (new employee) and recurrent SMS training requirements. Provide evidence of the most recent SMS training record (initial or recurrent).
Flight Time, Accident History, and FAA Violations (five years: 10/1/2019 - 9/30/2024) (Questions #31-33)			
31	N/A	N/A	Total number of flight hours during the five years defined in the Exhibit. Flight hours must be separated by year and category: fixed-wing, rotary-wing, and uncrewed aircraft system (UAS). Example: 10/1/2019-9/30/2020: total ____ (separate by category as applicable: fixed, rotor, UAS) 10/1/2020-9/30/2021: total ____ (separate by category as applicable: fixed, rotor, UAS) 10/1/2021-9/30/2022: total ____ (separate by category as applicable: fixed, rotor, UAS) 10/1/2022-9/30/2023: total ____ (separate by category as applicable: fixed, rotor, UAS) 10/1/2023-9/30/2024: total ____ (separate by category as applicable: fixed, rotor, UAS) Five year total: _____

SECTION C – CONTRACT TERMS AND CONDITIONS

Question Number	FAA AC 120-92D Reference	IS-BAO Element (21st Ed.)	Requested Information
32	N/A	N/A	Total number of accidents (aircraft accident as defined within 49 CFR 830.2) during the five years defined in the Exhibit. Accident details must be provided for each accident listed (e.g., date, NTSB accident number, registration number). If the offeror had an accident in the five years identified, provide an accident prevention plan.* The prevention plan must include the following elements: a) summary of accident (i.e., what happened?), b) description of mitigation(s) to prevent future occurrence (i.e., how was it corrected?), and c) description of assurance methods used to validate the effectiveness of mitigation measures (i.e., how do you make sure it doesn't happen again?). *The submission of an accident prevention plan is not required, but if provided, may positively impact the offer.
33	N/A	N/A	Total number of FAA violations (Civil Penalty) during the five years defined in the Exhibit. If violations were reported, Case information must be provided.

SECTION C – CONTRACT TERMS AND CONDITIONS

EXHIBIT 7

STATEMENT OF EQUIVALENT RATES FOR FEDERAL HIRES (48 CFR 52.222.42) IS FOR INFORMATION ONLY AND IS REQUIRED TO BE INCLUDED IN THE SOLICITATION BY THE SERVICE CONTRACT ACT

THIS IS NOT A DEPARTMENT OF LABOR WAGE DETERMINATION

Set forth below are wage rates and fringe benefits that would be paid by the contracting activity for the various classes of service employees expected to be utilized under the contract if 5 U.S.C. 5332 (General Schedule-white collar) and/or 5 U.S.C. 5341 (Federal Wage System) were applicable.

A. **EMPLOYEE CLASS**

MONETARY WAGE

31010 – Airplane Pilot

\$37.65

B. Fringe benefits such as, life, accident and health insurance, and sick leave, are not less than 5.1 percent of the basic hourly rate.

C. Paid holidays are:

- | | |
|---------------------------------------|----------------------|
| 1. New Year's Day | 7. Labor Day |
| 2. Martin Luther King, Jr.'s Birthday | 8. Columbus Day |
| 3. President's Day | 9. Veterans Day |
| 4. Memorial Day | 10. Thanksgiving Day |
| 5. Juneteenth | 11. Christmas Day |
| 6. Independence Day | |

D. The amount of paid vacation time allowed is as follows:

1. Two (2) hours of annual leave each week for an employee with less than three (3) years of service.
2. Three (3) hours of annual leave each week for an employee with three (3) but less than fifteen (15) years of service.
3. Four (4) hours of annual leave each week for an employee with fifteen (15) or more years of service.

E. The percentage of the basic hourly rate that is contributed by the contracting agency for retirement is currently 7 to 17.5 percent

SECTION C – CONTRACT TERMS AND CONDITIONS

EXHIBIT 8

DEPARTMENT OF LABOR WAGE DETERMINATION INFORMATION

This solicitation includes SAM.gov (<https://sam.gov/content/home>) wage determinations (Formally Department of Labor) as identified below.

Please use the following website to find the prevailing wage determinations for this contract:

<https://sam.gov/content/wage-determinations>

1. Wage Determination No.: 1995-0221, Revision No. 70
2. Wage Determination No.: 1995-0222, Revision No. 69

* The wage determinations, in their entirety, will be provided as an attachment to the solicitation and will be included in the awarded contract.

SECTION C – CONTRACT TERMS AND CONDITIONS**EXHIBIT 9****AIRCRAFT QUESTIONNAIRE**

You may recreate this form, but it must include all the information listed

This questionnaire accurately completed will be used to determine the proposed aircraft payload capability.

REPRODUCE AND SUBMIT FOR EACH AIRCRAFT OFFERED - COMPLETE SHADED BLOCKS

Contractor (Business) Name:			
Minimum Requirements:			
Item #	Aircraft	Seating	
2	Tandem seat	N/A	
3	Single engine piston	Four (4) seats or greater	
4	Single engine turbine	Four (4) seats or greater	
5	Multi-engine piston	Four (4) seats or greater	
6	Multi-engine turbine	Six (6) seats or greater	
7	Multi-engine piston	Ten (10) seats or greater	
8	Multi-engine turbine	Ten (10) seats or greater	
9	Multi-engine jet	Ten (10) seats or greater	
Aircraft Make and Model:	FAA Registration	Serial #	# Insured Passenger Seats (excludes pilot seat)
Operation for Which Approved		☐ VFR	☐ IFR
Single Pilot IFR in accordance with Part 135 (ME or SE Turbine)		☐ Yes	☐ No
<u>Special Aircraft Equipment</u>			
Cargo Doors		☐ Yes	☐ No
Long Range Fuel Tank		☐ Yes	☐ No
FM Programmable Radio – ☐ Narrow ☐ Wide Band ☐ Digital		☐ Yes	☐ No
GPS		☐ Yes	☐ No
Intercom		☐ Yes	☐ No
STOL		☐ Yes	☐ No
Amphibious Floats		☐ Yes	☐ No
Floats		☐ Yes	☐ No
Skis		☐ Yes	☐ No
Wheel Skis		☐ Yes	☐ No
Tundra Tires – Size: Type:		☐ Yes	☐ No
Camera Port		☐ Yes	☐ No
FLIR		☐ Yes	☐ No
Satellite Phone #:		☐ Yes	☐ No
Iridium Satellite Aircraft Tracking (ISAT)		☐ Yes	☐ No
ELT/AFF – Type: NOAA Exp Date:		☐ Yes	☐ No
Other:		☐ Yes	☐ No
Other:		☐ Yes	☐ No

By signing below, I acknowledge that I have included the applicable equipment and certify to the best of my knowledge that the above information is accurate.

Name and Signature of Representative Completing this Form	Date
OFFEROR'S NAME	

SECTION C – CONTRACT TERMS AND CONDITIONS

**EXHIBIT 10
RESERVED**

SECTION C – CONTRACT TERMS AND CONDITIONS

**EXHIBIT 11
UNAVAILABILITY CONVERSION CHART**

Hours Unavailable	Units of Availability Recorded As:	Units of Unavailability Recorded As:
0	1.00	0.00
1	.93	.07
2	.86	.14
3	.79	.21
4	.71	.29
5	.64	.36
6	.57	.43
7	.50	.50
8	.43	.57
9	.36	.64
10	.29	.71
11	.21	.79
12	.14	.86
13	.07	.93
14	0.00	1.00

SECTION D – INSTRUCTIONS TO OFFERORS

SECTION D INSTRUCTIONS TO OFFERORS

D1 General Information

D1.1 The services of this Request for Proposals (RFP) are being acquired under the authority of Federal Acquisition Regulations (FAR), Part 12, Acquisition of Commercial Items and FAR Part 15, Contracting by Negotiation.

D1.2 If an offeror wishes to compete for the contract described in Sections A through C of this RFP, they must submit a proposal that includes a signed and dated offer and other requested information by the time and date shown on the SF1449. The submission of the documentation specified in D3 will constitute the offeror's acceptance of the terms and conditions of the solicitation and concurrence with Sections A through C.

D1.3 These RFP instructions are designed to provide general guidance for preparing proposals as well as providing specific instructions on format, content, and evaluation. Offeror should include all documents and information in accordance with the instructions herein. Noncompliance with the solicitation requirements may hamper the Government's ability to properly evaluate the proposal and may result in elimination of the proposal from further consideration for contract award. Offerors are cautioned to follow the instructions carefully and must present their best technical proposal and prices in their initial proposal submission, as it is the Government's intent to make an award based on initial proposal received without discussions with the offeror.

D1.4 Assent to Solicitation. If the offeror takes exception to any of the terms and conditions of the RFP, then the Government may consider its offer to be unacceptable/unsatisfactory. Unacceptable/Unsatisfactory offers will be eliminated without further consideration of the proposal.

D1.5 It is the offeror's responsibility to read the RFP and all related documents carefully and completely and to monitor SAM (<https://sam.gov/>) website for any updates to the RFP on a regular basis. Additionally, it is the offerors' responsibility to ensure/verify the Government receives the proposal on or before the date/time specified.

D2 North American Industry Classification System (NAICS) Code and Small Business Size Standard

This requirement is a 100% small business set-aside. The North American Industry Classification System (NAICS) Code and small business size standard for this acquisition is 481211 and 1,500 employees respectively. Only proposals from small businesses will be considered. Proposals from large businesses will be deemed unacceptable and removed from further consideration.

INSTRUCTIONS TO OFFERORS--COMMERCIAL ITEMS (52.212-1 SEP 2023) TAILORED

D3 Offers

D3.1 The Contracting Officer is the point of contact for this acquisition. Address any questions or concerns you may have to the Contracting Officer in accordance with D3.3.1.

D3.2 One (1) electronic copy of the proposal must be submitted to the Contracting Officer and Contract Specialist via email. Depending on the size of the files, multiple emails may be required to ensure proper receipt of all volumes. The Contracting Officer or Contract Specialist may acknowledge receipt of all submitted documentation, but the Contractor will remain responsible for on-time delivery to, and receipt by, the CO. The proposal must be prepared clearly and concisely to demonstrate the offeror has a complete understanding of the requirements. Offerors must prepare the proposal on the presumption that the Government has no previous knowledge of the offeror's capabilities. The proposal will be evaluated only on the information specifically presented within the proposal, with the exception of the Past Performance evaluations as explained at Section D11.

D3.3 To be considered as a prospective Contractor for the requirement identified in this solicitation, an offeror must deliver a proposal consisting of a valid offer to the individuals identified below. Only emailed proposals will be accepted.

Proposals are due November 18, 2025, 2:00 pm Eastern Time (ET).

D3.3.1 Hard copy or facsimile offer transmissions will not be accepted. By email ONLY, deliver proposals to the Contracting Officer and Contract Specialist:

SECTION D – INSTRUCTIONS TO OFFERORS

Contracting Officer

Maya Maxies-Clemons
U.S. Department of the Interior
Division II, Branch 5
Acquisition Services Directorate
Email: maya_maxies-clemons@ibc.doi.gov

Contract Specialist

Rachael Davis
U.S. Department of the Interior
Division II, Branch 5
Acquisition Services Directorate
Email: rldavis@ibc.doi.gov

D3.3.2 Email proposal “subject line” must be in this format:

Subject: Name of Company (The Company’s SAM, 13-digit Unique Entity Identifier – UEI in Parenthesis) followed by the word “Proposal” and Solicitation Number.

EXAMPLE of Subject line to email the proposal: “Company X (UEI: 123A456B789C1) Proposal 140D0425R0090”

D4 Offer Contents

The contents must be titled and organized in the order described below:

Email Subject Line: Company X (UEI: 123A456B789C1) Proposal 140D0425R0090		
Zip Folder Name	Solicitation Reference	Document Name
<i>Vol I Offer</i>	D4.1	Vol I SF 1449 – Name of Company
	D4.2	Vol I Pricing Pages– Name of Company
	D4.3	Vol I SAM Page 1 – Name of Company
	D4.4	Vol I Acknowledgment of Solicitation Amendments (if any).
	D4.5	Vol I Offerors MISC Info – Name of Company
<i>Vol II Technical Capability</i>	D4.6	Vol II Aircraft Questionnaire (Exhibit E-3)
	D4.6.1	Vol II Aircraft Charts and Calculations (Tail #)
	D4.6.4	Vol II Current Aircraft Weight and Balance Record and Equipment List
	D4.6.5	Vol II Airworthiness Certificate (Tail #)
	D4.6.6	Vol II Aircraft Registration
	D4.6.7	Vol II First Page of FAA Certification Part 135
	D4.6.8	Vol II Part 135 Operation Specifications A003 (Aircraft Authorization),
	D4.6.9	Vol II Part 135 Operation Specification B050
	D4.6.10	Vol II A copy of the ‘list’ required by 14 CFR Part 135.63(a)(3) (Operations Specifications part D, “D085 Aircraft Listing
<i>Vol III Organizational Safety</i>	D4.7.1	Vol III Evidence of meeting FAA SMS requirements for Part 135 (see D10.4)
	D4.7.2	Vol III SMS Manual may be requested if awarded
	D4.7.3	Vol III SMS Questionnaire (Exhibit 6) response may be requested if awarded
	D4.7.3.1	Vol III Other documents may be requested to support Exhibit 6 response
<i>Vol IV Past Performance</i>	D4.8	Vol IV Past Performance Questionnaire (Exhibit E-2)

Volume I Offer

D4.1 Completed and signed SF 1449, Solicitation/Contract/Order for Commercial Items.

SECTION D – INSTRUCTIONS TO OFFERORS

NOTE: D4.1 Document will be attachment to the email and named: “Vol I SF 1449 – Name of Company”

D4.2 Pricing page (See Section A) completed for each aircraft offered. Unit rates will be offered in whole U.S. dollars for flight time and standby.

D4.2.1 This solicitation has eight items that distinguish different aircraft types. Offers may be submitted for one, a few, or all of the items. Pricing pages for items not proposed will be removed and not included in a subsequent conformed contract.

D4.3 Offeror’s Representations and Certifications are incorporated by reference in accordance with FAR 52.212-4 paragraph (v). Offerors must complete their annual representations and certifications online at www.sam.gov in the System for Award Management (SAM) and include a copy of the first page of their SAM registration showing current SAM registration status.

NOTE: System updates may lag policy updates. The SAM may continue to require entities to complete representations based on provisions that are not included in agency solicitations. Examples include 52.222-25, Affirmative Action Compliance, and paragraph (d) of 52.212-3, Offeror Representations and Certifications—Commercial Products and Commercial Services. Contracting officers will not consider these representations when making award decisions or enforce requirements. Entities are not required to, nor are they able to, update their entity registration to remove these representations in SAM.

NOTE: D4.3 Document will be named as an attachment to the email: “Vol I SAM Page 1 – Name of Company”

D4.4 Acknowledgment of Solicitation Amendments (if any).

D4.5 A completed copy of offeror’s Miscellaneous Information (Exhibit E-1) included in Section E.

NOTE: D4.5 Document will be named as an attachment to the email: “Vol I Offerors MISC Info – Name of Company”

NOTE: Email can include a zip file attached with name of sub folder “Vol I Offer” and within this subfolder the required documents

Volume II Technical Capability

D4.6 A completed copy of the Aircraft Questionnaire (Exhibit E-3) for each offered aircraft.

D4.6.1 Provide all appropriate charts and calculations to support the performance characteristics of the proposed aircraft. Use current and correct performance charts from the Aircraft Flight Manual or Flight Manual Supplement as appropriate.

D4.6.2 Reserved

D4.6.3 Reserved

D4.6.4 Provide a current (reference weighing schedule paragraph B19.2.1) aircraft weight and balance record, equipment list certified accurate at the time of weighing, and any calculations indicating changes to the aircraft and equipment list that may have occurred after the time of weighing. Weight and Balance Handbook (FAA-H-8083-1B) can be used as a guide.

D4.6.4.1 For all performance calculations, the aircraft empty weight must include all installed equipment required by this contract. Calculations showing equipment removed or added to meet contract specifications must be included.

D4.6.5 Airworthiness Certificates. A valid copy of the airworthiness certificate for each offered aircraft.

D4.6.6 Aircraft Registration: A valid copy of the registration for each offered aircraft

D4.6.7 A copy of the first page of FAA certificate Part 135.

D4.6.8 Part 135 Operation Specifications A003 (Aircraft Authorization), demonstrating authorization to operate in the make, model, and series of the proposed aircraft and under flight conditions required by this contract per B2.1 (e.g., fixed wing, visual flight rules (VFR) day/night, passengers, and cargo)

SECTION D – INSTRUCTIONS TO OFFERORS

D4.6.9 Part 135 Operation Specification B050 (Authorized Areas of En Route Operations, Limitations, and Provisions) showing authorization to operate in the 48 contiguous United States and Alaska.

D4.6.10 A copy of the ‘list’ required by 14 CFR Part 135.63(a)(3) (Operations Specifications part D, “D085 Aircraft Listing”) as appropriate which identifies aircraft that the offeror is authorized to operate, at time of proposal.

D4.6.11 Failure to provide documentation listed above to support the performance of the aircraft is considered unacceptable and may remove your offer from further consideration.

D4.6.12 The aircraft make, and model that the Government confirms during evaluation will be made a part of the binding contract if the proposal is accepted for award.

Volume III Organizational Safety

D4.7 Organizational Safety

D4.7.1 The offeror must provide evidence of meeting FAA SMS requirements for Part 135 or air tour operators operating under § 91.147 no later than May 28, 2027 (FAA Final Rule, May 2024). Evidence may consist of a letter, email, or other documentation from FAA, showing the SMS requirement has been met.

D4.7.2 A copy of the current SMS Manual may be requested.

D4.7.3 A response to the SMS Questionnaire (Exhibit 6) may be requested. If response is requested, the SMS Questionnaire Form or comparable document may be used, as long as responses to each Question 1-33 are provided.

D4.7.3.1 Other supporting documents (e.g., Operations Manual, Standard Operating Procedure (SOP), records, evidence samples) may be required to support Questionnaire responses. Documents must be clear, legible, and include identifiable information (e.g., document name, revision history, company name).

Volume IV Past Performance

D4.8 Offeror Information. Offeror must include a completed copy of the Past Performance Questionnaire (PPQ), included in Section E-2 to include requested documents. The PPQ must be used to include information on no more than three (3) of the most relevant contracts performed by the prime offeror for any local, state, and Federal agencies, and commercial customers during the three (3) years prior to the date of issuance of this solicitation. Relevant contracts include performance of efforts that are similar in scope, magnitude, and complexity to the effort described in this solicitation. The offeror has discretion in determining the most beneficial mix and quantity of contracts by prime offeror covering as many of these elements as is practical.

NOTE: Email can include a zip file attached with name of sub folder “Vol IV Past Performance” and within this subfolder the required documents

NOTE: Each file within this Volume must have Vol IV in front of the documents name

D5 Period for Acceptance of Offers.

The offeror agrees to hold the prices in its offer firm for **120** calendar days from the date specified for receipt of offers unless another time period is specified in an addendum to the solicitation.

D6 Late Submissions, Modifications, Revisions, and Withdrawals of Offers

Late Submissions, Modifications, Revisions and Withdrawals of Offers are subject to the terms of Federal Acquisition Regulation (FAR) clause 52.212-1(f), which is incorporated by reference, except that offers may be withdrawn in writing at any time before award is made.

D7 Special Notice to Offerors

DIAR 1452.215-71 Use and Disclosure of Proposal Information (Apr 1984)

SECTION D – INSTRUCTIONS TO OFFERORS

(a) Definitions. For the purposes of this provision and the Freedom of Information Act (5 U.S.C. 552), the following terms shall have the meaning set forth below:

(1) “Trade Secret” means an unpatented, secret, commercially valuable plan, appliance, formula, or process, which is used for making, preparing, compounding, treating or processing articles or materials which are trade commodities.

(2) “Confidential commercial or financial information” means any business information (other than trade secrets) which is exempt from the mandatory disclosure requirement of the Freedom of Information Act, 5 U.S.C. 552. Exemptions from mandatory disclosure which may be applicable to business information contained in proposals include exemption (4), which covers “commercial and financial information obtained from a person and privileged or confidential,” and exemption (9), which covers “geological and geophysical information, including maps, concerning wells.”

(b) If the offeror, or its subcontractor(s), believes that the proposal contains trade secrets or confidential commercial or financial information exempt from disclosure under the Freedom of Information Act, (5 U.S.C. 552), the cover page of each copy of the proposal shall be marked with the following legend:

“The information specifically identified on pages _____ of this proposal constitutes trade secrets or confidential commercial and financial information which the offeror believes to be exempt from disclosure under the Freedom of Information Act. The offeror requests that this information not be disclosed to the public, except as may be required by law. The offeror also requests that this information not be used in whole or part by the government for any purpose other than to evaluate the proposal, except that if a contract is awarded to the offeror as a result of or in connection with the submission of the proposal, the Government shall have the right to use the information to the extent provided in the contract.”

(c) The offeror shall also specifically identify trade secret information and confidential commercial and financial information on the pages of the proposal on which it appears and shall mark each such page with the following legend:

“This page contains trade secrets or confidential commercial and financial information which the offeror believes to be exempt from disclosure under the Freedom of Information Act and which is subject to the legend contained on the cover page of this proposal.”

(d) Information in a proposal identified by an offeror as trade secret information or confidential commercial and financial information shall be used by the Government only for the purpose of evaluating the proposal, except that (i) if a contract is awarded to the offeror as a result of or in connection with submission of the proposal, the Government shall have the right to use the information as provided in the contract, and (ii) if the same information is obtained from another source without restriction it may be used without restriction.

(e) If a request under the Freedom of Information Act seeks access to information in a proposal identified as trade secret information or confidential commercial and financial information, full consideration will be given to the offeror's view that the information constitutes trade secrets or confidential commercial or financial information. The offeror will also be promptly notified of the request and given an opportunity to provide additional evidence and argument in support of its position, unless administratively unfeasible to do so. If it is determined that information claimed by the offeror to be trade secret information or confidential commercial or financial information is not exempt from disclosure under the Freedom of Information Act, the offeror will be notified of this determination prior to disclosure of the information.

(f) The Government assumes no liability for the disclosure or use of information contained in a proposal if not marked in accordance with paragraphs (b) and (c) of this provision. If a request under the Freedom of Information Act is made for information in a proposal not marked in accordance with paragraphs (b) and (c) of this provision, the offeror concerned shall be promptly notified of the request and given an opportunity to provide its position to the Government. However, failure of an offeror to mark information contained in a proposal as trade secret information or confidential commercial or financial information will be treated by the Government as evidence that the information is not exempt from disclosure under the Freedom of Information Act, absent a showing that the failure to mark was due to unusual or extenuating circumstances, such as a showing that the offeror had intended to mark, but that markings were omitted from the offeror's proposal due to clerical error.

D8 Evaluation—Commercial Items (52.212-2 Nov 2021) tailored

D8.1 The Government intends to award contract(s) resulting from this solicitation to the responsible offeror(s) whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered.

D8.2 A written notice of award or acceptance of an offer furnished to the successful offeror(s) will result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer, i.e., the government may eliminate any non-compliant aircraft or pilot without disqualifying the entire proposal from

SECTION D – INSTRUCTIONS TO OFFERORS

eligibility for award), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

D8.3 The Government intends to evaluate offers and award IDIQ contracts without discussions with offerors. Award(s) will be made to technically acceptable proposals offering fair and reasonable pricing until enough awards have been made to technically acceptable, successively higher-priced offers to provide meaningful competitions for future delivery and task order awards. See generally FAR 15.101-2. The offeror's initial offer should contain the offeror's best terms.

Although the Government's intent to evaluate offers and award IDIQ contracts without discussion, the Government does reserve the right to conduct discussions with offerors for any reason if it so desires. The Contracting Officer may establish a competitive range and conduct discussions with all of the most highly rated proposals, unless the range is further reduced for purposes of efficiency pursuant to FAR 15.306(c)(2).

D9 Offer Acceptability

D9.1 The evaluation process will proceed as follows:

D9.1.2 The Government will review all proposals to ensure they meet the terms and conditions of the solicitation. Proposals that do not meet the terms and conditions of the solicitation may be deemed unacceptable and will be removed from further evaluation. The Government will evaluate all acceptable offers based on the evaluation factors:

- **Technical Capability**
- **Organizational Safety**
- **Past Performance**
- **Total Evaluated Price**

D10 Technical Capability

D10.1 The Government technical evaluation team will evaluate each offeror's proposed aircraft against the specifications listed in the solicitation. The technical evaluation team will determine whether the aircraft meets the minimum standards set forth in the solicitation. Aircraft that meet or exceed the standards will be deemed acceptable, while those that do not may be deemed unacceptable and removed from further consideration.

D10.2 The aircraft make, model and payload that the Government confirms with the offeror will be made a part of the offer and will be binding if an offer is accepted for award.

D10.3 Any missing, vague, or information of poor quality will be considered high risk and may affect the rating for this evaluation factor.

D10.4 Organizational Safety

D10.4.1 Offers received before May 28, 2027 (see C15 Safety Management System). The Government will evaluate the offeror's submittal in response to the FAA SMS requirement. If requirements are not initially met, the offeror will have until May 28, 2027 to provide an updated response.

D10.2.2 Offers received after May 28, 2027 (see C15 Safety Management System). The Government will evaluate the offeror's submittal in response to the FAA SMS requirement. Failure to provide documentation as requested is considered unacceptable and may remove the offer from further consideration.

D11 Past Performance

D11.1.1 The purpose of the past performance evaluation is to allow the Government to assess the offeror's ability to safely and efficiently perform the effort described in this RFP, based on the offeror's demonstrated present and past performance. The offeror may provide information on problems encountered on identified contracts and the offeror's corrective actions. The Government will consider this information, as well as information obtained from any other sources, including performance feedback from clients listed on the PPQ, any information on your company contained in the Government-wide Contractors Performance

SECTION D – INSTRUCTIONS TO OFFERORS

Assessment Reporting System (CPARS), a Government-wide past performance database located on-line at <https://www.cpars.gov/>, when evaluating the offeror's past performance and any other available sources.

D11.1.2 The Contracting Officer will seek recent and relevant past performance information. Information older than the last three-year period will not be considered unless it is particularly pertinent to offeror current capability. If the information provided is determined to be recent by the evaluation team the offeror's past performance will be evaluated for relevance. Relevant contracts include performance of aviation support efforts in environments that are similar in scope, magnitude and complexity compared to the effort described in this solicitation.

D11.1.3 The Government may contact some or all of the offeror's customers to ask whether or not they believe: (1) that the offeror was capable, efficient, and effective; (2) that the offeror's performance conformed to the terms and conditions of its contract; (3) that the offeror was reasonable and cooperative during performance; and (4) that the offeror was committed to customer satisfaction. Information older than the last three (3)-year period will not be evaluated unless it is determined particularly pertinent to offeror current capability as stated in D11.1.2.

D11.1.4 The Government will give greater weight to its own experiences with the offeror (specifically DOI), if any, than it will give to reports obtained from others. Offerors with no relevant past or present performance history will receive a Neutral rating. Contractors that meet (neutral rating) or exceed the standards will be deemed acceptable, while those that do not may be deemed unacceptable and removed from further consideration.

D12 Total Evaluated Price

D12.1 The evaluation will be based on an analysis of the competitiveness and reasonableness of the prices and rates proposed. Prices will be compared against previous contract pricing, other aircraft offered and on contract, and published pricing found on-line. Offerors are cautioned that the degree to which proposed prices appear unrealistic or unbalanced, the Government may infer either a lack of understanding of requirements, increased risk of performance, or lack of integrity on the part of the offerors.

D12.2 The Government will evaluate offers for award purposes by adding the total price for all ordering periods to the total price for the basic award. To account for the possible use of the additional six-month option period(s) permitted under 52.217-8, the Government will take the price for the final (or highest priced) ordering period, prorated to a six-month value, and add it to the sum of the base plus all ordering periods. In the event the Government exercises the 52.217-8, the last ordering period unit pricing and all contract terms and conditions will apply. The agency's price evaluation will mathematically document the calculation of adding the six months of services for the option to extend services to the total contract price in the award summary. This amount will be used for comparative evaluation for award purposes only. The Government may determine that an offer is unacceptable if the ordering period prices are significantly unbalanced. FAR 52.217-8 can be exercised at any point during the period of performance of the contract and applies to the period of performance immediately preceding the last ordering period. Offerors are NOT to enter a price for the six (6) month period.

D12.3 The Government reserves the right to reject offers that have materially unbalanced availability and flight rates. An offer is materially unbalanced when, despite an acceptable total evaluated price, the price of one or more line items is significantly over or understated as indicated by the application of cost or price analysis techniques.

D13 Contractor Selection

The Government will select the Contractor(s) based on fair and reasonable price proposals meeting or exceeding the acceptability standards for non-cost factors.

D14 Notice of Award

The Government intends to award multiple IDIQ contracts as a result of this requirement. A written notice of award or acceptance of an offer, emailed or otherwise furnished to the successful offeror within the time for acceptance specified in the offer, will result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

SECTION D – INSTRUCTIONS TO OFFERORS

D15 Inquiries Regarding the Solicitation

Formal communications, such as requests for clarification, questions and/or written information concerning this solicitation must be submitted in writing via e-mail to Contracting Officer Maya Maxies-Clemons, maya_maxies-clemons@ibc.doi.gov, and Contract Specialist Rachael Davis, rldavis@ibc.doi.gov, no later than **October 17, 2025, 2:00 pm EDT**.

The requests must be in the following format:

RFP 140D0425R0090

Section: _____

Page: _____

Paragraph: _____

Question: _____

SECTION E – OFFEROR’S REPRESENTATIONS, CERTIFICATIONS AND OTHER STATEMENTS

SECTION E – OFFEROR’S REPRESENTATIONS, CERTIFICATIONS AND OTHER STATEMENTS

E1 52.252-1 Solicitation Provisions Incorporated by Reference (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this address: <https://www.acquisition.gov/>

E2 52.252-5 Authorized Deviations in Provisions (NOV 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any DIAR 1452.233-2 Service of Protest Department of the Interior (SEP 2006) (Deviation) (48 CFR Chapter 14) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)

E3 Provisions Incorporated by reference

52.201-1 Acquisition 360: Voluntary Survey (SEP 2023)

52.204-7 System for Award Management (NOV 2024)

52.204-16 Commercial and Government Entity Code Reporting (AUG 2020)

52.204-22 Alternative Line-Item Proposal (JAN 2017)

52.216-31 Time-and-Materials/Labor-Hour Proposal Requirements-Commercial Acquisition (NOV 2021)

52.217-5 Evaluation of Options (JULY 1990)

E4 52.204-24 Representation Regarding Certain Telecommunications and Video Surveillance Services or Equipment (Nov 2021).

The Offeror shall not complete the representation at paragraph (d)(1) of this provision if the Offeror has represented that it "does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument" in paragraph (c)(1) in the provision at 52.204-26, Covered Telecommunications Equipment or Services—Representation, or in paragraph (v)(2)(i) of the provision at 52.212-3, Offeror Representations and Certifications-Commercial Products or Commercial Services. The Offeror shall not complete the representation in paragraph (d)(2) of this provision if the Offeror has represented that it "does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services" in paragraph (c)(2) of the provision at 52.204-26, or in paragraph (v)(2)(ii) of the provision at 52.212-3.

(a) Definitions. As used in this provision—

Backhaul, covered telecommunications equipment or services, critical technology, interconnection arrangements, reasonable inquiry, roaming, and substantial or essential component have the meanings provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) Prohibition. (1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Nothing in the prohibition shall be construed to—

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

SECTION E – OFFEROR’S REPRESENTATIONS, CERTIFICATIONS AND OTHER STATEMENTS

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract or extending or renewing a contract with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. Nothing in the prohibition shall be construed to—

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(d) Representation. The Offeror represents that—

(1) It ☐ will, ☐ will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation. The Offeror shall provide the additional disclosure information required at paragraph (e)(1) of this section if the Offeror responds "will" in paragraph (d)(1) of this section; and

(2) After conducting a reasonable inquiry, for purposes of this representation, the Offeror represents that—

It ☐ does, ☐ does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services. The Offeror shall provide the additional disclosure information required at paragraph (e)(2) of this section if the Offeror responds "does" in paragraph (d)(2) of this section.

(e) Disclosures. (1) Disclosure for the representation in paragraph (d)(1) of this provision. If the Offeror has responded "will" in the representation in paragraph (d)(1) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment—

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the original equipment manufacturer (OEM) or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(ii) For covered services—

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(2) Disclosure for the representation in paragraph (d)(2) of this provision. If the Offeror has responded "does" in the representation in paragraph (d)(2) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment—

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(ii) For covered services—

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the PSC of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

SECTION E – OFFEROR’S REPRESENTATIONS, CERTIFICATIONS AND OTHER STATEMENTS

(End of provision)

E5 52.209-7 Information Regarding Responsibility Matters (Oct 2018)

(a) Definitions. As used in this provision—

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than \$10,000,000 means—

(1) The total value of all current, active contracts and grants, including all priced options; and

(2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror ☐ has ☐ does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

(i) In a criminal proceeding, a conviction.

(ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in—

(A) The payment of a monetary fine or penalty of \$5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> (see 52.204-7).

(End of provision)

E6 52.212-3 -- Offeror Representations and Certifications -- Commercial Products and Commercial Services. (MAY 2024)(DEVIATION FEB 2025)

The Offeror shall complete only paragraph (b) of this provision if the Offeror has completed the annual representations and certification electronically in the System for Award Management (SAM) accessed through <https://www.sam.gov>. If the Offeror has not completed the annual representations and certifications electronically, the Offeror shall complete only paragraphs (c) through (v) of this provision.

(a) Definitions. As used in this provision—

Covered telecommunications equipment or services has the meaning provided in the clause [52.204-25](#), Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with [13 CFR part 127](#), and the concern is certified by SBA or an approved third-party certifier in accordance with [13 CFR 127.300](#). It automatically qualifies as a women-owned small business eligible under the WOSB Program.

Forced or indentured child labor means all work or service—

SECTION E – OFFEROR’S REPRESENTATIONS, CERTIFICATIONS AND OTHER STATEMENTS

(1) Exacted from any person under the age of 18 under the menace of any penalty for its nonperformance and for which the worker does not offer himself voluntarily; or

(2) Performed by any person under the age of 18 pursuant to a contract the enforcement of which can be accomplished by process or penalties.

Highest-level owner means the entity that owns or controls an immediate owner of the offeror, or that owns or controls one or more entities that control an immediate owner of the offeror. No entity owns or exercises control of the highest-level owner.

Immediate owner means an entity, other than the offeror, that has direct control of the offeror. Indicators of control include, but are not limited to, one or more of the following: ownership or interlocking management, identity of interests among family members, shared facilities and equipment, and the common use of employees.

Inverted domestic corporation, means a foreign incorporated entity that meets the definition of an inverted domestic corporation under [6 U.S.C. 395](#)(b), applied in accordance with the rules and definitions of [6 U.S.C. 395](#)(c).

Manufactured end product means any end product in product and service codes (PSCs) 1000-9999, except—

(1) PSC 5510, Lumber and Related Basic Wood Materials.

(2) Product or Service Group (PSG) 87, Agricultural Supplies.

(3) PSG 88, Live Animals.

(4) PSG 89, Subsistence.

(5) PSC 9410, Crude Grades of Plant Materials.

(6) PSC 9430, Miscellaneous Crude Animal Products, Inedible.

(7) PSC 9440, Miscellaneous Crude Agricultural and Forestry Products.

(8) PSC 9610, Ores.

(9) PSC 9620, Minerals, Natural and Synthetic; and

(10) PSC 9630, Additive Metal Materials.

Place of manufacture means the place where an end product is assembled out of components, or otherwise made or processed from raw materials into the finished product that is to be provided to the Government. If a product is disassembled and reassembled, the place of reassembly is not the place of manufacture.

Predecessor means an entity that is replaced by a successor and includes any predecessors of the predecessor.

Reasonable inquiry has the meaning provided in the clause [52.204-25](#), Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

Restricted business operations means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate—

(1) Are conducted under contract directly and exclusively with the regional government of southern Sudan.

(2) Are conducted pursuant to specific authorization from the Office of Foreign Assets Control in the Department of the Treasury or are expressly exempted under Federal law from the requirement to be conducted under such authorization.

(3) Consist of providing goods or services to marginalized populations of Sudan.

(4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization.

(5) Consist of providing goods or services that are used only to promote health or education; or

(6) Have been voluntarily suspended. “Sensitive technology”—

Sensitive technology—

(1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically—

(i) To restrict the free flow of unbiased information in Iran; or

(ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and

(2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act ([50 U.S.C. 1702\(b\)\(3\)](#)).

Service-disabled veteran-owned small business (SDVOSB) concern means a small business concern—

(1)

(i) Not less than 51 percent of which is owned and controlled by one or more service-disabled veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled veterans; and

(ii) The management and daily business operations of which are controlled by one or more service-disabled veterans or, in the case of a service-disabled veteran with permanent and severe disability, the spouse or permanent caregiver of such veteran; or

(2) A small business concern eligible under the SDVOSB Program in accordance with 13 CFR part 128 (see subpart [19.14](#)).

(3) *Service-disabled veteran*, as used in this definition, means a veteran as defined in [38 U.S.C. 101](#)(2), with a disability that is service connected, as defined in [38 U.S.C. 101](#)(16), and who is registered in the Beneficiary Identification and Records Locator

SECTION E – OFFEROR’S REPRESENTATIONS, CERTIFICATIONS AND OTHER STATEMENTS

Subsystem, or successor system that is maintained by the Department of Veterans Affairs’ Veterans Benefits Administration, as a service-disabled veteran.

Service-disabled veteran-owned small business (SDVOSB) concern eligible under the SDVOSB Program means an SDVOSB concern that—

- (1) Effective January 1, 2024, is designated in the System for Award Management (SAM) as certified by the Small Business Administration (SBA) in accordance with 13 CFR 128.300; or
- (2) Has represented that it is an SDVOSB concern in SAM and submitted a complete application for certification to SBA on or before December 31, 2023.

Service-disabled veteran-owned small business (SDVOSB) Program means a program that authorizes contracting officers to limit competition, including award on a sole-source basis, to SDVOSB concerns eligible under the SDVOSB Program.

Small business concern—

- (1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in [13 CFR part 121](#) and size standards in this solicitation.
- (2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties’ control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

Small, disadvantaged business concern, consistent with 13 CFR 124.1001, means a small business concern under the size standard applicable to the acquisition, that—

- (1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by—
 - (i) One or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States; and
 - (ii) Each individual claiming economic disadvantage has a net worth not exceeding the threshold at 13 CFR 124.104(c)(2) after taking into account the applicable exclusions set forth at 13 CFR 124.104(c)(2); and
- (2) The management and daily business operations of which are controlled (as defined at 13.CFR 124.106) by individuals, who meet the criteria in paragraphs (1)(i) and (ii) of this definition.

Subsidiary means an entity in which more than 50 percent of the entity is owned—

- (1) Directly by a parent corporation; or
- (2) Through another subsidiary of a parent corporation

Successor means an entity that has replaced a predecessor by acquiring the assets and carrying out the affairs of the predecessor under a new name (often through acquisition or merger). The term "successor" does not include new offices/divisions of the same company or a company that only changes its name. The extent of the responsibility of the successor for the liabilities of the predecessor may vary, depending on State law and specific circumstances.

Veteran-owned small business concern means a small business concern—

- (1) Not less than 51 percent of which is owned and controlled by one or more veterans (as defined at [38 U.S.C. 101\(2\)](#)) or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more veterans; and
- (2) The management and daily business operations of which are controlled by one or more veterans.

Women-owned business concern means a concern which is at least 51 percent owned by one or more women; or in the case of any publicly owned business, at least 51 percent of its stock is owned by one or more women; and whose management and daily business operations are controlled by one or more women

Women-owned small business concern means a small business concern—

- (1) That is at least 51 percent owned by one or more women; or, in the case of any publicly owned business, at least 51 percent of the stock of which is owned by one or more women; and
- (2) Whose management and daily business operations are controlled by one or more women.

Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with [13 CFR part 127](#)), means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States, and the concern is certified by SBA or an approved third-party certifier in accordance with [13 CFR 127.300](#).

(b)

(1) *Annual Representations and Certifications*. Any changes provided by the Offeror in paragraph (b)(2) of this provision do not automatically change the representations and certifications in SAM.

(2) The offeror has completed the annual representations and certifications electronically in SAM accessed through <http://www.sam.gov>. After reviewing SAM information, the Offeror verifies by submission of this offer that the representations and certifications currently posted electronically at FAR [52.212-3](#), Offeror Representations and Certifications-Commercial Products and Commercial Services, have been entered or updated in the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard(s) applicable to the NAICS code(s) referenced for

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this solicitation), at the time this offer is submitted and are incorporated in this offer by reference (see FAR [4.1201](#)), except for paragraphs ____.

[Offeror to identify the applicable paragraphs at (c) through (v) of this provision that the offeror has completed for the purposes of this solicitation only, if any.]

These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted electronically on SAM.]

(c) Offerors must complete the following representations when the resulting contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied [part 19](#) in accordance with [19.000\(b\)\(1\)\(ii\)](#). Check all that apply.

(1) *Small business concern.* The offeror represents as part of its offer that—

(i) It ☐ is, ☐ is not a small business concern; or

(ii) It ☐ is, ☐ is not a small business joint venture that complies with the requirements of [13 CFR 121.103\(h\)](#) and [13 CFR 125.8\(a\)](#) and [\(b\)](#). *[The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]*

(2) *Veteran-owned small business concern.* *[Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.]* The offeror represents as part of its offer that it ☐ is, ☐ is not a veteran-owned small business concern.

(3) *SDVOSB concern.* *[Complete only if the offeror represented itself as a veteran-owned small business concern in paragraph (c)(2) of this provision.]* The offeror represents that it ☐ is, ☐ is not an SDVOSB concern.

(4) *SDVOSB concern joint venture eligible under the SDVOSB Program.* The offeror represents that it ☐ is, ☐ is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. *[Complete only if the offeror represented itself as an SDVOSB concern in paragraph (c)(3) of this provision.] [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]*

(5) *Small disadvantaged business concern.* *[Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.]* The offeror represents that it ☐ is, ☐ is not a small disadvantaged business concern as defined in [13 CFR 124.1001](#).

(6) *Women-owned small business concern.* *[Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.]* The offeror represents that it ☐ is, ☐ is not a women-owned small business concern.

(7) *WOSB joint venture eligible under the WOSB Program.* The offeror represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of [13 CFR 127.506\(a\)](#) through [\(c\)](#). *[The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]*

(8) *Economically disadvantaged women-owned small business (EDWOSB) joint venture.* The offeror represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of [13 CFR 127.506\(a\)](#) through [\(c\)](#). *[The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]*

Note to paragraphs (c)(9) and (10): Complete paragraphs (c)(9) and (10) only if this solicitation is expected to exceed the simplified acquisition threshold.

(9) *Women-owned business concern (other than small business concern).* *[Complete only if the offeror is a women-owned business concern and did not represent itself as a small business concern in paragraph (c)(1) of this provision.]* The offeror represents that it ☐ is a women-owned business concern.

(10) *Tie bid priority for labor surplus area concerns.* If this is an invitation for bid, small business offerors may identify the labor surplus areas in which costs to be incurred on account of manufacturing or production (by offeror or first-tier subcontractors) amount to more than 50 percent of the contract price: _____

(11) *HUBZone small business concern.* *[Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.]* The offeror represents, as part of its offer, that—

(i) It ☐ is, ☐ is not a HUBZone small business concern listed, on the date of this representation, as having been certified by SBA as a HUBZone small business concern in the Dynamic Small Business Search and SAM, and will attempt to maintain an employment rate of HUBZone residents of 35 percent of its employees during performance of a HUBZone contract (see [13 CFR 126.200\(e\)\(1\)](#)); and

(ii) It ☐ is, ☐ is not a HUBZone joint venture that complies with the requirements of [13 CFR 126.616\(a\)](#) through [\(c\)](#).

[The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.] Each HUBZone small business concern participating in the HUBZone joint venture shall provide representation of its HUBZone status.

(d) **[Reserved]**

(e) *Certification Regarding Payments to Influence Federal Transactions* (31 <http://uscode.house.gov/> U.S.C. 1352). (Applies only if the contract is expected to exceed \$150,000.) By submission of its offer, the offeror certifies to the best of its knowledge and belief that no Federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence an

SECTION E – OFFEROR’S REPRESENTATIONS, CERTIFICATIONS AND OTHER STATEMENTS

officer or employee of any agency, a Member of Congress, an officer or employee of Congress or an employee of a Member of Congress on his or her behalf in connection with the award of any resultant contract. If any registrants under the Lobbying Disclosure Act of 1995 have made a lobbying contact on behalf of the offeror with respect to this contract, the offeror shall complete and submit, with its offer, OMB Standard Form LLL, Disclosure of Lobbying Activities, to provide the name of the registrants. The offeror need not report regularly employed officers or employees of the offeror to whom payments of reasonable compensation were made.

(f) *Buy American Certificate*. (Applies only if the clause at Federal Acquisition Regulation (FAR) [52.225-1](#), Buy American-Supplies, is included in this solicitation.)

(1)

(i) The Offeror certifies that each end product, except those listed in paragraph (f)(2) of this provision, is a domestic end product and that each domestic end product listed in paragraph (f)(3) of this provision contains a critical component.

(ii) The Offeror shall list as foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select “no”.

(iii) The Offeror shall separately list the line-item numbers of domestic end products that contain a critical component (see FAR 25.105).

(iv) The terms “commercially available off-the-shelf (COTS) item,” “critical component,” “domestic end product,” “end product,” “foreign end product,” and “United States,” are defined in the clause of this solicitation entitled “Buy American-Supplies.”

(2) Foreign End Products:

Line-Item No.	Country of Origin	Exceeds 55% domestic content (yes/no)

[List as necessary]

(3) Domestic end products containing a critical component:

Line-Item No. _____

[List as necessary]

(4) The Government will evaluate offers in accordance with the policies and procedures of FAR [part 25](#).

(g)

(1) *Buy American-Free Trade Agreements-Israeli Trade Act Certificate*. (Applies only if the clause at FAR [52.225-3](#), Buy American-Free Trade Agreements-Israeli Trade Act, is included in this solicitation.)

(i)

(A) The Offeror certifies that each end product, except those listed in paragraph (g)(1)(ii) or (iii) of this provision, is a domestic end product and that each domestic end product listed in paragraph (g)(1)(iv) of this provision contains a critical component.

(B) The terms “Bahraini, Moroccan, Omani, Panamanian, or Peruvian end product,” “commercially available off-the-shelf (COTS) item,” “critical component,” “domestic end product,” “end product,” “foreign end product,” “Free Trade Agreement country,” “Free Trade Agreement country end product,” “Israeli end product,” and “United States,” are defined in the clause of this solicitation entitled “Buy American-Free Trade Agreements-Israeli Trade Act.”

(ii) The Offeror certifies that the following supplies are Free Trade Agreement country end products (other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian end products) or Israeli end products as defined in the clause of this solicitation entitled “Buy American-Free Trade Agreements-Israeli Trade Act.”

Free Trade Agreement Country End Products (Other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian End Products) or *Israeli End Products*:

Line-Item No.	Country of Origin
---------------	-------------------

SECTION E – OFFEROR’S REPRESENTATIONS, CERTIFICATIONS AND OTHER STATEMENTS

[List as necessary]

(iii) The Offeror shall list those supplies that are foreign end products (other than those listed in paragraph (g)(1)(ii) of this provision) as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act." The Offeror shall list as other foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

Other Foreign End Products:

Line-Item No.	Country of Origin	Exceeds 55% domestic content (yes/no)

[List as necessary]

(iv) The Offeror shall list the line-item numbers of domestic end products that contain a critical component (see FAR [25.105](#)).

Line-Item No. _____

[List as necessary]

(v) The Government will evaluate *offers* in accordance with the policies and procedures of FAR [part 25](#).

(2) *Buy American-Free Trade Agreements-Israeli Trade Act Certificate, Alternate II.* If Alternate II to the clause at FAR [52.225-3](#) is included in this solicitation, substitute the following paragraph (g)(1)(ii) for paragraph (g)(1)(ii) of the basic provision:

(g)(1)(ii) The offeror certifies that the following supplies are Israeli end products as defined in the clause of this solicitation entitled "Buy American—Free Trade Agreements—Israeli Trade Act":

Israeli End Products:

Line-Item No.

[List as necessary]

(3) *Buy American-Free Trade Agreements-Israeli Trade Act Certificate, Alternate III.* If Alternate III to the clause at [52.225-3](#) is included in this solicitation, substitute the following paragraphs (g)(1)(i)(B) and (g)(1)(ii) for paragraphs (g)(1)(i)(B) and (g)(1)(ii) of the basic provision:

(g)(1)(i)(B) The terms "Korean end product", "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," "Free Trade Agreement country," "Free Trade Agreement country end product," "Israeli end product," and "United States" are defined in the clause of this solicitation entitled "Buy American—Free Trade Agreements—Israeli Trade Act."

SECTION E – OFFEROR’S REPRESENTATIONS, CERTIFICATIONS AND OTHER STATEMENTS

(g)(1)(ii) The Offeror certifies that the following supplies are Korean end products or Israeli end products as defined in the clause of this solicitation entitled “Buy American—Free Trade Agreements—Israeli Trade Act”:

Korean End Products or Israeli End Products:

Line-Item No.	Country of Origin

[List as necessary]

(4) *Trade Agreements Certificate*. (Applies only if the clause at FAR [52.225-5](#), Trade Agreements, is included in this solicitation.)

(i) The offeror certifies that each end product, except those listed in paragraph (g)(4)(ii) of this provision, is a U.S.-made or designated country end product, as defined in the clause of this solicitation entitled "Trade Agreements."

(ii) The offeror shall list as other end products those end products that are not U.S.-made or designated country end products.

Other End Products:

Line-Item No.	Country of Origin

[List as necessary]

(iii) The Government will evaluate offers in accordance with the policies and procedures of FAR [part 25](#). For line items covered by the WTO GPA, the Government will evaluate offers of U.S.-made or designated country end products without regard to the restrictions of the Buy American statute. The Government will consider for award only offers of U.S.-made or designated country end products unless the Contracting Officer determines that there are no offers for such products or that the offers for such products are insufficient to fulfill the requirements of the solicitation.

(h) *Certification Regarding Responsibility Matters (Executive Order 12689)*. (Applies only if the contract value is expected to exceed the simplified acquisition threshold.) The offeror certifies, to the best of its knowledge and belief, that the offeror and/or any of its principals—

(1) ☐ Are, ☐ are not presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency.

(2) ☐ Have, ☐ have not, within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a Federal, state or local government contract or subcontract; violation of Federal or state antitrust statutes relating to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property;

(3) ☐ Are, ☐ are not presently indicted for, or otherwise criminally or civilly charged by a Government entity with, commission of any of these offenses enumerated in paragraph (h)(2) of this clause; and

(4) ☐ Have, ☐ have not, within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds the threshold at [9.104-5\(a\)\(2\)](#) for which the liability remains unsatisfied.

(i) Taxes are considered delinquent if both of the following criteria apply:

(A) *The tax liability is finally determined*. The liability is finally determined if it has been assessed. A liability is not finally determined if there is a pending administrative or judicial challenge. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.

(B) *The taxpayer is delinquent in making payment*. A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.

(ii) *Examples*.

SECTION E – OFFEROR’S REPRESENTATIONS, CERTIFICATIONS AND OTHER STATEMENTS

(A) The taxpayer has received a statutory notice of deficiency, under I.R.C. §6212, which entitles the taxpayer to seek Tax Court review of a proposed tax deficiency. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek Tax Court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(B) The IRS has filed a notice of Federal tax lien with respect to an assessed tax liability, and the taxpayer has been issued a notice under I.R.C. §6320 entitling the taxpayer to request a hearing with the IRS Office of Appeals contesting the lien filing, and to further appeal to the Tax Court if the IRS determines to sustain the lien filing. In the course of the hearing, the taxpayer is entitled to contest the underlying tax liability because the taxpayer has had no prior opportunity to contest the liability. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek tax court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(C) The taxpayer has entered into an installment agreement pursuant to I.R.C. §6159. The taxpayer is making timely payments and is in full compliance with the agreement terms. The taxpayer is not delinquent because the taxpayer is not currently required to make full payment.

(D) The taxpayer has filed for bankruptcy protection. The taxpayer is not delinquent because enforced collection action is stayed under 11 U.S.C. §362 (the Bankruptcy Code).

(i) *Certification Regarding Knowledge of Child Labor for Listed End Products (Executive Order 13126).* [The Contracting Officer must list in paragraph (i)(1) any end products being acquired under this solicitation that are included in the List of Products Requiring Contractor Certification as to Forced or Indentured Child Labor, unless excluded at [22.1503\(b\)](#).]

(1) *Listed end products.*

Listed End Product	Listed Countries of Origin

(2) *Certification.* [If the Contracting Officer has identified end products and countries of origin in paragraph (i)(1) of this provision, then the offeror must certify to either (i)(2)(i) or (i)(2)(ii) by checking the appropriate block.]

☐ (i) The offeror will not supply any end product listed in paragraph (i)(1) of this provision that was mined, produced, or manufactured in the corresponding country as listed for that product.

☐ (ii) The offeror may supply an end product listed in paragraph (i)(1) of this provision that was mined, produced, or manufactured in the corresponding country as listed for that product. The offeror certifies that it has made a good faith effort to determine whether forced or indentured child labor was used to mine, produce, or manufacture any such end product furnished under this contract. On the basis of those efforts, the offeror certifies that it is not aware of any such use of child labor.

(j) *Place of manufacture.* (Does not apply unless the solicitation is predominantly for the acquisition of manufactured end products.) For statistical purposes only, the offeror shall indicate whether the place of manufacture of the end products it expects to provide in response to this solicitation is predominantly-

(1) ☐ In the United States (Check this box if the total anticipated price of offered end products manufactured in the United States exceeds the total anticipated price of offered end products manufactured outside the United States); or

(2) ☐ Outside the United States.

(k) *Certificates regarding exemptions from the application of the Service Contract Labor Standards* (Certification by the offeror as to its compliance with respect to the contract also constitutes its certification as to compliance by its subcontractor if it subcontracts out the exempt services.) [The contracting officer is to check a box to indicate if paragraph (k)(1) or (k)(2) applies.]

☐ (1) *Maintenance, calibration, or repair of certain equipment as described in FAR [22.1003-4\(c\)\(1\)](#).* The offeror ☐ does ☐ does not certify that-

(i) The items of equipment to be serviced under this contract are used regularly for other than Governmental purposes and are sold or traded by the offeror (or subcontractor in the case of an exempt subcontract) in substantial quantities to the general public in the course of normal business operations.

(ii) The services will be furnished at prices which are, or are based on, established catalog or market prices (see FAR [22.1003-4\(c\)\(2\)\(ii\)](#)) for the maintenance, calibration, or repair of such equipment; and

SECTION E – OFFEROR’S REPRESENTATIONS, CERTIFICATIONS AND OTHER STATEMENTS

(iii) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract will be the same as that used for these employees and equivalent employees servicing the same equipment of commercial customers.

☐ (2) *Certain services as described in FAR 22.1003-4(d)(1).* The offeror ☐ does ☐ does not certify that-

(i) The services under the contract are offered and sold regularly to non-Governmental customers and are provided by the offeror (or subcontractor in the case of an exempt subcontract) to the general public in substantial quantities in the course of normal business operations.

(ii) The contract services will be furnished at prices that are, or are based on, established catalog or market prices (see FAR 22.1003-4(d)(2)(iii));

(iii) Each service employee who will perform the services under the contract will spend only a small portion of his or her time (a monthly average of less than 20 percent of the available hours on an annualized basis, or less than 20 percent of available hours during the contract period if the contract period is less than a month) servicing the Government contract; and

(iv) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract is the same as that used for these employees and equivalent employees servicing commercial customers.

(3) If paragraph (k)(1) or (k)(2) of this clause applies-

(i) If the offeror does not certify to the conditions in paragraph (k)(1) or (k)(2) and the Contracting Officer did not attach a Service Contract Labor Standards wage determination to the solicitation, the offeror shall notify the Contracting Officer as soon as possible; and

(ii) The Contracting Officer may not make an award to the offeror if the offeror fails to execute the certification in paragraph (k)(1) or (k)(2) of this clause or to contact the Contracting Officer as required in paragraph (k)(3)(i) of this clause.

(1) *Taxpayer Identification Number (TIN)* ([26 U.S.C. 6109](#), [31 U.S.C. 7701](#)). (Not applicable if the offeror is required to provide this information to the SAM to be eligible for award.)

(1) All offerors must submit the information required in paragraphs (1)(3) through (1)(5) of this provision to comply with debt collection requirements of [31 U.S.C. 7701\(c\)](#) and 3325(d), reporting requirements of [26 U.S.C. 6041](#), 6041A, and 6050M, and implementing regulations issued by the Internal Revenue Service (IRS).

(2) The TIN may be used by the Government to collect and report on any delinquent amounts arising out of the offeror’s relationship with the Government ([31 U.S.C. 7701\(c\)\(3\)](#)). If the resulting contract is subject to the payment reporting requirements described in FAR [4.904](#), the TIN provided hereunder may be matched with IRS records to verify the accuracy of the offeror’s TIN.

(3) *Taxpayer Identification Number (TIN).*

☐ TIN: _____.

☐ TIN has been applied for.

☐ TIN is not required because:

☐ Offeror is a nonresident alien, foreign corporation, or foreign partnership that does not have income effectively connected with the conduct of a trade or business in the United States and does not have an office or place of business or a fiscal paying agent in the United States.

☐ Offeror is an agency or instrumentality of a foreign government.

☐ Offeror is an agency or instrumentality of the Federal Government.

(4) *Type of organization.*

☐ Sole proprietorship.

☐ Partnership.

☐ Corporate entity (not tax-exempt).

☐ Corporate entity (tax-exempt).

☐ Government entity (Federal, State, or local).

☐ Foreign government.

☐ International organization per 26 CFR 1.6049-4.

☐ Other _____.

(5) *Common parent.*

☐ Offeror is not owned or controlled by a common parent.

☐ Name and TIN of common parent:

Name _____.

TIN _____.

(m) *Restricted business operations in Sudan.* By submission of its offer, the offeror certifies that the offeror does not conduct any restricted business operations in Sudan.

(n) *Prohibition on Contracting with Inverted Domestic Corporations.*

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(1) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation, unless the exception at [9.108-2\(b\)](#) applies or the requirement is waived in accordance with the procedures at [9.108-4](#).

(2) *Representation*. The Offeror represents that–

(i) It ☐ is, ☐ is not an inverted domestic corporation; and

(ii) It ☐ is, ☐ is not a subsidiary of an inverted domestic corporation.

(o) Prohibition on contracting with entities engaging in certain activities or transactions relating to Iran.

(1) The offeror shall e-mail questions concerning sensitive technology to the Department of State at CISADA106@state.gov.

(2) *Representation and Certifications*. Unless a waiver is granted or an exception applies as provided in paragraph (o)(3) of this provision, by submission of its offer, the offeror–

(i) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran, or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran.

(ii) Certifies that the offeror, or any person owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Iran Sanctions Act; and

(iii) Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds the threshold at FAR [25.703-2\(a\)\(2\)](#) with Iran’s Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (et seq.)

(see OFAC’s Specially Designated Nationals and Blocked Persons List at <https://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx>).

(3) The representation and certification requirements of paragraph (o)(2) of this provision do not apply if–

(i) This solicitation includes a trade agreements certification (e.g., [52.212-3\(g\)](#)) or a comparable agency provision; and

(ii) The offeror has certified that all the offered products to be supplied are designated country end products.

(p) *Ownership or Control of Offeror*. (Applies in all solicitations when there is a requirement to be registered in SAM or a requirement to have a unique entity identifier in the solicitation).

(1) The Offeror represents that it ☐ has or ☐ does not have an immediate owner. If the Offeror has more than one immediate owner (such as a joint venture), then the Offeror shall respond to paragraph (2) and if applicable, paragraph (3) of this provision for each participant in the joint venture.

(2) If the Offeror indicates "has" in paragraph (p)(1) of this provision, enter the following information:

Immediate owner CAGE code: _____.

Immediate owner legal name: _____.

(Do not use a "doing business as" name)

Is the immediate owner owned or controlled by another entity: ☐ Yes or ☐ No.

(3) If the Offeror indicates "yes" in paragraph (p)(2) of this provision, indicating that the immediate owner is owned or controlled by another entity, then enter the following information:

Highest-level owner CAGE code: _____.

Highest-level owner legal name: _____.

(Do not use a "doing business as" name)

(q) *Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law*.

(1) As required by sections 744 and 745 of Division E of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts, The Government will not enter into a contract with any corporation that–

(i) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(ii) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(2) The Offeror represents that–

(i) It is ☐ is not ☐ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(ii) It is ☐ is not ☐ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

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(r) *Predecessor of Offeror.* (Applies in all solicitations that include the provision at [52.204-16](#), Commercial and Government Entity Code Reporting.)

(1) The Offeror represents that it ☐ is or ☐ is not a successor to a predecessor that held a Federal contract or grant within the last three years.

(2) If the Offeror has indicated "is" in paragraph (r)(1) of this provision, enter the following information for all predecessors that held a Federal contract or grant within the last three years (if more than one predecessor, list in reverse chronological order):

Predecessor CAGE code: (or mark "Unknown").

Predecessor legal name:_____.

(Do not use a "doing business as" name).

(s) **[Reserved]**

(t) **[Reserved]**

(u)

(1) In accordance with section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions), Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with an entity that requires employees or subcontractors of such entity seeking to report waste, fraud, or abuse to sign internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting such waste, fraud, or abuse to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information.

(2) The prohibition in paragraph (u)(1) of this provision does not contravene requirements applicable to Standard Form 312 (Classified Information Nondisclosure Agreement), Form 4414 (Sensitive Compartmented Information Nondisclosure Agreement), or any other form issued by a Federal department or agency governing the nondisclosure of classified information.

(3) *Representation.* By submission of its offer, the Offeror represents that it will not require its employees or subcontractors to sign or comply with internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting waste, fraud, or abuse related to the performance of a Government contract to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information (e.g., agency Office of the Inspector General).

(v) *Covered Telecommunications Equipment or Services-Representation.* Section 889(a)(1)(A) and section 889 (a)(1)(B) of Public Law 115-232.

(1) The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(2) The Offeror represents that–

(i) It ☐ does, ☐ does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(ii) After conducting a reasonable inquiry for purposes of this representation, that it ☐ does, ☐ does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of Provision)

SECTION E – OFFEROR’S REPRESENTATIONS, CERTIFICATIONS AND OTHER STATEMENTS

E7 DIAR 1452.233-2 Service of Protest Department of the Interior (JUL 1996) (Deviation)

(a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from:

Maya Maxies-Clemons, Contracting Officer
REF: Solicitation # 140D0425R0090
maya_maxies-clemons@ibc.doi.gov

(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

(c) A copy of the protest served on the Contracting Officer shall be simultaneously furnished by the protester to the Department of the Interior Assistant Solicitor, Acquisitions and Intellectual Property, 1849 C Street, NW, Room 6511, Washington, DC 20240.
(End of provision)

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EXHIBITS

- E-1 Offerors Miscellaneous Information
- E-2 Past Performance Questionnaire
- E-3 Aircraft Questionnaire

SECTION E – OFFEROR’S REPRESENTATIONS, CERTIFICATIONS AND OTHER STATEMENTS

EXHIBIT E-1 OFFEROR’S MISCELLANEOUS INFORMATION

Offeror’s Company Name			
Offeror’s System for Award Management Unique Entity ID (UEI)			
Offeror’s Name, Title and E-mail Address			
Offeror’s Company Web Address			
Offeror’s Office Telephone Number			
Offeror’s Facsimile (FAX) Number			
Government Contract Representative	Name	Email Address	Telephone (cell)
*Director of Operations	Name	Email Address	Telephone (cell)
*Chief Pilot	Name	Email Address	Telephone (cell)
*Director of Maintenance	Name	Email Address	Telephone (cell)
Invoicing/AIRS	Name	Email Address	Telephone (cell)

***Note. All of the people named above will be verified against the Excluded Parties List for Government Contracting.** The Contractor must also notify the Contracting Officer of any changes in the Director of Operations, Chief Pilot, and Director of Maintenance positions, plus any additional positions approved under 14 CFR 119.69(b).

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EXHIBIT E-2 PAST PERFORMANCE QUESTIONNAIRE

You may recreate this form but it must include all the information listed. If you fail to include all requested information or we are unable to contact your references based on the information you provide, you may not receive consideration for the work done. Please provide details of recent efforts completed within the last three years that are comparable in scope, magnitude, and complexity to the work outlined in this solicitation.

OFFEROR NAME:			DATE
Primary Type of Work Done:			
Location of Work Done:			A/C Make/Model Used:
Contract #: ☐ None	☐ Exclusive Use ☐ Call When Needed	Use Dates: TO	CHECK ALL THAT APPLY ☐ 2022 ☐ 2023 ☐ 2024
Est. Annual Value of Work:	Estimated Annual Flight Hours:	Client Name/ Point of Contact:	
Client Telephone #:		Client Facsimile #:	
Primary Type of Work Done:			
Location of Work Done:			A/C Make/Model Used:
Contract #: ☐ None	☐ Exclusive Use ☐ Call When Needed	Use Dates: TO	CHECK ALL THAT APPLY ☐ 2022 ☐ 2023 ☐ 2024
Est. Annual Value of Work:	Estimated Annual Flight Hours:	Client Name/ Point of Contact:	
Client Telephone #:		Client Facsimile #:	
Primary Type of Work Done:			
Location of Work Done:			A/C Make/Model Used:
Contract #: ☐ None	☐ Exclusive Use ☐ Call When Needed	Use Dates: TO	CHECK ALL THAT APPLY ☐ 2022 ☐ 2023 ☐ 2024
Est. Annual Value of Work:	Estimated Annual Flight Hours:	Client Name/ Point of Contact:	
Client Telephone #:		Client Facsimile #:	
Primary Type of Work Done:			
Location of Work Done:			A/C Make/Model Used:
Contract #: ☐ None	☐ Exclusive Use ☐ Call When Needed	Use Dates: TO	CHECK ALL THAT APPLY ☐ 2022 ☐ 2023 ☐ 2024
Est. Annual Value of Work:	Estimated Annual Flight Hours:	Client Name/ Point of Contact:	
Client Telephone #:		Client Facsimile #:	

SECTION E – OFFEROR’S REPRESENTATIONS, CERTIFICATIONS AND OTHER STATEMENTS

EXHIBIT E-3

AIRCRAFT QUESTIONNAIRE

You may recreate this form, but it must include all the information listed

This questionnaire accurately completed will be used to determine the proposed aircraft payload capability.

REPRODUCE AND SUBMIT FOR EACH AIRCRAFT OFFERED - COMPLETE SHADED BLOCKS

Contractor (Business) Name:	
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Minimum Requirements:

Item #	Aircraft	Seating
2	Tandem seat	N/A
3	Single engine piston	Four (4) seats or greater
4	Single engine turbine	Four (4) seats or greater
5	Multi-engine piston	Six (6) seats or greater
6	Multi-engine turbine	Six (6) seats or greater
7	Multi-engine piston	Ten (10) seats or greater
8	Multi-engine turbine	Ten (10) seats or greater
9	Multi-engine jet	Ten (10) seats or greater

Aircraft Make and Model:	FAA Registration	Serial #	# Insured Passenger Seats (excludes pilot seat)

Operation for Which Approved	☐ VFR	☐ IFR
Single Pilot IFR in accordance with Part 135 (ME or SE Turbine)	☐ Yes	☐ No

Special Aircraft Equipment

Cargo Doors	☐ Yes	☐ No
Long Range Fuel Tank	☐ Yes	☐ No
FM Programmable Radio – ☐ Narrow ☐ Wide Band ☐ Digital	☐ Yes	☐ No
GPS	☐ Yes	☐ No
Intercom	☐ Yes	☐ No
STOL	☐ Yes	☐ No
Amphibious Floats	☐ Yes	☐ No
Floats	☐ Yes	☐ No
Skis	☐ Yes	☐ No
Wheel Skis	☐ Yes	☐ No
Tundra Tires – Size: Type:	☐ Yes	☐ No
Camera Port	☐ Yes	☐ No
FLIR	☐ Yes	☐ No
Satellite Phone #:	☐ Yes	☐ No
Iridium Satellite Aircraft Tracking (ISAT)	☐ Yes	☐ No
ELT/AFF – Type: NOAA Exp Date:	☐ Yes	☐ No
Other:	☐ Yes	☐ No
Other:	☐ Yes	☐ No

By signing below, I acknowledge that I have included the applicable equipment and certify to the best of my knowledge that the above information is accurate.

Name and Signature of Representative Completing this Form	Date
OFFEROR'S NAME	

SECTION E – OFFEROR’S REPRESENTATIONS, CERTIFICATIONS AND OTHER STATEMENTS

**EXHIBIT E-4
RESERVED**